**ព្រះរាជាណាចក្រកម្ពុជា**
**ជាតិ សាសនា ព្រះមហាក្សត្រ**

**ក្រសួងបរិស្ថាន**

លេខ:.....ប.ស្ត/ប

ប្រកាស
ស្តីពី
ចំណាត់ថ្នាក់ការប្រើប្រាស់ដីសម្រាប់ការងារកសិកម្ម និងការងារមិនកសិកម្ម

ក្នុងក្រសួងបរិស្ថាន

- ១ យោងតាមច្បាប់ស្តីពីការការពារបរិស្ថានរបស់ព្រះរាជាណាចក្រកម្ពុជា
  យោងតាមព្រះរាជក្រឹត្យលេខ នស/រកត/០៥០៥/០០១ ចុះថ្ងៃទី២៦ ខែសីហា ឆ្នាំ២០០៣ ស្តីពីការតែងតាំងនូវក្រសួងនានានៃព្រះរាជាណាចក្រកម្ពុជា
  យោងតាមព្រះរាជក្រឹត្យលេខ នស/រកត/០១០២/០០៦ ចុះថ្ងៃទី១ ខែកម្ភៈ ឆ្នាំ២០២៤ ស្តីពីការកែសម្រួលរចនាសម្ព័ន្ធក្រសួងបរិស្ថាន
- ២ យោងតាមព្រះរាជក្រឹត្យលេខ នស/រកត/០៩០៥/១១៤ ចុះថ្ងៃទី២០ ខែកញ្ញា ឆ្នាំ២០២៥ ស្តីពីការកែសម្រួលនូវនិយតកម្មសហការរវាងក្រសួងនានានៃព្រះរាជាណាចក្រកម្ពុជា
- ៣ យោងតាមព្រះរាជក្រឹត្យលេខ នស/រកត/១២០២/១៤០ ចុះថ្ងៃទី២០ ខែកុម្ភៈ ឆ្នាំ២០២៤ ស្តីពីការតែងតាំងលោកជ ណារ៉ា ជាប្រធានក្រសួងបរិស្ថាន
- ៤ យោងតាមព្រះរាជក្រមលេខ នស/រក/០២១២/០១២ ចុះថ្ងៃទី២៤ ខែមីនា ឆ្នាំ២០១២ ស្តីពីការរៀបចំ និងការប្រព្រឹត្តទៅនៃសណ្ឋាគារ
- ៥ យោងតាមច្បាប់ស្តីពីការការពារ និងការអភិវឌ្ឍធនធានជលផល
- ៦ យោងតាមច្បាប់ស្តីពីការការពារ និងការគ្រប់គ្រងតំបន់ការពារធម្មជាតិ
- ៧ យោងតាមច្បាប់ស្តីពីការការពារ និងការគ្រប់គ្រងធនធានជលផល
- ៨ យោងតាមច្បាប់ស្តីពីការការពារ និងការគ្រប់គ្រងធនធានកសិកម្ម
- ៩ យោងតាមការចាំបាច់របស់ក្រសួងបរិស្ថាន



អាសយដ្ឋាន លេខ១០០ ផ្លូវលេខ១០០ សង្កាត់ទួលទំពូង១ ខណ្ឌចំការមន រាជធានីភ្នំពេញ ទូរស្ព័ទ: 023 236 004 / 023 236 006

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**ប្រការ៧.**

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**ប្រការ១១.**

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ដោយការណ៍។ ដោយពេល ៩០(កៅសិប)ថ្ងៃនេះ ត្រូវអស់សុពលភាពនៅពេលដែលក្រសួងបរិស្ថានបានផ្តល់យោបល់ ទោះបីជាយោបល់នោះជាយោបល់បដិសេធ ឬឯកភាព ឬបង្ហាប់ឱ្យមានការកែលើដោយការណ៍ក៏ដោយ។

**ប្រការ១០...**

ប្រសិនបើគម្រោងអភិវឌ្ឍជួបមានភ្ជាប់នៅក្នុងតារាងឧបសម្ព័ន្ធនៃប្រកាសនេះ អាចកែប្រែបានតាមយោ-ប្រកាសរបស់រដ្ឋមន្ត្រីក្រសួងហិរញ្ញវត្ថុ។

**ប្រការ១១...**

ប្រកាសលេខ ០២១ ប្រក ប.ស ចុះថ្ងៃទី០៣ ខែកុម្ភៈ ឆ្នាំ២០២០ ស្តីពីចំណាត់ថ្នាក់នៃការកំណត់តម្លៃហេតុប៉ះពាល់បរិស្ថានសម្រាប់គម្រោងអភិវឌ្ឍន៍ និងបទប្បញ្ញត្តិទាំងឡាយណាដែលផ្ទុយនឹងប្រកាសនេះ ត្រូវទុកជានិរាករណ៍។

**ប្រការ១២...**

អគ្គនាយកនៃគ្រប់អគ្គនាយកដ្ឋាន អគ្គាធិការនៃអគ្គាធិការដ្ឋាន នាយកដ្ឋានសវនកម្មផ្ទៃក្នុង នាយកដ្ឋានកំណត់តម្លៃហេតុប៉ះពាល់បរិស្ថាន និងគ្រប់អង្គភាពក្រោមឱវាទក្រសួងហិរញ្ញវត្ថុ ត្រូវចូលរួមគោរពអនុវត្តប្រកាសនេះ តាមការកិច្ចរៀងៗខ្លួនចាប់ពីថ្ងៃចុះហត្ថលេខានេះតទៅ។

ថ្ងៃ ខែ ឆ្នាំម្សាញ់ សប្តស្ក ព.ស.២៥៦៨

ធ្វើនៅរាជធានីភ្នំពេញ ថ្ងៃទី ០3 ខែកុម្ภៈ ឆ្នាំ២០២៥

រដ្ឋមន្ត្រី

**ហ៊ីង សុជណ្ឌ**

**កន្លែងទទួល៖**
- ទីស្តីការគណៈរដ្ឋមន្ត្រី
- ក្រសួងសេដ្ឋកិច្ចនិងហិរញ្ញវត្ថុ
- ខុទ្ទកាល័យសម្តេចមហាបវរធិបតី នាយករដ្ឋមន្ត្រី
- ខុទ្ទកាល័យឯកឧត្តមឧបនាយករដ្ឋមន្ត្រី
- រដ្ឋបាលរាជធានី ខេត្ត
- ដូចប្រការ១២ (ដើម្បីអនុវត្ត)
- រាជកិច្ច
- ឯកសារ កាលប្បវត្តិ

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# FOREWORD BY DR. JAKOB KELLENBERGER

**President of the International Committee of the Red Cross**

The laws of war were born of confrontation between armed forces on the battlefield. Until the mid-nineteenth century, these rules remained customary in nature, recognised because they had existed since time immemorial and because they corresponded to the demands of civilisation. All civilisations have developed rules aimed at minimising violence – even this institutionalised form of violence that we call war – since limiting violence is the very essence of civilisation.

By making international law a matter to be agreed between sovereigns and by basing it on State practice and consent, Grotius and the other founding fathers of public international law paved the way for that law to assume universal dimensions, applicable both in peacetime and in wartime and able to transcend cultures and civilizations. However, it was the nineteenth-century visionary Henry Dunant who was the true pioneer of contemporary international humanitarian law. In calling for "some international principle, sanctioned by a Convention and inviolate in character" to protect the wounded and all those trying to help them, Dunant took humanitarian law a decisive step forward. By instigating the adoption, in 1864, of the Geneva Convention for the amelioration of the condition of the wounded and sick in armed forces in the field, Dunant and the other founders of the International Committee of the Red Cross laid the cornerstone of treaty-based international humanitarian law.

This treaty was revised in 1906, and again in 1929 and 1949. New conventions protecting hospital ships, prisoners of war and civilians were also adopted. The result is the four Geneva Conventions of 1949, which constitute the foundation of international humanitarian law in force today. Acceptance by the States of these Conventions demonstrated that it was possible to adopt, in peacetime, rules to attenuate the horrors of war and protect those affected by it.

Governments also adopted a series of treaties governing the conduct of hostilities: the Declaration of St Petersburg of 1868, the Hague Conventions of 1899 and 1907, and the Geneva Protocol of 1925, which bans the use of chemical and bacteriological weapons.

These two normative currents merged in 1977 with the adoption of the two Protocols additional to the 1949 Geneva Conventions, which brought up to date both the rules governing the conduct of hostilities and those protecting war victims.

More recently, other important conventions were added to this already long list of treaties, in particular the 1980 Convention on Certain Conventional Weapons and its five Protocols, the 1997 Ottawa Convention on the Prohibition of Anti-Personnel Landmines, the 1998 Statute of the International Criminal Court, the 1999 Protocol to the 1954 Convention for the Protection of Cultural Property in the Event of Armed Conflict and the 2000 Optional Protocol on the Involvement of Children in Armed Conflict.

This remarkable progress in codifying international humanitarian law should not, however, cause us to ignore customary humanitarian law. There are three reasons why this body of law remains extremely important.

First, while the Geneva Conventions enjoy universal adherence today, this is not yet the case for other major treaties, including the Additional Protocols. These treaties apply only between or within States that have ratified them. Rules of customary international humanitarian law on the other hand, sometimes referred to as "general" international law, bind all States and, where relevant, all parties to the conflict, without the need for formal adherence.

Second, international humanitarian law applicable to non-international armed conflict falls short of meeting the protection needs arising from these conflicts. As admitted by the diplomatic conferences that adopted them, Article 3 common to the Geneva Conventions and Protocol II additional to those Conventions represent only the most rudimentary set of rules. State practice goes beyond what those same States have accepted at diplomatic conferences, since most of them agree that the essence of customary rules on the conduct of hostilities applies to *all* armed conflicts, international and non-international.

Last, customary international law can help in the interpretation of treaty law. It is a well-established principle that a treaty must be interpreted in good faith and with due regard for all relevant rules of international law.

With this in mind, one better understands the mandate assigned to the ICRC by the 26th International Conference of the Red Cross and Red Crescent (Geneva, 1995), when the organization was asked to:

> prepare, with the assistance of experts in international humanitarian law representing various geographical regions and different legal systems, and in consultation with experts from governments and international organisations, a report on customary rules of international humanitarian law applicable in international and non-international armed conflicts, and to circulate the report to States and competent international bodies.

The ICRC accepted this mandate with gratitude and humility – gratitude because it appreciates the international community's confidence in it as symbolised by this assignment, and humility since it was fully aware of the difficulty involved in describing the present state of customary international law on the basis of all available sources.

The ICRC charged two members of its Legal Division with the task of carrying out this study. Under the guidance of a Steering Committee composed of 12 experts of international repute, the ICRC engaged in a large-scale consultation process involving over 100 eminent authorities. Considering this report primarily as a work of scholarship, the ICRC respected the academic freedom both of the report's authors and of the experts consulted, the idea being to capture the clearest possible "photograph" of customary international humanitarian law as it stands today.

The ICRC believes that the study does indeed present an accurate assessment of the current state of customary international humanitarian law. It will therefore duly take the outcome of this study into account in its daily work, while being aware that the formation of customary international law is an ongoing process. The study should also serve as a basis for discussion with respect to the implementation, clarification and development of humanitarian law.

Lastly, the ICRC is pleased that this study has served to emphasise the universality of humanitarian law. All traditions and civilizations have contributed to the development of this law, which is today part of the common heritage of mankind.

The ICRC would like to express its deep gratitude to the experts who gave freely of their time and expertise, to the staff of its Legal Division, and in particular to the authors, who, in bringing this unique project to its conclusion, refused to be discouraged by the enormity of the task.

In presenting this study to the States party to the Geneva Conventions, to National Red Cross and Red Crescent Societies and other humanitarian organisations, to judges and scholars and to other interested parties, the ICRC's sincere hope is that it will clarify the meaning and significance of a number of rules of international humanitarian law and that it will ensure greater protection for war victims.

## FOREWORD BY DR. ABDUL G. KOROMA

**Judge at the International Court of Justice**

Sadly, it cannot be said that the incidence of armed conflict has become any rarer since the end of the Second World War. Rather, a host of conflicts across the world, both international and non-international, have highlighted as never before the extent to which civilians have become targets and the growing need to ensure the protection of the wounded, the sick, detainees and the civilian population afforded to them by the rules of international humanitarian law. Opinions vary as to the reason for the increasing number of violations of international humanitarian law. Is it a lack of awareness of the rules on the part of those who should observe them? Is it the inadequacy of the rules even where they are known? Is it weak mechanisms for enforcing the rules? Or is it sheer disregard for the rules? To some extent, there is truth in each. For international humanitarian law to be more effective, not one but all of these facets of the problem need to be addressed. Clearly, the first step in achieving the goal of universal respect for humanitarian rules must be the articulation of what the rules require; only then can the question of how to improve upon them be considered.

This study of customary international humanitarian law and its role in protecting the victims of war is both timely and important for a number of reasons. The relevant treaty law covers a wide variety of aspects of warfare, but treaty law, by its very nature, is unable to provide a complete picture of the state of the law. While treaties bind those States that have adhered to them, without the existence of customary law, non-parties would be free to act as they wished. In addition, because they are written down, treaty rules are well defined and must be clear as to the standard of conduct they require; but since a treaty is the result of an agreement between the parties, the instruction provided by a treaty rule is only as useful as the degree of genuine agreement achieved. Written rules cannot be vague or open to divergent interpretations. Customary international law, while being notorious for its imprecision, may be no less useful than treaty law, and may in fact actually have certain advantages over it. For example, it is widely accepted that general customary international law binds States that have not persistently and openly dissented in relation to a rule while that rule was in the process of formation. Also, one of the most important bases for the success of a treaty regime is the extent of the political will to achieve the

purposes of that treaty, and that is as important, if not more so, than the need for the rules to be in written form.

Accordingly, this study, which aims to articulate the existing customary rules on the subject, can only help improve respect for international humanitarian law and offer greater protection to victims of war. Knowledge of the relevant customary law on the part of the various actors involved in its application, dissemination and enforcement, such as military personnel, governmental authorities, courts and tribunals and governmental and non-governmental organisations, is a vital first step towards enhancing the effectiveness of international humanitarian law. This study is an invaluable contribution to that goal.

# FOREWORD BY DR. YVES SANDOZ

**Member of the International Committee of the Red Cross; former Director of the ICRC Department of International Law and Policy; Lecturer, Universities of Geneva and Fribourg**

The decision to go ahead with a study on customary international humanitarian law depended primarily on the answer to two questions – how useful it would be and how much it would cost – which together give us the famous cost-effectiveness ratio, something that must be taken into account in any undertaking, even if its purpose is humanitarian.

To be sure, applying the criterion of cost-effectiveness is not necessarily appropriate for humanitarian work since it would be cynical to attach a financial price to life and well-being. Nevertheless, those who run an organisation like the ICRC have a moral duty to seek maximum efficiency in the use to which they put their human and financial resources (while seeking to increase those resources). For, as long as there are wars, it will never be possible to do enough, or to do it well enough, to protect and assist those affected.

The international community has given the ICRC the onerous mandate to "work for the faithful application of international humanitarian law". This imposes a duty of constant vigilance. For the ICRC, impartiality means not only avoiding discrimination between the different victims of a given conflict, but also constantly striving to ensure that all the victims of all the conflicts on the planet are treated equitably, without regional or ethnic preference and independently of the emotions sparked by media-selected images.

This concern to avoid discrimination and to ensure impartiality on a global scale guides the ICRC in choosing its activities. When the time comes to make these choices, meeting the victims' urgent need for food and medical care logically remains the priority and claims far and away the largest part of the organisation's budget. How could paying for a meeting of experts take precedence over delivering sacks of flour?

The choices, however, are not that stark. Experience has shown that nothing is to be gained by swinging blindly into action when the fighting starts. Many organisations have learned the hard way that you cannot be effective without first understanding the situation in which you are working, the mentality of those involved in the conflict and the society and culture of those you seek to aid. And if you must first understand, you must also be understood, not only by the combatants – who must know and accept the red cross and red crescent

emblems and the principles of humanity, impartiality and neutrality symbolised by that emblem – but also by your intended beneficiaries.

The ICRC's long experience has convinced it that in order to be effective it has to engage in a wide range of activities, activities that must not be viewed in isolation but rather in relation to one another. The complementary nature of those activities has grown ever clearer with the passing years.

Each of these activities is linked to other activities, all fitting together to form a coherent edifice. That is, humanitarian action in the field prompts discussion, which then develops in meetings of experts of various kinds before eventually taking the form of treaty provisions or new international institutions such as the International Criminal Court, whose Statute was adopted in 1998. The next task is to work towards universal acceptance of the new rules by convincing the States through their governments, their parliaments, their senior officials, etc. of the importance of respecting such rules. Lastly, individual States must be encouraged to adopt national laws incorporating the new rules into domestic legislation, to ensure that the public knows and understands basic humanitarian principles, to ensure that international humanitarian law is adequately taught in schools and universities, and to integrate the subject into military training. The ultimate goal of all this work is to benefit the victims of war and facilitate the task of those seeking to help them.

But it will never be enough. War will remain cruel and there will never be adequate compliance with rules aimed at curbing that cruelty. New problems will arise requiring new forms of action and new discussion about the adequacy of existing rules or their application to new realities. And so the great wheel of law and humanitarian endeavour will continue to turn in the direction of a goal that may never be fully attained, that is, an end to armed conflict. Indeed, that goal sometimes seems to recede amid the pain and anguish of countless wars; but we must always struggle back towards it.

A lawyer in an office working on the development of international humanitarian law is doing a job different from that of the surgeon treating wounded people or a nutritionist in a refugee camp. But all three are in fact pursuing the same objective, each with his or her own place in the indispensable circle of law and humanitarian action.

Ascertaining the role played by legal experts is nevertheless not enough to justify a study on customary international humanitarian law. As part of the process outlined above, the ICRC has in recent years devoted significant resources to considering the state of the law and to spreading knowledge of it. But those resources are limited and choices must therefore be made between various options within the legal domain. Should priority be given to developing new law, promoting national legislation, clarifying certain aspects of practical implementation, consulting experts on sensitive questions, training the

miliitary or mobilising public opinion as a means of bringing about greater compliance? All these activities are necessary to some extent, but the question is where the priority belongs. The singular thing about the proposed study on customary law was that it was ill-suited to compromise and to half-measures. The choice was between doing it – and ensuring that one had the means to do it well – and foregoing it on the grounds that its value would rely totally on its credibility.

The decision was eventually taken to go ahead with the project. The ICRC's Legal Division was assigned this difficult task and given the means to do a thorough job. Lavish means were not necessary because the ICRC is lucky enough to be able to count on volunteer work by a wide range of the world's leading experts. And we cannot thank them enough for their generosity and commitment. But the administrative work involved and the tasks of organising meetings and translating a number of texts all obviously cost money, as does tapping the sources, in all corners of the world, on which the study is based.

How then can such an investment be justified? Why devote large-scale resources to clarifying what is customary in a branch of law that is so widely codified and by whose treaties the vast majority of States are bound? Many reasons can be given for this, but I will cite two which seem to me essential.

The first is that, despite everything, there remain in international humanitarian law vast but little-known reaches that it is important to explore more fully. This is particularly the case for the rules restricting the use of certain means and methods of warfare. These rules, which were laid down in the Additional Protocols of 1977, very directly concern the military, since it is they who have to implement these rules. If they are sometimes rather vague, this is because at the time of their adoption it was not possible for everyone to agree on a more precise formulation.

The problem is all the more sensitive as the great majority of modern-day armed conflicts are internal, while most of the rules in question are formally applicable only to international conflicts. For the average person, this is completely absurd. Indeed, how can one claim the right to employ against one's own population means of warfare which one has prohibited for use against an invader? Nevertheless, for historical reasons, precisely this distinction has been made. To be sure, treaties drawn up today tend to soften the effects of this distinction. It exists all the same, and the study on customary law makes it possible to ascertain the extent to which it has been blurred in practice and according to the *opinio juris* of the States.

The ICRC study also represents an excellent opportunity to view international humanitarian law in its entirety, asking what purpose it has served and how it has been applied, studying the relevance of its various provisions and determining whether some of the problems encountered today do not call for a fresh look at this or that provision.

The study plays a capital role in answering these questions, especially as the problem is not to know whether given rules exist or not but rather how to interpret them. But this is no easy matter. Whatever else, the study's conclusions will serve as a valuable basis for identifying areas in the law that should be clarified or developed and for engaging in whatever dialogue or negotiation is necessary to strengthen the coherence of military doctrines and those of the jurisprudence of national and international courts, present or future. Therefore, coherence is indispensable to international humanitarian law's credibility.

The second reason is to be found not so much in the results of the study but in the study itself. Doing research throughout the world to find out how the rules are complied with, translated, taught and applied, then collating that information in order to ascertain both the successes and the remaining gaps – is all this not the best way to ensure more effective application of these rules, to stimulate interest, research and new ideas and, above all, to encourage dialogue between the world's different cultures? This undertaking has particular significance at a time of renewed tension for humanity when religious and cultural frictions are being exploited for violent ends. The Geneva Conventions have been universally embraced. The rules of international humanitarian law represent a kind of common heritage of mankind, with its roots in all human cultures. They can therefore be viewed as a cement between different cultures. It is thus essential to remind people of those rules and persuade them to comply. The study has been a golden opportunity to do this.

With the fruit of this enormous labour before us, one might think that the circle has been closed. The contrary is the case, however, and I would like to conclude by stressing that this study will have achieved its goal only if it is considered not as the end of a process but as a beginning. It reveals what has been accomplished but also what remains unclear and what remains to be done.

The study is a still photograph of reality, taken with great concern for absolute honesty, that is, without trying to make the law say what one wishes it would say. I am convinced that this is what lends the study international credibility. But though it represents the truest possible reflection of reality, the study makes no claim to be the final word. It is not all-encompassing – choices had to be made – and no one is infallible. In the introduction to *De jure belli ac pacis*, Grotius says this to his readers: "I beg and adjure all those into whose hands this work shall come, that they assume towards me the same liberty which I have assumed in passing upon the opinions and writings of others." What better way to express the objective of those who carried out this study? May it be read, discussed and commented on. May it prompt renewed examination of international humanitarian law and of the means of bringing about greater compliance and of developing the law. Perhaps it could even help go beyond the

subject of war and spur us to think about the value of the principles on which the law is based in order to build universal peace – the utopian imperative – in the century on which we have now embarked.

The study on customary international humanitarian law is more than the record of a worthy project – it is above all a challenge for the future.

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Jean-Marie Henckaerts
Louise Doswald-Beck

# INTRODUCTION

International humanitarian law has its origins in the customary practices of armies as they developed over the ages and on all continents. The "laws and customs of war", as this branch of international law has traditionally been called, was not applied by all armies, and not necessarily vis-à-vis all enemies, nor were all the rules the same. However, the pattern that could typically be found was restraint of behaviour vis-à-vis combatants and civilians, primarily based on the concept of the soldier's honour. The content of the rules generally included the prohibition of behaviour that was considered unnecessarily cruel or dishonourable, and was not only developed by the armies themselves, but was also influenced by the writings of religious leaders.

The most significant landmark from the point of view of cataloguing these customs in one document was the drafting by Professor Francis Lieber of the Instructions for the Government of Armies of the United States in the Field, promulgated as General Order No. 100 by President Lincoln in 1863 during the American Civil War. The Lieber Code, as it is now known, strongly influenced the further codification of the laws and customs of war and the adoption of similar regulations by other States. Together, they formed the basis of the draft of an international convention on the laws and customs of war presented to the Brussels Conference in 1874. Although this conference did not adopt a binding treaty, much of its work was later used in the development of the 1899 and 1907 Hague Conventions and Declarations. These treaties did not codify all aspects of custom, but its continued importance was reaffirmed in the so-called "Martens clause", first inserted in the preamble to the 1899 Hague Convention (II), which provides that:

> Until a more complete code of the laws of war is issued, the High Contracting Parties think it right to declare that in cases not included in the Regulations adopted by them, populations and belligerents remain under the protection and empire of the principles of international law, as they result from the usages established between civilized nations, from the laws of humanity and the requirements of the public conscience.

The importance attributed to customary law, despite, or because of, its partial codification, was most clearly seen in the reliance placed on it by the various war crimes trials after both the First and Second World Wars.[1]

[1] See Knut Dörmann, *Elements of War Crimes under the Rome Statute of the International Criminal Court: Sources and Commentary*, Cambridge University Press, 2003.

The driving force behind the development of international humanitarian law has been the International Committee of the Red Cross (ICRC), founded in 1863. It initiated the process which led to the conclusion of the Geneva Conventions for the protection of the victims of war of 1864, 1906, 1929 and 1949. It was at the origin of the 1899 Hague Convention (III) and 1907 Hague Convention (X), which adapted, respectively, the 1864 and 1906 Geneva Conventions to maritime warfare and were the precursors of the Geneva Convention for the Amelioration of the Condition of the Wounded, Sick and Shipwrecked Members of Armed Forces at Sea of 1949. It took the initiative to supplement the Geneva Conventions that led to the adoption in 1977 of two Additional Protocols. The ICRC has both encouraged the development of and been involved in the negotiation of numerous other treaties, such as the 1980 Convention on Certain Conventional Weapons, the 1997 Ottawa Convention banning anti-personnel landmines and the 1998 Statute of the International Criminal Court. Recognition of this role is reflected in the mandate given to the ICRC by the international community to work for "the faithful application of international humanitarian law applicable in armed conflicts" and for "the understanding and dissemination of knowledge of international humanitarian law applicable in armed conflicts and to prepare any development thereof".[2]

More than 50 years have now passed since the Geneva Conventions of 1949 were adopted and almost 30 years since the adoption of their Additional Protocols. These years have, unfortunately, been marked by a proliferation of armed conflicts affecting every continent. Throughout these conflicts, the Geneva Conventions – and in particular Article 3 common to the four Conventions, applicable in non-international armed conflicts – together with their Additional Protocols have provided legal protection to war victims, namely persons who do not or no longer participate in hostilities (the wounded, sick and shipwrecked, persons deprived of their liberty for reasons related to the conflict, and civilians). Nevertheless, there have been countless violations of these treaties and of basic humanitarian principles, resulting in suffering and

[2] Statutes of the International Red Cross and Red Crescent Movement, adopted by the 25th International Conference of the Red Cross, Geneva, 23–31 October 1986, Article 5(2)(c) and (g) respectively. The Statutes were adopted by the States party to the Geneva Conventions and the members of the International Red Cross and Red Crescent Movement. This mandate was first given to the ICRC by Article 7 of the Statutes of the International Red Cross adopted by the 13th International Conference of the Red Cross, The Hague, 23–27 October 1928, according to which "all complaints in regard to alleged violations of the international Conventions, and in general, all questions calling for examination by a specifically neutral body, shall remain the exclusive province of the International Committee of the Red Cross". Subsequently, Article 6(4) and (7) of the Statutes of the International Red Cross adopted by the 18th International Conference of the Red Cross, Toronto, 22 July–8 August 1952, stated that the ICRC "undertakes the tasks incumbent on it under the Geneva Conventions, works for the faithful application of these Conventions and takes cognizance of complaints regarding alleged breaches of the humanitarian Conventions" and "works for the continual improvement and diffusion of the Geneva Conventions".

death which might have been avoided had international humanitarian law been respected.

The general opinion is that violations of international humanitarian law are not due to the inadequacy of its rules, but rather to a lack of willingness to respect them, to a lack of means to enforce them and to uncertainty as to their application in some circumstances, but also to ignorance of the rules on the part of political leaders, commanders, combatants and the general public.

The International Conference for the Protection of War Victims, convened in Geneva from 30 August to 1 September 1993, discussed, in particular, ways and means to address violations of international humanitarian law but did not propose the adoption of new treaty provisions. Instead, in its Final Declaration, adopted by consensus, the Conference reaffirmed "the necessity to make the implementation of humanitarian law more effective" and called upon the Swiss government "to convene an open-ended intergovernmental group of experts to study practical means of promoting full respect for and compliance with that law, and to prepare a report for submission to the States and to the next session of the International Conference of the Red Cross and Red Crescent".[3]

To this end, the Intergovernmental Group of Experts for the Protection of War Victims met in Geneva in January 1995 and adopted a series of recommendations aimed at enhancing respect for international humanitarian law, in particular by means of preventive measures that would ensure better knowledge and more effective implementation of the law. Recommendation II of the Intergovernmental Group of Experts proposed that:

> The ICRC be invited to prepare, with the assistance of experts in IHL [international humanitarian law] representing various geographical regions and different legal systems, and in consultation with experts from governments and international organisations, a report on customary rules of IHL applicable in international and non-international armed conflicts, and to circulate the report to States and competent international bodies.[4]

In December 1995, the 26th International Conference of the Red Cross and Red Crescent endorsed this recommendation and officially mandated the ICRC to prepare a report on customary rules of international humanitarian law applicable in international and non-international armed conflicts.[5] The present study is the outcome of the research carried out pursuant to this mandate.

[3] International Conference for the Protection of War Victims, Geneva, 30 August–1 September 1993, Final Declaration, *International Review of the Red Cross*, No. 296, 1993, p. 381.

[4] Meeting of the Intergovernmental Group of Experts for the Protection of War Victims, Geneva, 23–27 January 1995, Recommendation II, *International Review of the Red Cross*, No. 310, 1996, p. 84.

[5] 26th International Conference of the Red Cross and Red Crescent, Geneva, 3–7 December 1995, Resolution 1, International humanitarian law: From law to action; Report on the follow-up to the International Conference for the Protection of War Victims, *International Review of the Red Cross*, No. 310, 1996, p. 58.

**Purpose of the study**

International humanitarian treaty law is well developed and covers a wide variety of aspects of warfare, offering protection to victims of war and limiting permissible means and methods of warfare. The four Geneva Conventions of 1949 and their Additional Protocols of 1977 provide an extensive regime for the protection of persons who do not or no longer participate in armed conflict. The regulation of the means and methods of warfare in treaty law goes back to the 1868 St. Petersburg Declaration, the 1899 and 1907 Hague Conventions and the 1925 Geneva Gas Protocol and has most recently been addressed in the 1972 Biological Weapons Convention, the 1977 Additional Protocols, the 1980 Convention on Certain Conventional Weapons and its five Protocols, the 1993 Chemical Weapons Convention and the 1997 Ottawa Convention banning anti-personnel landmines. The protection of cultural property in the event of armed conflict is regulated in detail in the 1954 Hague Convention and its two Protocols. The 1998 Statute of the International Criminal Court contains a list of war crimes subject to its jurisdiction.

There are, however, two important impediments to applying these treaties to current armed conflicts. First, treaties apply only to the States that have ratified them. This means that different treaties of international humanitarian law apply to different armed conflicts depending on which treaties the States involved have ratified. While nearly all States have ratified the four Geneva Conventions of 1949, Additional Protocol I has not yet gained universal adherence. As the Protocol is applicable only between parties to a conflict that have ratified it, its efficacy today is limited because several States that have been involved in international armed conflicts are not a party to it. Similarly, Additional Protocol II is only applicable in armed conflicts taking place on the territory of a State that has ratified it. While some 150 States have ratified this Protocol, several States in which non-international armed conflicts are taking place have not. In these non-international armed conflicts, common Article 3 of the four Geneva Conventions often remains the only applicable treaty provision.

Secondly, this wealth of treaty law does not regulate a large proportion of today's armed conflicts in sufficient detail. The primary reason for this is that the majority of current armed conflicts are non-international, which are subject to far fewer treaty rules than international conflicts, although their number is increasing. In fact, only a limited number of treaties apply to non-international armed conflicts, namely the Convention on Certain Conventional Weapons, as amended, the Statute of the International Criminal Court, the Ottawa Convention banning anti-personnel landmines, the Chemical Weapons Convention, the Hague Convention for the Protection of Cultural Property and its Second Protocol and, as already mentioned, Additional Protocol II and Article 3 common to the four Geneva Conventions. While common Article 3 is of

fundamental importance, it only provides a rudimentary framework of minimum standards and does not contain much detail. Additional Protocol II usefully supplements common Article 3, but it is still less detailed than the rules governing international armed conflicts contained in Additional Protocol I.

Additional Protocol II contains a mere 15 substantive articles, whereas Additional Protocol I has more than 80. These figures may not be all important, but they nonetheless show that there is a significant difference in terms of regulation between international and non-international armed conflicts, with the latter suffering from a lack of rules, definitions, details and requirements in treaty law. This is the prevailing situation, even though the majority of armed conflicts today are non-international.

Specifically, Additional Protocol II contains only a very rudimentary regulation of the conduct of hostilities. Article 13 provides that "the civilian population as such, as well as individual civilians, shall not be the object of attack . . . unless and for such time as they take a direct part in hostilities". Unlike Additional Protocol I, Additional Protocol II does not contain, however, specific rules and definitions with respect to the principles of distinction and proportionality.

Common sense would suggest that such rules, and the limits they impose on the way war is waged, should be equally applicable in international and non-international armed conflicts. The fact that in 2001 the Convention on Certain Conventional Weapons was amended to extend its scope to non-international armed conflicts is an indication that this notion is gaining currency within the international community.

This study provides evidence that many rules of customary international law apply in both international and non-international armed conflicts and shows the extent to which State practice has gone beyond existing treaty law and expanded the rules applicable to non-international armed conflicts. In particular, the gaps in the regulation of the conduct of hostilities in Additional Protocol II have largely been filled through State practice, which has led to the creation of rules parallel to those in Additional Protocol I, but applicable as customary law to non-international armed conflicts.

Knowledge of the rules of customary international law is therefore of use to the many actors involved in the application, dissemination and enforcement of international humanitarian law, such as governmental authorities, arms bearers, international organisations, components of the International Red Cross and Red Crescent Movement and non-governmental organisations. A study on customary international humanitarian law may also be helpful in reducing the uncertainties and the scope for argument inherent in the concept of customary international law.

Knowledge of the rules of customary international law may also be of service in a number of situations where reliance on customary international law is required. This is especially relevant for the work of courts and international

organisations. Indeed, courts are frequently required to apply customary international law. This is the case, for example, for the International Criminal Tribunal for the Former Yugoslavia which, pursuant to Article 3 of its Statute, has jurisdiction over violations of the laws and customs of war. As a result, the Tribunal has had to determine whether certain violations of international humanitarian law were violations under customary international law over which the Tribunal has jurisdiction. In addition, in many countries, customary international law is a source of domestic law and can be invoked before and adjudicated by national courts. Customary international law is also relevant to the work of international organisations in that it generally represents the law binding upon all member States.

## Scope of the study

This study has not sought to determine the customary nature of each treaty rule of international humanitarian law and, as a result, does not necessarily follow the structure of existing treaties. Rather, it has sought to analyse issues in order to establish what rules of customary international law can be found inductively on the basis of State practice in relation to these issues. As the approach chosen does not analyse each treaty provision with a view to establishing whether or not it is customary, it cannot be concluded that any particular treaty rule is *not* customary merely because it does not appear as such in this study. In this regard, it is important to note that the great majority of the provisions of the Geneva Conventions of 1949, including common Article 3, are considered to be customary law, and the same is true for the 1907 Hague Regulations (see *infra*). Furthermore, given that the Geneva Conventions have now been ratified by 192 States, they are binding on nearly all States as a matter of treaty law.

It was decided not to research customary law applicable to naval warfare as this area of law was recently the subject of a major restatement, namely the San Remo Manual on Naval Warfare.[6] The general rules contained in the manual were nevertheless considered useful for the assessment of the customary nature of rules that apply to all types of warfare.

A number of topics could not be developed in sufficient detail for inclusion in this edition, but they might be included in a future update. These include, for example, the Martens clause, identification of specifically protected persons and objects, and civil defence.

Where relevant, practice under international human rights law has been included in the study. This was done because international human rights law

[6] Louise Doswald-Beck (ed.), *San Remo Manual on International Law Applicable to Armed Conflicts at Sea*, Prepared by international lawyers and naval experts convened by the International Institute of Humanitarian Law, Cambridge University Press, 1995.

continues to apply during armed conflicts, as indicated by the express terms of the human rights treaties themselves, although some provisions may, subject to certain conditions, be derogated from in time of public emergency. The continued applicability of human rights law during armed conflict has been confirmed on numerous occasions by the treaty bodies that have analysed State behaviour, including during armed conflict, and by the International Court of Justice (see introduction to Chapter 32). This study does not purport, however, to provide an assessment of customary human rights law. Instead, human rights law has been included in order to support, strengthen and clarify analogous principles of international humanitarian law. In addition, while they remain separate branches of international law, human rights law and international humanitarian law have directly influenced each other, and continue to do so, and this for mainly three reasons. First, an assessment of conformity with human rights law at times involves a determination of respect for or breach of international humanitarian law. For example, measures taken in states of emergency will be unlawful under human rights law if, *inter alia*, they violate international humanitarian law.[7] Conversely, international humanitarian law contains concepts the interpretation of which needs to include a reference to human rights law, for example, the provision that no one may be convicted of a crime other than by a "regularly constituted court affording all the judicial guarantees which are recognised as indispensable".[8] Secondly, human rights-type provisions are to be found in international humanitarian law, for example, Article 75 of Additional Protocol I and Articles 4 and 6 of Additional Protocol II, and humanitarian law-type provisions are to be found in human rights law, for example, the provisions on child soldiers in the Convention on the Rights of the Child and its Protocol on the Involvement of Children in Armed Conflict. Thirdly, and most significantly, there is extensive practice by States and by international organisations commenting on the behaviour of States during armed conflict in the light of human rights law.[9]

## Assessment of customary international law

The Statute of the International Court of Justice describes customary international law as "a general practice accepted as law".[10] It is generally agreed that

[7] Article 4 of the International Covenant on Civil and Political Rights, Article 15 of the European Convention on Human Rights and Article 27 of the American Convention on Human Rights all state that derogation measures by States must not be "inconsistent with their other obligations under international law". The African Charter on Human and Peoples' Rights does not allow for derogation.

[8] Common Article 3(1)(d) of the Geneva Conventions of 1949.

[9] See, in particular, Chapter 32 on Fundamental Guarantees.

[10] ICJ Statute, Article 38(1)(b).

the existence of a rule of customary international law requires the presence of two elements, namely State practice (*usus*) and a belief that such practice is required, prohibited or allowed, depending on the nature of the rule, as a matter of law (*opinio juris sive necessitatis*). As the International Court of Justice stated in the *Continental Shelf case*: "It is of course axiomatic that the material of customary international law is to be looked for primarily in the actual practice and *opinio juris* of States."[11] The exact meaning and content of these two elements has been the subject of much academic writing. The approach taken in this study to determine whether a rule of general customary international law exists is a classic one, set out by the International Court of Justice in a number of cases, in particular in the *North Sea Continental Shelf cases*.[12]

### *State practice*

In the assessment of State practice, two separate issues need to be addressed, namely the selection of practice that contributes to the creation of customary international law and the assessment of whether this practice establishes a rule of customary international law.

#### Selection of State practice

The practice collected for the purpose of this study, and which is summarised in Volume II, was selected on the basis of the following criteria.

(i) Both physical and verbal acts of States constitute practice that contributes to the creation of customary international law. Physical acts include, for example, battlefield behaviour, the use of certain weapons and the treatment provided to different categories of persons. Verbal acts include military manuals, national legislation, national case-law, instructions to armed and security forces, military communiqués during war, diplomatic protests, opinions of official legal advisers, comments by governments on draft treaties, executive decisions and regulations, pleadings before international tribunals, statements in international organisations and at international conferences and government positions taken with respect to resolutions of international organisations.

The approach to consider both physical and verbal acts as practice follows that taken by leading bodies in the field of international law and by States themselves. The International Court of Justice has taken into consideration official statements as State practice in a number of cases, including the *Fisheries*

[11] ICJ, *Continental Shelf case (Libyan Arab Jamahiriya v. Malta)*, Judgement, 3 June 1985, *ICJ Reports 1985*, pp. 29–30, § 27.
[12] ICJ, *North Sea Continental Shelf cases*, Judgement, 20 February 1969, *ICJ Reports 1969*, p. 3.

*Jurisdiction cases*,[13] the *Nicaragua case*,[14] and the *Gabčíkovo-Nagymaros Project case*.[15]

The International Law Commission has similarly considered verbal acts of States as contributing towards the creation of customary international law. It did so, for example, in the context of the Draft Articles on State Responsibility where it considered the concept of a "state of necessity" to be customary.[16]

The International Criminal Tribunal for the Former Yugoslavia has stated that in appraising the formation of customary rules of international humanitarian law, "reliance must primarily be placed on such elements as official pronouncements of States, military manuals and judicial decisions".[17]

The International Law Association considers that "verbal acts, and not only physical acts, of States count as State practice" and points out that "the practice of the international tribunals is replete with examples of verbal acts being treated as examples of practice. Similarly, States regularly treat this sort of act in the same way."[18]

Whether physical or verbal, relevant practice only consists of *official* practice. Hence, the physical acts of parties to armed conflicts contribute only to the

[13] ICJ, *Fisheries Jurisdiction case (United Kingdom v. Iceland)*, Joint separate opinion of Judges Forster, Bengzon, Jiménez de Aréchaga, Singh and Ruda, 25 July 1974, *ICJ Reports 1974*, p. 47; Separate opinion of Judge Dillard, 25 July 1974, *ICJ Reports 1974*, pp. 56–58; Separate opinion of Judge De Castro, 25 July 1974, *ICJ Reports 1974*, pp. 81–88; Separate opinion of Judge Waldock, 25 July 1974, *ICJ Reports 1974*, pp. 119–120; Dissenting opinion of Judge Gros, 25 July 1974, *ICJ Reports 1974*, p. 135; Dissenting opinion of Judge Petrén, 25 July 1974, *ICJ Reports 1974*, p. 161. The judges inferred the existence of customary rules from claims made to areas of the sea, without considering whether they had been enforced; see also the opinions of the same judges in the *Fisheries Jurisdiction case (Federal Republic of Germany v. Iceland)*, 25 July 1974, *ICJ Reports 1974*, p. 175.

[14] ICJ, *Case concerning Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States)*, Merits, Judgement, 27 June 1986, *ICJ Reports 1986*, p. 100, § 190. The Court found further confirmation of the validity as customary international law of the principle of the prohibition of the use of force expressed in Article 2(4) of the UN Charter in the fact that it was "frequently referred to in statements by State representatives as being not only a principle of customary international law but also a fundamental or cardinal principle of such law".

[15] ICJ, *Case concerning the Gabčíkovo-Nagymaros Project (Hungary v. Slovakia)*, Judgement, 25 September 1997, *ICJ Reports 1997*, pp. 39–46, §§ 49–58. The Court declared the customary nature of the concept of a "state of necessity", which could preclude the wrongfulness of an act not in conformity with international law. In so doing, the Court relied on materials, including many official statements, used by the ILC in drafting the corresponding article of the Draft Articles on State Responsibility.

[16] ILC, Draft Articles on State Responsibility, *Yearbook of the ILC*, 1980, Vol. II, Part 2, UN Doc. A/CN.4/SER.A/1980/Add.1 (Part 2), 1980, pp. 34–52. The ILC based its conclusions on statements of government representatives or lawyers. For another example, see *Yearbook of the ILC*, 1950, Vol. II, pp. 368–372. The Commission referred to the following categories of evidence of customary international law: international instruments, decisions of national and international courts and national legislation, as well as to diplomatic correspondence, opinions of national legal advisers and the practice of international organisations.

[17] ICTY, *Tadić case*, Case No. IT-94-AR72, Decision on the defence motion for interlocutory appeal on jurisdiction, 2 October 1995, § 99.

[18] ILA, Final Report of the Committee on the Formation of Customary (General) International Law, Statement of Principles Applicable to the Formation of General Customary International Law, Report of the Sixty-Ninth Conference, London, 2000, Principle 4 and commentary (a) thereto, pp. 725–726 (hereinafter "ILA Report").

creation of rules of customary international law as long as they represent official practice.

Abstention from certain conduct is also noted where relevant. Such omissions will be discussed in more detail below.

(ii) The practice of the executive, legislative and judicial organs of a State can contribute to the formation of customary international law. The State comprises the executive, legislative and judicial branches of government. The organs of these branches can engage the international responsibility of the State and adopt positions that affect its international relations.[19] In case of conflict between the positions of various organs of a State, the practice is considered internally inconsistent and does not contribute to the formation of customary law.

(iii) Acts do not contribute to the formation of customary international law if they are never disclosed.[20] This is so as long as such acts are not known to other States and, consequently, do not give them an opportunity, if they so wished, to react to them. In order to count, practice has to be public or communicated to some extent. This does not necessarily mean that the practice has to be published or communicated to the whole world, but at least it should be communicated to one other State or relevant international organisation, including the ICRC. States communicate with the ICRC in the context of its international mandate to assist in the implementation of international humanitarian law and the fact that it may "take cognizance of any complaints based on alleged breaches of [international humanitarian law]".[21] Hence, communications to the ICRC, while often confidential, are not purely private acts and count as State practice.

(iv) Although decisions of international courts are subsidiary sources of international law,[22] they do not constitute State practice. This is because, unlike national courts, international courts are not State organs. Their decisions have nevertheless been included because a finding by an international court that a rule of customary international law exists constitutes persuasive evidence to that effect. In addition, because of the precedential value of their decisions, international courts can also contribute to the emergence of a rule of customary international law by influencing the subsequent practice of States and international organisations.

[19] For a more elaborate reasoning and references to international case-law on this point, see ILA Report, *supra* note 18, Principle 9, pp. 728–729, referring to PCIJ, *Nottebohm case (second phase) (Liechtenstein v. Guatemala)*, Judgement, 6 April 1955, *ICJ Reports 1955*, p. 22 and the *Lotus case (France v. Turkey)*, Judgement, 7 September 1927, PCIJ Ser. A, No. 10, pp. 23, 26 and 28–29.

[20] See, e.g., ILA Report, *supra* note 18, Principle 5, p. 726.

[21] Statutes of the International Red Cross and Red Crescent Movement, *supra* note 2, Article 5(2)(c).

[22] ICJ Statute, Article 38(1)(d).

What States claim before international courts, however, is clearly a form of State practice.

(v) International organisations have international legal personality and can participate in international relations in their own capacity, independently of their member States. In this respect, their practice can contribute to the formation of customary international law.[23] Therefore, this study has included, for example, the UN Secretary-General's Bulletin on observance by United Nations forces of international humanitarian law as relevant practice, in particular because "the instructions in the Bulletin reflect the quintessential and most fundamental principles of the laws and customs of war", even though it is recognised that "the Secretary-General did not consider himself necessarily constrained by the customary international law provisions of the Conventions and Protocols as the lowest common denominator by which all national contingents would otherwise be bound".[24]

In addition, official ICRC statements, in particular appeals and memoranda on respect for international humanitarian law, have been included as relevant practice because the ICRC has international legal personality.[25] The practice of the organisation is particularly relevant in that it has received an official mandate from States "to work for the faithful application of international humanitarian law applicable in armed conflicts and ... to prepare any development thereof".[26] The view that ICRC practice counts is also adopted by the International Criminal Tribunal for the Former Yugoslavia, which has regarded the organisation's practice as an important factor in the emergence of customary rules applicable to non-international armed conflicts.[27] In addition, the official reactions which ICRC statements elicit are State practice.

(vi) The negotiation and adoption of resolutions by international organisations or conferences, together with the explanations of vote, are acts of the States involved. With a few exceptions, it is recognised that resolutions are normally not binding in themselves and therefore the value accorded to any particular resolution depends on its content, its degree of acceptance and the

[23] See, e.g., ICJ, *Case concerning Reservations to the Convention on Genocide*, Advisory Opinion, 28 May 1951, *ICJ Reports 1951*, p. 25. The Court took into account the depository practice of the UN Secretary-General.

[24] Daphna Shraga, "UN Peacekeeping Operations: Applicability of International Humanitarian Law and Responsibility for Operations-Related Damage", *American Journal of International Law*, Vol. 94, 2000, p. 408.

[25] See, e.g., ICTY, *The Prosecutor v. Blagoje Simić et al.*, Case No. IT-95–9-PT, Decision on the prosecution motion under Rule 73 for a ruling concerning the testimony of a witness, 27 July 1999, released as a public document by Order of 1 October 1999, § 46 and footnote 9.

[26] Statutes of the International Red Cross and Red Crescent Movement, *supra* note 2, Article 5(2)(c) and (g).

[27] ICTY, *Tadić case, supra* note 17, § 109.

consistency of State practice outside it.[28] The greater the support for the resolution, the more importance it is to be accorded. Information on reasons for abstentions or negative votes is therefore indicated in this study where relevant, for such votes are often based on disagreement with certain parts of the resolution and not necessarily with the resolution as a whole. Likewise, statements made by States during debates on the drafting of resolutions constitute State practice and have been included where relevant.

(vii) The practice of armed opposition groups, such as codes of conduct, commitments made to observe certain rules of international humanitarian law and other statements, does not constitute State practice as such. While such practice may contain evidence of the acceptance of certain rules in non-international armed conflicts, its legal significance is unclear and it has therefore been listed under "Other Practice" in Volume II.

Assessment of State practice

State practice has to be weighed to assess whether it is sufficiently "dense" to create a rule of customary international law.[29] To establish a rule of customary international law, State practice has to be virtually uniform, extensive and representative. Although some time will normally elapse before there is sufficient practice to satisfy these criteria, no precise amount of time is required. As stated by the International Court of Justice in the *North Sea Continental Shelf cases*:

> Although the passage of only a short period of time is not necessarily, or of itself, a bar to the formation of a new rule of customary international law on the basis of what was originally a purely conventional rule, an indispensable requirement would be that within the period in question, short though it might be, State practice, including that of States whose interests are specially affected, should have been both extensive and virtually uniform in the sense of the provision invoked; and should moreover have occurred in such a way as to show a general recognition that a rule of law or legal obligation is involved.[30]

(i) The first requirement for State practice to create a rule of customary international law is that it must be *virtually uniform*. Different States must not have engaged in substantially different conduct, some doing one thing and some another. In the *Asylum case*, the International Court of Justice was presented with a situation in which practice was not sufficiently uniform to establish a rule of customary international law with respect to the exercise of diplomatic asylum. In this respect, it stated that:

[28] The importance of these conditions was stressed by the ICJ in the *Nuclear Weapons case*, Advisory Opinion, 8 July 1996, *ICJ Reports 1996*, pp. 254–255, §§ 70–73.

[29] The expression comes from Sir Humphrey Waldock, "General Course on Public International Law", *Collected Courses of the Hague Academy of International Law*, Vol. 106, 1962, p. 44.

[30] ICJ, *North Sea Continental Shelf cases, supra* note 12, p. 43, § 74.

The facts brought to the knowledge of the Court disclose so much uncertainty and contradiction, so much fluctuation and discrepancy in the exercise of diplomatic asylum and in the official views expressed on various occasions, there has been so much inconsistency in the rapid succession of conventions on asylum, ratified by some States and rejected by others, and the practice has been so much influenced by considerations of political expediency in the various cases, that it is not possible to discern in all this any constant and uniform usage, accepted as law.[31]

In the *Fisheries case*, the International Court of Justice dealt with a similar situation with respect to a ten-mile closing line for bays in which it considered that, although such a line had

been adopted by certain States both in their national law and in their treaties and conventions, and although certain arbitral decisions have applied it as between these States, other States have adopted a different limit. Consequently, the ten-mile rule has not acquired the authority of a general rule of international law.[32]

However, the Court in this case also considered that "too much importance need not be attached to a few uncertainties or contradictions, real or apparent" in a State's practice when making an evaluation.[33] It is enough that the practice is sufficiently similar. It was on the basis of such sufficient similarity that the International Court of Justice found in the *Continental Shelf cases* that the concept of the exclusive economic zone had become part of customary law. Even though the various proclamations of such a zone were not identical, they were sufficiently similar for the Court to reach this conclusion.[34]

The jurisprudence of the International Court of Justice shows that contrary practice which, at first sight, appears to undermine the uniformity of the practice concerned, does not prevent the formation of a rule of customary international law as long as this contrary practice is condemned by other States or denied by the government itself and therefore does not represent its *official* practice. Through such condemnation or denial, the original rule is actually confirmed. The International Court of Justice dealt with such a situation in the *Nicaragua case* in which it looked at the customary nature of the principles of non-use of force and non-intervention, stating that:

It is not to be expected that in the practice of States the application of the rules in question should have been perfect, in the sense that States should have refrained, with complete consistency, from the use of force or from intervention in each other's internal affairs. The Court does not consider that, for a rule to be established as customary, the corresponding practice must be in absolute rigorous conformity with

[31] ICJ, *Asylum case (Colombia v. Peru)*, Judgement, 20 November 1950, *ICJ Reports 1950*, p. 277.
[32] ICJ, *Fisheries case (United Kingdom v. Norway)*, Judgement, 18 December 1951, *ICJ Reports 1951*, p. 131.
[33] *Ibid.* p. 138.
[34] ICJ, *Continental Shelf case (Tunisia v. Libyan Arab Jamahiriya)*, Judgement, 24 February 1982, *ICJ Reports 1982*, p. 74, § 100 and *Continental Shelf case, supra* note 11, p. 33, § 34.

the rule. In order to deduce the existence of customary rules, the Court deems it sufficient that the conduct of States should, in general, be consistent with such rules, and that instances of State conduct inconsistent with a given rule should generally have been treated as breaches of that rule, not as indications of the recognition of a new rule. If a State acts in a way prima facie incompatible with a recognized rule, but defends its conduct by appealing to exceptions or justifications contained within the rule itself, then whether or not the State's conduct is in fact justifiable on that basis, the significance of that attitude is to confirm rather than to weaken the rule.[35]

This finding is particularly relevant for a number of rules of international humanitarian law where there is overwhelming evidence of verbal State practice supporting a certain rule found alongside repeated evidence of violations of that rule. Where this has been accompanied by excuses or justifications by the actors and/or condemnations by other States, such violations are not of a nature to challenge the existence of the rule in question. States wishing to change an existing rule of customary international law have to do so through their *official* practice and claim to be acting *as of right*.

(ii) The second requirement for a rule of general customary international law to come into existence is that the State practice concerned must be both *extensive and representative*. It does not, however, need to be universal; a "general" practice suffices.[36] No precise number or percentage of States is required. One reason why it is impossible to put a precise figure on the extent of participation required is that the criterion is in a sense *qualitative* rather than quantitative. That is to say, it is not simply a question of how many States participate in the practice, but also *which* States.[37] In the words of the International Court of Justice in the *North Sea Continental Shelf cases*, the practice must "include that of States whose interests are specially affected".[38]

This consideration has two implications: (1) if all "specially affected States" are represented, it is not essential for a majority of States to have actively participated, but they must have at least acquiesced in the practice of "specially affected States"; (2) if "specially affected States" do not accept the practice, it cannot mature into a rule of customary international law, even though unanimity is not required as explained.[39] Who is "specially affected" will vary according to circumstances. Concerning the question of the legality of the use of blinding laser weapons, for example, "specially affected States" include those identified as having been in the process of developing such weapons. In the area of humanitarian aid, States whose population is in need of such aid or States which

[35] ICJ, *Case concerning Military and Paramilitary Activities in and against Nicaragua, supra* note 14, p. 98, § 186.
[36] ILA Report, *supra* note 18, Principle 14, p. 734.
[37] ILA Report, *supra* note 18, commentary (d) and (e) to Principle 14, pp. 736–737.
[38] ICJ, *North Sea Continental Shelf cases, supra* note 12, p. 43, § 74.
[39] ILA Report, *supra* note 18, commentary (e) to Principle 14, p. 737.

frequently provide such aid are to be considered "specially affected". With respect to any rule of international humanitarian law, countries that participated in an armed conflict are "specially affected" when their practice examined for a certain rule was relevant to that armed conflict. Notwithstanding the fact that there are specially affected States in certain areas of international humanitarian law, it is also true that all States have a legal interest in requiring respect for international humanitarian law by other States, even if they are not a party to the conflict (see the commentary to Rule 144). As a result, the practice of all States must be considered, whether or not they are "specially affected" in the strict sense of that term.

This study has taken no view as to whether it is legally possible to be a "persistent objector" in relation to customary rules of international humanitarian law. Apart from the fact that many authorities believe that this is not possible in the case of rules of *jus cogens*, there are also authorities that doubt the continued validity of this doctrine.[40] If one accepts that it is legally possible to be a persistent objector, the State concerned must have objected to the emergence of a new norm during its formation and continue to object afterwards; it is not possible to be a "subsequent objector".

(iii) The third requirement is related to the time necessary to form a rule of customary international law through the adoption of virtually uniform, extensive and representative practice. As indicated above, while some time will normally elapse before there is sufficient practice to satisfy these criteria, there is no specific time requirement. It is all a question of accumulating a practice of sufficient density, in terms of uniformity, extent and representativeness.[41]

### *Opinio juris*

The second requirement for the existence of a rule of customary international law, *opinio juris*, relates to the need for the practice to be carried out *as of right*. The particular form in which the practice and this legal conviction needs to be expressed may well differ depending on whether the rule involved contains a prohibition, an obligation or merely a right to behave in a certain manner.

Practice establishing the existence of a prohibition, for example, the rule that it is prohibited to declare that no quarter will be given (see Rule 46), includes not only statements that such behaviour is prohibited and condemnations of instances where the prohibited behaviour did take place, possibly combined with justifications or excuses from the criticised State, but also physical practice abstaining from the prohibited behaviour. If the practice largely consists of abstention combined with silence, there will need to be some indication

[40] For an in-depth discussion of this issue, see Maurice H. Mendelson, "The Formation of Customary International Law", *Collected Courses of the Hague Academy of International Law*, Vol. 272, 1998, pp. 227–244.

[41] ILA Report, *supra* note 18, commentary (b) to Principle 12, p. 731.

that the abstention is based on a legitimate expectation to that effect from the international community.

Practice establishing the existence of an obligation, for example, the rule that the wounded and sick must be cared for (see Rule 110), can be found primarily in behaviour in conformity with such a requirement. The fact that it is a legal requirement, rather than one reflecting courtesy or mere comity, can be found by either an expression of the need for such behaviour, or by criticism by other States in the absence of such behaviour. It may also be that, following criticism by other States, the criticised State will explain its abstinence by seeking justification within the rule.

Practice establishing the existence of a rule that allows a certain conduct, for example, the rule that States have the right to vest universal jurisdiction in their courts over war crimes (see Rule 157), can be found in acts that recognise the right to behave in such a way without actually requiring such behaviour. This will typically take the form of States undertaking such action, together with the absence of protests by other States.

During work on the study it proved very difficult and largely theoretical to strictly separate elements of practice and legal conviction. More often than not, one and the same act reflects practice and legal conviction. As the International Law Association has pointed out, the International Court of Justice "has not in fact said in so many words that just because there are (allegedly) distinct elements in customary law the same conduct cannot manifest both. It is in fact often difficult or even impossible to disentangle the two elements."[42] This is particularly so because verbal acts count as State practice and often reflect the legal conviction of the State involved at the same time.

When there is sufficiently dense practice, an *opinio juris* is generally contained within that practice and, as a result, it is not usually necessary to demonstrate separately the existence of an *opinio juris. Opinio juris* plays an important role, however, in certain situations where the practice is ambiguous, in order to decide whether or not that practice counts towards the formation of custom. This is often the case with omissions, when States omit to act or react but it is not clear why. An example of such a situation was analysed by the Permanent Court of International Justice in the *Lotus case* in which France disputed Turkey's right to prosecute for a collision on the high seas. France argued that the absence of such prosecutions proved a prohibition under customary international law to prosecute, except by the flag State of the ship on board which the wrongful act took place. The Court, however, disagreed because it was not clear whether other States had abstained from prosecuting because they thought they had no right to do so or because of some other reason, for example, lack of interest or belief that a court of the flag State is a more

[42] ILA Report, *supra* note 18, § 10(c), p. 718. For an in-depth analysis, see Peter Haggenmacher, "La doctrine des deux éléments du droit coutumier dans la pratique de la Cour internationale", *Revue générale de droit international public*, Vol. 90, 1986, p. 5.

convenient forum. The Court stated there was no evidence of any "conscious[ness] of having a duty to abstain".[43]

Another situation of ambiguity was analysed by the International Court of Justice in the *North Sea Continental Shelf cases* in which Denmark and the Netherlands argued that a customary rule existed requiring a continental shelf to be delimited on the basis of the equidistance principle, *inter alia*, because a number of States had done so. The Court considered that the basis of the action of those States remained speculative and that no inference could be drawn that they believed themselves to be applying a rule of customary international law.[44] In other words, the States that had delimited their continental shelf on the basis of the equidistance principle had behaved in accordance with that principle but nothing showed that they considered themselves bound by it. It is basically in such cases, where practice is ambiguous, that both the International Court of Justice and its predecessor, the Permanent Court of International Justice, have looked in particular at whether they could separately establish the existence of an *opinio juris* that would indicate that the ambiguous practice in fact counted towards the establishment of customary international law.[45]

In the area of international humanitarian law, where many rules require abstention from certain conduct, omissions pose a particular problem in the assessment of *opinio juris* because it has to be proved that the abstention is not a coincidence but based on a legitimate expectation. When such a requirement of abstention is indicated in statements and documents, the existence of a *legal* requirement to abstain from the conduct in question can usually be proved. In addition, such abstentions may also occur after the behaviour in question created a certain controversy, which also helps to prove that the abstention was not coincidental, although it is not always easy to conclude that the abstention occurred because of a sense of legal obligation. A particular example of this problem is abstention from certain conduct in non-international armed conflicts when a clear rule to abstain from such conduct can only be found in treaty law applicable to international armed conflicts. This is, for example, the case for abstention from the use of certain weapons in non-international armed conflicts, when the prohibition of the use of these weapons was agreed to by treaty a long time ago when rules in relation to non-international armed conflicts were not as readily thought about or accepted as they are now. Abstention from such use or of prohibited behaviour is not likely to lead other States to comment, and this is particularly the case in relation to non-international armed conflicts in which other States are not directly affected. The process of claim and counterclaim does not produce as much clarity with respect to non-international armed conflicts as it does with respect to international armed conflicts because in the latter case, two or more States are directly affected

[43] PCIJ, *Lotus case, supra* note 19, p. 28.
[44] ICJ, *North Sea Continental Shelf cases, supra* note 12, pp. 43–44, §§ 76–77.
[45] ILA Report, *supra* note 18, Principle 17(iv) and commentary.

by each other's behaviour, while in the former case, usually only one State is directly affected.

It appears that international courts and tribunals on occasion conclude that a rule of customary international law exists when that rule is a desirable one for international peace and security or for the protection of the human person, provided that there is no important contrary *opinio juris*.[46] Examples of such conclusions are the finding by the International Military Tribunal at Nuremberg that the Hague Conventions of 1907 had hardened into customary law,[47] and the finding by the International Court of Justice in the *Nicaragua case* that the rule of non-intervention in the internal and external affairs of other States was part of customary international law.[48] However, when there was clear evidence of contrary *opinio juris* by a number of States, including specially affected ones, international case-law has held that the existence of a rule of customary international was not proven, for example, the advisory opinion of the International Court of Justice in the *Nuclear Weapons case* on the issue of whether the use of nuclear weapons was illegal,[49] and the ruling of the sole arbitrator in the *Texaco v. Libya case* on the issue of a possible change in the law relating to compensation for expropriation.[50]

This aspect of the assessment of customary law is particularly relevant for international humanitarian law, given that most of this law seeks to regulate behaviour for humanitarian reasons. In some instances, it is not yet possible to find a rule of customary international law even though there is a clear majority practice in favour of the rule and such a rule is very desirable.

### *Impact of treaty law*

Treaties are also relevant in determining the existence of customary international law because they help assess how States view certain rules of international law. Hence, the ratification, interpretation and implementation of a

[46] For an analysis of this phenomenon in the behaviour of international courts, see Frederic L. Kirgis, "Custom on a Sliding Scale", *American Journal of International Law*, Vol. 81, 1987, p. 146.

[47] International Military Tribunal at Nuremberg, *Case of the Major War Criminals*, Judgement, 1 October 1946, *Official Documents*, Vol. I, pp. 253–254.

[48] ICJ, *Case concerning Military and Paramilitary Activities in and against Nicaragua, supra* note 14, pp. 106–110, §§ 202–209.

[49] ICJ, *Nuclear Weapons case, supra* note 28, p. 255, § 73. This finding of the ICJ was in relation to an analysis of whether there was sufficiently consistent *opinio juris*. In this context, the Court found, with respect to UN General Assembly resolutions which stated that the use of nuclear weapons was illegal and which were adopted by a large majority of States, that they did not create sufficient *opinio juris* to establish a rule of customary law because of the large number of negative votes and abstentions.

[50] *Texaco Overseas Petroleum Company and California Asiatic Oil Company v. Libyan Arab Republic*, Arbitral Award, 19 January 1977, §§ 80–91, reprinted in *International Legal Materials*, Vol. 17, 1978, pp. 27–31. The sole arbitrator found that there was insufficient support by one group of specially affected States for the Charter of Economic Rights and Duties of States and for the Declaration on the Establishment of a New International Economic Order.

treaty, including reservations and statements of interpretation made upon ratification, are included in the study. In the *North Sea Continental Shelf cases*, the International Court of Justice clearly considered the degree of ratification of a treaty to be relevant to the assessment of customary law. In that case, the Court stated that "the number of ratifications and accessions so far secured [39] is, though respectable, hardly sufficient", especially in a context where practice outside the treaty was contradictory.[51] Conversely, in the *Nicaragua case*, the Court placed a great deal of weight, when assessing the customary status of the non-intervention rule, on the fact that the UN Charter was almost universally ratified and that relevant UN General Assembly resolutions had been widely approved, in particular Resolution 2625 (XXV) on friendly relations between States, which was adopted without a vote.[52] It can even be the case that a treaty provision reflects customary law, even though the treaty is not yet in force, provided that there is sufficiently similar practice, including by specially affected States, so that there remains little likelihood of significant opposition to the rule in question.[53]

In practice, the drafting of treaty norms helps to focus world legal opinion and has an undeniable influence on the subsequent behaviour and legal conviction of States. This reality was recognised by the International Court of Justice in the *Continental Shelf case*:

> It is of course axiomatic that the material of customary international law is to be looked for primarily in the actual practice and *opinio juris* of States, even though multilateral conventions may have an important role to play in recording and defining rules deriving from custom, or indeed in developing them.[54]

The Court thus recognised that treaties may codify pre-existing customary international law but may also lay the foundation for the development of new customs based on the norms contained in those treaties. The Court has even gone so far as to state that "it might be that ... a very widespread and representative participation in [a] convention might suffice of itself, provided it included that of States whose interests were specially affected".[55]

The International Law Association has summarised this case-law, stating that a (multilateral) treaty may thus interact in four different ways with custom: it can provide evidence of existing custom; it can provide the inspiration or model for the adoption of new custom through State practice; it can assist in the so-called "crystallisation" of emerging custom; and it can even give rise to new custom of "its own impact" if the rule concerned is of a fundamentally

[51] ICJ, *North Sea Continental Shelf cases, supra* note 12, p. 42, § 73.
[52] ICJ, *Case concerning Military and Paramilitary Activities in and against Nicaragua, supra* note 14, pp. 99–100, § 188.
[53] ICJ, *Continental Shelf case, supra* note 11, p. 33, § 34. The number of claims to an exclusive economic zone had risen to 56, which included several specially affected States.
[54] ICJ, *Continental Shelf case, supra* note 11, pp. 29–30, § 27.
[55] ICJ, *North Sea Continental Shelf cases, supra* note 12, p. 42, § 73.

norm-creating character and is widely adopted by States with a view to creating a new general legal obligation. There can be no presumption that any of these interactions has taken place and in each case it is a matter of examining the evidence.[56]

This study takes the cautious approach that widespread ratification is only an indication and has to be assessed in relation to other elements of practice, in particular the practice of States not party to the treaty in question. Consistent practice of States not party has been considered as important positive evidence. Contrary practice of States not party, however, has been considered as important negative evidence. The practice of States party to a treaty vis-à-vis States not party is also particularly relevant.

This study has not, however, limited itself to the practice of States not party to the relevant treaties of international humanitarian law. To limit the study to a consideration of the practice of only the 30-odd States that have not ratified the Additional Protocols, for example, would not comply with the requirement that customary international law be based on widespread and representative practice. Therefore, the assessment of the existence of customary law takes into account the fact that, at the time of writing, Additional Protocol I has been ratified by 162 States and Additional Protocol II by 157 States. Similarly, the assessment of customary law also takes into account the fact that the Geneva Conventions have been ratified by 192 States and this is not repeated in the commentaries.

Lastly, the most important judicial decisions on the customary nature of humanitarian law provisions are not repeated in the commentaries which cite the rules held to be customary. This applies in particular to the finding by the International Military Tribunal at Nuremberg that the 1907 Hague Regulations "undoubtedly represented an advance over existing international law at the time of their adoption ... but by 1939 these rules laid down in the Convention were recognized by all civilized nations, and were regarded as being declaratory of the laws and customs of war".[57] It also applies to the *Nicaragua case*, in which the International Court of Justice held that common Article 3 of the Geneva Conventions reflected "elementary considerations of humanity" constituting a "minimum yardstick" applicable to all armed conflicts.[58] It further applies to the finding of the International Court of Justice in the *Nuclear Weapons case* that the great majority of the provisions of the 1949 Geneva Conventions represent customary international law.[59] In the same vein, it is important to stress, though it is not repeated in the commentaries, that with regard to the Statute of the International Criminal Court, there was a "general

[56] ILA Report, *supra* note 18, Principles 20–21, 24, 26 and 27, pp. 754–765.
[57] International Military Tribunal at Nuremberg, *Case of the Major War Criminals, supra* note 47.
[58] ICJ, *Case concerning Military and Paramilitary Activities in and against Nicaragua, supra* note 14, p. 114, § 218.
[59] ICJ, *Nuclear Weapons case, supra* note 28, pp. 257–258, §§ 79 and 82.

agreement that the definitions of crimes in the ICC Statute were to reflect existing customary international law, and not to create new law".[60]

## Organisation of the study

To determine the best way of fulfilling the mandate entrusted to it, the ICRC consulted a group of academic experts in international humanitarian law who formed the Steering Committee of the study. The Steering Committee consisted of Professors Georges Abi-Saab, Salah El-Din Amer, Ove Bring, Eric David, John Dugard, Florentino Feliciano, Horst Fischer, Françoise Hampson, Theodor Meron, Djamchid Momtaz, Milan ahović and Raúl Emilio Vinuesa. The Steering Committee adopted a Plan of Action in June 1996 and research started in October 1996. Pursuant to the Plan of Action, research was conducted using both national and international sources reflecting State practice. Research into these sources focused on the six parts of the study as identified in the Plan of Action:

- Principle of distinction
- Specifically protected persons and objects
- Specific methods of warfare
- Weapons
- Treatment of civilians and persons *hors de combat*
- Implementation

The measure of access to national and international sources largely explains the research method adopted.

### *Research in national sources of practice*

Since national sources are more easily accessible from within a country, it was decided to seek the cooperation of national researchers. To this end, nearly 50 countries were selected (9 in Africa, 15 in Asia, 11 in Europe, 11 in the Americas and 1 in Australasia) and in each a researcher or group of researchers was identified to report on State practice (see Annex I). The Steering Committee selected the countries on the basis of geographic representation, as well as recent experience of different kinds of armed conflicts in which a variety of methods of warfare had been used. The result was a series of reports on State practice. Significant practice of other countries was identified through research into international sources and ICRC archives (see *infra*).

The sources of State practice collected by the national researchers include military manuals, national legislation, national case-law, instructions to armed

[60] Philippe Kirsch, "Foreword", in Knut Dörmann, *Elements of War Crimes under the Rome Statute of the International Criminal Court: Sources and Commentary, supra* note 1, p. xiii; see also Report of the Preparatory Committee on the Establishment of an International Criminal Court, Vol. I, Proceedings of the Preparatory Committee during March–April and August 1996, *UN General Assembly Official Records*, UN Doc. A/51/22, 13 September 1996, § 54.

and security forces, military communiqués during war, diplomatic protests, opinions of official legal advisers, comments by governments on draft treaties, executive decisions and regulations, pleadings before international tribunals, statements in international organisations and at international conferences and government positions taken with respect to resolutions of international organisations.

The military manuals and national legislation of countries not covered by the reports on State practice were also researched and collected. This work was facilitated by the network of ICRC delegations around the world and the extensive collection of national legislation gathered by the ICRC Advisory Service on International Humanitarian Law. The purpose of the additional research was also to make sure that the study would be as up-to-date as possible and would, to the extent possible, take into account developments up to 31 December 2002. In some cases, it has been possible to include more recent practice.

*Research in international sources of practice*

State practice gleaned from international sources was collected by six teams, each of which concentrated on one part of the study. These teams consisted of the following persons:

Part I. Principle of distinction
*Rapporteur: Georges Abi-Saab*
*Researcher: Jean-François Quéguiner*
Part II. Specifically protected persons and objects
*Rapporteur: Horst Fischer*
*Researchers: Gregor Schotten and Heike Spieker*
Part III. Specific methods of warfare
*Rapporteur: Theodor Meron*
*Researcher: Richard Desgagné*
Part IV. Weapons
*Rapporteur: Ove Bring*
*Researcher: Gustaf Lind*
Part V. Treatment of civilians and persons hors de combat
*Rapporteur: Françoise Hampson*
*Researcher: Camille Giffard*
Part VI. Implementation
*Rapporteur: Eric David*
*Researcher: Richard Desgagné*

These teams researched practice in the framework of the United Nations and of other international organisations, in particular the African Union (formerly the Organization of African Unity), Council of Europe, Gulf Cooperation Council, European Union, League of Arab States, Organization of American

States, Organization of the Islamic Conference and Organization for Security and Cooperation in Europe. The practice of the Commonwealth of Independent States, Inter-Parliamentary Union and Non-Aligned Movement was also researched. Access to the practice of these organisations was facilitated by the ICRC delegations which maintain contacts with them.

State practice at the international level is reflected in a variety of sources, including in resolutions adopted in the framework of the United Nations, in particular by the Security Council, General Assembly and Commission on Human Rights, ad hoc investigations conducted by the United Nations, the work of the International Law Commission and comments it elicited from governments, the work of the committees of the UN General Assembly, reports of the UN Secretary-General, thematic and country-specific procedures of the UN Commission on Human Rights, reporting procedures before the Human Rights Committee, the Committee against Torture, the Committee on the Elimination of Discrimination Against Women and the Committee on the Rights of the Child, *travaux préparatoires* of treaties, and State submissions to international and regional courts.

International case-law was also collected to the extent that it provides evidence of the existence of rules of customary international law.

### *Research in ICRC archives*

To complement the research into national and international sources, the ICRC looked into its own archives relating to nearly 40 recent armed conflicts, some 20 of which occurred in Africa, 8 in Asia, 8 in Europe and 2 in the Americas (see Annex II). In general, these conflicts were selected so that countries and conflicts not yet dealt with by a report on State practice would also be covered.

The result of this three-pronged approach – that is, research into national, international and ICRC sources – is that practice from all parts of the world is cited. In the nature of things, however, this research cannot purport to be complete. Research for the study focused in particular on practice from the last 30 years to ensure that the result would be a restatement of contemporary customary international law, but, where still relevant, older practice has also been cited.

### *Consolidation of research results*

Upon completion of the research, all practice gathered was summarised and consolidated into separate parts covering the different areas of the study. This work was carried out by the six international research teams for the part which concerned them. The chapters containing this consolidated practice were

subsequently edited, supplemented and updated by a group of ICRC researchers, and are published in Volume II, "Practice". The reason for publishing such voluminous chapters is twofold. First, those consulting the study should be able to verify the basis in State practice for each rule of customary international law. Each rule in Volume I refers to the chapter and section in Volume II where the practice on which that rule is based can be found. Secondly, it was considered useful to publish the wealth of information that has been compiled. Many practitioners and scholars will thus be able to use the practice gathered for their own professional purposes.

### *Expert consultations*

In a first round of consultations, the ICRC invited the international research teams to produce an "executive summary" containing a preliminary assessment of customary international humanitarian law on the basis of the practice collected. These executive summaries were discussed within the Steering Committee at three meetings in Geneva (see Annex III). On the basis of this first round of consultations, the "executive summaries" were updated, and during a second round of consultations, they were submitted to a group of academic and governmental experts from all the regions of the world invited in their personal capacity by the ICRC to attend two meetings with the Steering Committee (see Annex III). During these two meetings in Geneva, the experts helped to evaluate the practice collected and indicated particular practice that had been missed.

### *Writing of the report*

The assessment by the Steering Committee, as reviewed by the group of academic and governmental experts, served as a basis for the writing of the final report. The authors of the study re-examined the practice, reassessed the existence of custom, reviewed the formulation and the order of the rules, and drafted the commentaries. The draft texts were submitted to the ICRC Legal Division, whose members provided extremely helpful comments and insights. Moreover, each Part was reviewed by an additional reader: Maurice Mendelson for the introductory part on the assessment of customary international law, Knut Dörmann for Part I, Theodor Meron for Part II, Horst Fischer for Part III, the Mines and Arms Unit of the ICRC led by Peter Herby for Part IV, William Fenrick for Part V and Antonio Cassese for Part VI. On the basis of their comments and those of the ICRC Legal Division, a second draft was prepared, which was submitted for written consultation to the Steering Committee, the group of academic and governmental experts and the ICRC Legal Division. The text was further updated and finalised taking into account the comments received.

This study was initiated under the supervision of Louise Doswald-Beck, then Deputy Head and later Head of the ICRC Legal Division. Jean-Marie Henckaerts has been responsible for the overall management of the study and drafted Parts I, II, III and V of Volume I. Louise Doswald-Beck drafted Parts IV and VI, as well as Chapters 14 and 32, of Volume I. The introductory parts were drafted by both of them. In drafting the text they received important contributions from Carolin Alvermann, Knut Dörmann and Baptiste Rolle. The authors, jointly, bear the sole responsibility for the content of the study.

## Annex I. National research

On the basis of geographical representation and experience of armed conflict, the following States were selected for an in-depth study of national practice on international humanitarian law by a local expert. Significant practice of other States was found in international sources and the ICRC's archives.

**Africa**
Algeria, Angola, Botswana, Egypt, Ethiopia, Nigeria, Rwanda, South Africa, Zimbabwe.

**Asia**
China, India, Indonesia, Iran, Iraq, Israel, Japan, Jordan, Republic of Korea, Kuwait, Lebanon, Malaysia, Pakistan, Philippines, Syria.

**Australasia**
Australia.

**Europe**
Belgium, Bosnia and Herzegovina, Croatia, France, Germany, Italy, Netherlands, Russian Federation, Spain, United Kingdom, Yugoslavia.

**Americas**
Argentina, Brazil, Canada, Chile, Colombia, Cuba, El Salvador, Nicaragua, Peru, United States of America, Uruguay.

## Annex II. Research in the ICRC archives

The conflicts for which research was carried out in the ICRC archives were chosen in order to include States and territories not covered by a report on State practice.

**Africa**
Angola, Burundi, Chad, Chad–Libya, Democratic Republic of the Congo, Djibouti, Eritrea–Yemen, Ethiopia (1973–1994), Liberia, Mozambique, Namibia,

Nigeria–Cameroon, Rwanda, Senegal, Senegal–Mauritania, Sierra Leone, Somalia, Somalia–Ethiopia, Sudan, Uganda, Western Sahara.

**Asia**
Afghanistan, Cambodia, India (Jammu and Kashmir), Papua New Guinea, Sri Lanka, Tajikistan, Yemen, Yemen–Eritrea (also under Africa).

**Europe**
Armenia–Azerbaijan (Nagorno-Karabakh), Cyprus, Former Yugoslavia (conflict in Yugoslavia (1991–1992), conflict in Bosnia and Herzegovina (1992–1996), conflict in Croatia (Krajinas) (1992–1995)), Georgia (Abkhazia), Russian Federation (Chechnya), Turkey.

**Americas**
Guatemala, Mexico.

## Annex III. Expert consultations

### 1. Consultation with the Steering Committee (1998)

*First meeting, 28 April–1 May 1998*: Specific methods of warfare; Weapons.

*Second meeting, 16–18 August 1998*: Principle of distinction; Specifically protected persons and objects.

*Third meeting, 14–17 October 1998*: Treatment of civilians and persons *hors de combat*; Implementation.

The Steering Committee consisted of Professors Georges Abi-Saab, Salah El-Din Amer, Ove Bring, Eric David, John Dugard, Florentino Feliciano, Horst Fischer, Françoise Hampson, Theodor Meron, Djamchid Momtaz, Milan ahović and Raúl Emilio Vinuesa.

### 2. Consultation with academic and governmental experts (1999)

*First meeting, 4–8 January 1999*: Specific methods of warfare; Weapons; Specifically protected persons and objects.

*Second meeting, 1–5 May 1999*: Principle of distinction; Treatment of civilians and persons *hors de combat*; Implementation.

The following academic and governmental experts were invited by the ICRC, in their personal capacity, to participate in this consultation:

Abdallah Ad-Douri (Iraq), Paul Berman (United Kingdom), Sadi Çaycý (Turkey), Michael Cowling (South Africa), Edward Cummings (United States of America), Antonio de Icaza (Mexico), Yoram Dinstein (Israel), Jean-Michel Favre (France), William Fenrick (Canada), Dieter Fleck (Germany), Juan Carlos Gómez Ramírez (Colombia), Jamshed A. Hamid (Pakistan), Arturo Hernández-Basave (Mexico), Ibrahim Idriss (Ethiopia), Hassan Kassem Jouni (Lebanon), Kenneth Keith (New Zealand), Githu Muigai (Kenya), Rein Müllerson (Estonia), Bara Niang (Senegal), Mohamed Olwan (Jordan), Raul C. Pangalangan (Philippines),

Stelios Perrakis (Greece), Paulo Sergio Pinheiro (Brazil), Arpád Prandler (Hungary), Pemmaraju Sreenivasa Rao (India), Camilo Reyes Rodríguez (Colombia), Itse E. Sagay (Nigeria), Harold Sandoval (Colombia), Somboon Sangianbut (Thailand), Marat A. Sarsembayev (Kazakhstan), Muhammad Aziz Shukri (Syria), Parlaungan Sihombing (Indonesia), Geoffrey James Skillen (Australia), Guoshun Sun (China), Bakhtyar Tuzmukhamedov (Russia) and Karol Wolfke (Poland).

**3. Written consultation with the academic and governmental experts (2002–2004)**

The experts listed above were invited to comment on two drafts, and a number of them provided written comments which were taken into account.

## Authors' Note

This volume catalogues rules of customary international humanitarian law. As such, only the black letter rules are identified as part of customary international law, and not the commentaries to the rules. The commentaries may, however, contain useful clarifications with respect to the application of the black letter rules.

The practice on which these rules are based can be found in Volume II of this study. Each chapter in Volume I corresponds to a chapter in Volume II, and each rule in Volume I corresponds to a section within a chapter in Volume II.

The present study examines first and foremost the rules of customary international law that have been formed by State practice. References are therefore for the most part to State practice, and not to academic writings. Most of these references are cited in Volume II and the footnotes therefore refer to Volume II.

The qualification of conflicts in this study is based on the practice from which it is taken and does not necessarily reflect the opinion of the authors or that of the International Committee of the Red Cross.

## ABBREVIATIONS

| | |
|---|---|
| CCW | Convention on Prohibitions or Restrictions on the Use of Certain Conventional Weapons which may be deemed to be Excessively Injurious or to have Indiscriminate Effects (1980) |
| CDDH | Diplomatic Conference on the Reaffirmation and Development of International Humanitarian Law Applicable in Armed Conflicts (Geneva, 1974–1977) |
| CIS | Commonwealth of Independent States |
| CSCE | Conference on Security and Cooperation in Europe |
| ECOSOC | United Nations Economic and Social Council |
| ENMOD Convention | Convention on the Prohibition of Military or Any Other Hostile Use of Environmental Modification Techniques (1976) |
| EC | European Community |
| EU | European Union |
| FMLN | Farabundo Martí para la Liberación Nacional (Farabundo Martí National Liberation Front, El Salvador) |
| FRY | Federal Republic of Yugoslavia |
| ICC | International Criminal Court |
| ICJ | International Court of Justice |
| ICJ Reports | International Court of Justice, Reports of Judgments, Advisory Opinions and Orders |
| ICRC | International Committee of the Red Cross |
| ICTR | International Criminal Tribunal for Rwanda |
| ICTY | International Criminal Tribunal for the Former Yugoslavia |
| IHL | International humanitarian law |
| ILA | International Law Association |
| ILC | International Law Commission |
| IMT | International Military Tribunal |
| LTTE | Liberation Tigers of Tamil Eelam (Sri Lanka) |
| NATO | North Atlantic Treaty Organisation |
| OAS | Organization of American States |

| | |
|---|---|
| OAU | Organization of African Unity (now African Union) |
| OIC | Organization of the Islamic Conference |
| OSCE | Organization for Security and Cooperation in Europe |
| PCIJ | Permanent Court of International Justice |
| POW | Prisoner of war |
| SFRY | Socialist Federal Republic of Yugoslavia |
| SPLM/A | Sudan People's Liberation Movement/Army |
| UN | United Nations |
| UNESCO | United Nations Education, Scientific and Cultural Organization |
| UNHCR | United Nations High Commissioner for Refugees |
| UN Sub-Commission on Human Rights | United Nations Sub-Commission on the Promotion and Protection of Human Rights (formerly the Sub-Commission on Prevention of Discrimination and Protection of Minorities) |
| USSR | Union of Soviet Socialist Republics |
| UK | United Kingdom of Great Britain and Northern Ireland |
| US | United States of America |
| YPA | Yugoslav People's Army |

PART I

# THE PRINCIPLE OF DISTINCTION

CHAPTER 1

# DISTINCTION BETWEEN CIVILIANS AND COMBATANTS

**Rule 1. The parties to the conflict must at all times distinguish between civilians and combatants. Attacks may only be directed against combatants. Attacks must not be directed against civilians.**

*Practice*

Volume II, Chapter 1, Section A.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts. The three components of this rule are interrelated and the practice pertaining to each of them reinforces the validity of the others. The term "combatant" in this rule is used in its generic meaning, indicating persons who do not enjoy the protection against attack accorded to civilians, but does not imply a right to combatant status or prisoner-of-war status (see Chapter 33). This rule has to be read in conjunction with the prohibition to attack persons recognised to be *hors de combat* (see Rule 47) and with the rule that civilians are protected against attack unless and for such time as they take a direct part in hostilities (see Rule 6). Belligerent reprisals against civilians are discussed in Chapter 41.

*International armed conflicts*

The principle of distinction between civilians and combatants was first set forth in the St. Petersburg Declaration, which states that "the only legitimate object which States should endeavour to accomplish during war is to weaken the military forces of the enemy".[1] The Hague Regulations do not as such specify that a distinction must be made between civilians and combatants, but Article 25, which prohibits "the attack or bombardment, by whatever means, of towns, villages, dwellings, or buildings which are undefended", is based on this principle.[2] The principle of distinction is now codified in Articles 48, 51(2)

[1] St. Petersburg Declaration, preamble (cited in Vol. II, Ch. 1, § 83).
[2] Hague Regulations, Article 25.

and 52(2) of Additional Protocol I, to which no reservations have been made.[3] According to Additional Protocol I, "attacks" means "acts of violence against the adversary, whether in offence or in defence".[4]

At the Diplomatic Conference leading to the adoption of the Additional Protocols, Mexico stated that Articles 51 and 52 of Additional Protocol I were so essential that they "cannot be the subject of any reservations whatsoever since these would be inconsistent with the aim and purpose of Protocol I and undermine its basis".[5] Also at the Diplomatic Conference, the United Kingdom stated that Article 51(2) was a "valuable reaffirmation" of an existing rule of customary international law.[6]

The prohibition on directing attacks against civilians is also laid down in Protocol II, Amended Protocol II and Protocol III to the Convention on Certain Conventional Weapons and in the Ottawa Convention banning anti-personnel landmines.[7] In addition, under the Statute of the International Criminal Court, "intentionally directing attacks against the civilian population as such or against individual civilians not taking direct part in hostilities" constitutes a war crime in international armed conflicts.[8]

Numerous military manuals, including those of States not, or not at the time, party to Additional Protocol I, stipulate that a distinction must be made between civilians and combatants and that it is prohibited to direct attacks against civilians.[9] Sweden's IHL Manual identifies the principle of distinction as laid down in Article 48 of Additional Protocol I as a rule of customary international law.[10] In addition, there are numerous examples of national legislation which make it a criminal offence to direct attacks against civilians, including the legislation of States not, or not at the time, party to Additional Protocol I.[11]

In the *Kassem case* in 1969, Israel's Military Court at Ramallah recognised the immunity of civilians from direct attack as one of the basic rules of international humanitarian law.[12] There are, moreover, many official statements which invoke the rule, including by States not, or not at the time, party to

[3] Additional Protocol I, Article 48 (adopted by consensus) (cited in Vol. II, Ch. 1, § 1), Article 51(2) (adopted by 77 votes in favour, one against and 16 abstentions) (*ibid.*, § 154) and Article 52(2) (adopted by 79 votes in favour, none against and 7 abstentions) (*ibid.*, § 85).

[4] Additional Protocol I, Article 49.

[5] Mexico, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (cited in Vol. II, Ch. 1, §§ 146, 307, 536 and 800).

[6] United Kingdom, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, §§ 319, 537 and 803).

[7] Protocol II to the CCW, Article 3(2) (*ibid.*, § 157); Amended Protocol II to the CCW, Article 3(7) (*ibid.*, § 157); Protocol III to the CCW, Article 2(1) (*ibid.*, § 158); Ottawa Convention, preamble (*ibid.*, § 3).

[8] ICC Statute, Article 8(2)(b)(i) (*ibid.*, § 160).

[9] See military manuals (*ibid.*, §§ 10–34 and 173–216), in particular the manuals of France (*ibid.*, §§ 21 and 188), Indonesia (*ibid.*, § 192), Israel (*ibid.*, §§ 25 and 193–194), Kenya (*ibid.*, § 197), United Kingdom (*ibid.*, §§ 212–213) and United States (*ibid.*, §§ 33–34 and 214–215).

[10] Sweden, *IHL Manual* (*ibid.*, § 29).

[11] See legislation (*ibid.*, §§ 217–269), in particular the legislation of Azerbaijan (*ibid.*, §§ 221–222), Indonesia (*ibid.*, § 243) and Italy (*ibid.*, § 245).

[12] Israel, Military Court at Ramallah, *Kassem case* (*ibid.*, § 271).

Additional Protocol I.[13] The rule has also been invoked by parties to Additional Protocol I against non-parties.[14]

In their pleadings before the International Court of Justice in the *Nuclear Weapons case*, many States invoked the principle of distinction.[15] In its advisory opinion in the *Nuclear Weapons case*, the Court stated that the principle of distinction was one of the "cardinal principles" of international humanitarian law and one of the "intransgressible principles of international customary law".[16]

When the ICRC appealed to the parties to the conflict in the Middle East in October 1973, i.e., before the adoption of Additional Protocol I, to respect the distinction between combatants and civilians, the States concerned (Egypt, Iraq, Israel and Syria) replied favourably.[17]

### *Non-international armed conflicts*

Article 13(2) of Additional Protocol II prohibits making the civilian population as such, as well as individual civilians, the object of attack.[18] The prohibition on directing attacks against civilians is also contained in Amended Protocol II to the Convention on Certain Conventional Weapons.[19] It is also set forth in Protocol III to the Convention on Certain Conventional Weapons, which has been made applicable in non-international armed conflicts pursuant to an amendment of Article 1 of the Convention adopted by consensus in 2001.[20] The Ottawa Convention banning anti-personnel landmines states that the Convention is based, *inter alia*, on "the principle that a distinction must be made between civilians and combatants".[21]

Under the Statute of the International Criminal Court, "intentionally directing attacks against the civilian population as such or against individual civilians not taking direct part in hostilities" constitutes a war crime in non-international armed conflicts.[22] In addition, this rule is included in other instruments pertaining also to non-international armed conflicts.[23]

[13] See, e.g., the statements of Azerbaijan (*ibid.*, § 273), China (*ibid.*, § 279), France (*ibid.*, §§ 41 and 285), Germany (*ibid.*, §§ 290–291 and 293), Iran (*ibid.*, §§ 296–297), Iraq (*ibid.*, § 298), Pakistan (*ibid.*, §§ 311–312), South Africa (*ibid.*, § 49), United Kingdom (*ibid.*, § 321) and United States (*ibid.*, §§ 51–53 and 322–329).

[14] See, e.g., the statements of Germany vis-à-vis Turkey (*ibid.*, § 292) and Iraq (*ibid.*, § 293), of Lebanon (*ibid.*, § 304) and Pakistan (*ibid.*, § 312) vis-à-vis Israel, and of Spain vis-à-vis Iran and Iraq (*ibid.*, § 315).

[15] See the statements of Ecuador (*ibid.*, § 39), Egypt (*ibid.*, §§ 40 and 283), India (*ibid.*, § 42), Japan (*ibid.*, § 43), Netherlands (*ibid.*, § 309), New Zealand (*ibid.*, § 45), Solomon Islands (*ibid.*, § 48), Sweden (*ibid.*, § 316), United Kingdom (*ibid.*, §§ 50 and 321) and United States (*ibid.*, § 329).

[16] ICJ, *Nuclear Weapons case* (*ibid.*, § 434).

[17] See ICRC, The International Committee's Action in the Middle East (*ibid.*, § 445).

[18] Additional Protocol II, Article 13(2) (adopted by consensus) (*ibid.*, § 156).

[19] Amended Protocol II to the CCW, Article 3(7) (*ibid.*, § 157).

[20] Protocol III to the CCW, Article 2(1) (*ibid.*, § 158).

[21] Ottawa Convention, preamble (*ibid.*, § 3).

[22] ICC Statute, Article 8(2)(e)(i) (*ibid.*, § 160).

[23] See, e.g., Memorandum of Understanding on the Application of IHL between Croatia and the SFRY, para. 6 (*ibid.*, §§ 6, 97 and 167); Agreement on the Application of IHL between the Parties

Military manuals which are applicable in or have been applied in non-international armed conflicts specify that a distinction must be made between combatants and civilians to the effect that only the former may be targeted.[24] To direct attacks against civilians in any armed conflict is an offence under the legislation of numerous States.[25] There are also a number of official statements pertaining to non-international armed conflicts invoking the principle of distinction and condemning attacks directed against civilians.[26] States' submissions to the International Court of Justice in the *Nuclear Weapons case* referred to above were couched in general terms applicable in all armed conflicts.

No official contrary practice was found with respect to either international or non-international armed conflicts. This rule is sometimes expressed in other terms, in particular as the principle of distinction between combatants and non-combatants, whereby civilians who do not take a direct part in hostilities are included in the category of non-combatants.[27]

to the Conflict in Bosnia and Herzegovina, para. 2.5 (*ibid.*, § 7, 98 and 168); San Remo Manual, paras. 39 and 41 (*ibid.*, §§ 8 and 99); UN Secretary-General's Bulletin, Section 5.1 (*ibid.*, §§ 9, 100 and 171); Cairo Declaration on Human Rights in Islam, Article 3(a) (*ibid.*, § 165); Hague Statement on Respect for Humanitarian Principles (*ibid.*, § 166); UNTAET Regulation 2000/15, Section 6(1)(e)(i) (*ibid.*, 172).

24 See, e.g., the military manuals of Argentina (*ibid.*, § 173), Benin (*ibid.*, § 177), Cameroon (*ibid.*, § 178), Canada (*ibid.*, § 179), Colombia (*ibid.*, §§ 181–182), Germany (*ibid.*, § 189), Netherlands (*ibid.*, § 201), New Zealand (*ibid.*, § 203), Philippines (*ibid.*, § 205), Togo (*ibid.*, § 211) and Yugoslavia (*ibid.*, 216).

25 See, e.g., the legislation of Armenia (*ibid.*, § 218), Australia (*ibid.*, § 220), Azerbaijan (*ibid.*, §§ 221–222), Belarus (*ibid.*, § 223), Belgium (*ibid.*, § 224), Bosnia and Herzegovina (*ibid.*, § 225), Canada (*ibid.*, § 228), Colombia (*ibid.*, § 230), Democratic Republic of the Congo (*ibid.*, § 231), Congo (*ibid.*, § 232), Croatia (*ibid.*, § 234), Estonia (*ibid.*, § 239), Georgia (*ibid.*, § 240), Germany (*ibid.*, § 241), Ireland (*ibid.*, § 244), Lithuania (*ibid.*, § 248), Netherlands (*ibid.*, § 250), New Zealand (*ibid.*, § 252), Niger (*ibid.*, § 254), Norway (*ibid.*, § 255), Slovenia (*ibid.*, § 257), Spain (*ibid.*, § 259), Sweden (*ibid.*, § 260), Tajikistan (*ibid.*, § 261), United Kingdom (*ibid.*, § 265), Vietnam (*ibid.*, § 266), Yemen (*ibid.*, § 267) and Yugoslavia (*ibid.*, § 268); see also the legislation of the Czech Republic (*ibid.*, § 237), Hungary (*ibid.*, § 242), Italy (*ibid.*, § 245) and Slovakia (*ibid.*, § 256), the application of which is not excluded in time of non-international armed conflict, and the draft legislation of Argentina (*ibid.*, § 217), Burundi (*ibid.*, § 226), El Salvador (*ibid.*, § 238), Jordan (*ibid.*, § 246), Nicaragua (*ibid.*, § 253) and Trinidad and Tobago (*ibid.*, § 262).

26 See, e.g., the statements of Belgium (*ibid.*, § 274), France (*ibid.*, §§ 286 and 288–289), Germany (*ibid.*, §§ 294–295), Malaysia (*ibid.*, § 306), Netherlands (*ibid.*, § 308), Philippines (*ibid.*, § 47), Slovenia (*ibid.*, § 314) and Uganda (*ibid.*, § 317).

27 See, e.g., the military manuals of Croatia (*ibid.*, § 718), Dominican Republic (*ibid.*, §§ 185, 583 and 720), Ecuador (*ibid.*, §§ 20 and 721), Hungary (*ibid.*, § 724), Sweden (*ibid.*, § 733) and United States (*ibid.*, §§ 34 and 737); Israel, Military Court at Ramallah, *Kassem* case (*ibid.*, § 271); the statements of Belgium (*ibid.*, § 274), Colombia (*ibid.*, § 840), Egypt (*ibid.*, § 40), India (*ibid.*, § 42), Iran (*ibid.*, § 296), Japan (*ibid.*, § 43), South Korea (*ibid.*, § 302), Solomon Islands (*ibid.*, § 48) and United States (*ibid.*, §§ 53, 328); UN Security Council, Res. 771 (*ibid.*, § 337) and Res. 794 (*ibid.*, § 338); UN Commission on Human Rights, Res. 1992/S-1/1 (*ibid.*, § 388); UN Secretary-General, Report on protection for humanitarian assistance to refugees and others in conflicts situations (*ibid.*, § 57); Report pursuant to paragraph 5 of Security Council resolution 837 (1993) on the investigation into the 5 June 1993 attack on United Nations forces in Somalia conducted on behalf of the UN Security Council (*ibid.*, § 58); ICJ, *Nuclear Weapons case*, Advisory Opinion (*ibid.*, § 61). For other formulations, see, e.g., the military manuals of Belgium (*ibid.*, § 12) (distinction between "the civilian population and those participating in hostilities") and Sweden (*ibid.*, § 29) (distinction between "persons participating in hostilities and

Alleged violations of this rule have generally been condemned by States, irrespective of whether the conflict was international or non-international.[28] Similarly, the UN Security Council has condemned or called for an end to alleged attacks against civilians in the context of numerous conflicts, both international and non-international, including in Afghanistan, Angola, Azerbaijan, Burundi, Georgia, Lebanon, Liberia, Rwanda, Sierra Leone, Somalia, Tajikistan, the former Yugoslavia and the territories occupied by Israel.[29]

As early as 1938, the Assembly of the League of Nations stated that "the intentional bombing of civilian populations is illegal".[30] The 20th International Conference of the Red Cross in 1965 solemnly declared that governments and other authorities responsible for action in all armed conflicts should conform to the prohibition on launching attacks against a civilian population.[31] Subsequently, a UN General Assembly resolution on respect for human rights in armed conflicts, adopted in 1968, declared the principle of distinction to be applicable in all armed conflicts.[32] The Plan of Action for the years 2000–2003, adopted by the 27th International Conference of the Red Cross and Red Crescent in 1999, requires that all parties to an armed conflict respect "the total ban on directing attacks against the civilian population as such or against civilians not taking a direct part in hostilities".[33] In a resolution adopted in 2000 on protection of civilians in armed conflicts, the UN Security Council reaffirmed its strong condemnation of the deliberate targeting of civilians in all situations of armed conflict.[34]

The jurisprudence of the International Court of Justice in the *Nuclear Weapons case*, of the International Criminal Tribunal for the Former

who are thereby legitimate objectives, and members of the civilian population"); the statement of New Zealand (*ibid.*, § 45) (distinction between "combatants and those who are not directly involved in armed conflict"); UN General Assembly, Res. 2444 (XXIII) (*ibid.*, § 55) (distinction between "persons taking part in the hostilities and members of the civilian population") and Res. 2675 (XXV) (*ibid.*, § 56) (distinction between "persons actively taking part in the hostilities and civilian populations").

28 See, e.g., the statements of Australia (*ibid.*, § 272), Bosnia and Herzegovina (*ibid.*, § 276), China (*ibid.*, § 279), Croatia (*ibid.*, § 281), France (*ibid.*, §§ 284, 286 and 288–289), Germany (*ibid.*, §§ 290 and 292–295), Iran (*ibid.*, § 297), Kazakhstan (*ibid.*, § 301), Lebanon (*ibid.*, § 305), Netherlands (*ibid.*, § 308), Pakistan (*ibid.*, §§ 311–312), Slovenia (*ibid.*, § 314), Spain (*ibid.*, § 315), Uganda (*ibid.*, § 317) and Yugoslavia (*ibid.*, § 331).

29 See, e.g., UN Security Council, Res. 564 (*ibid.*, § 336), Res. 771 (*ibid.*, § 337), Res. 794 (*ibid.*, § 338), Res. 819 (*ibid.*, § 339), Res. 853 (*ibid.*, § 340), Res. 904 (*ibid.*, § 341), Res. 912 (*ibid.*, § 342), Res. 913 (*ibid.*, § 343), Res. 918, 925, 929 and 935 (*ibid.*, § 344), Res. 950 (*ibid.*, § 345), Res. 978 (*ibid.*, § 346), Res. 993 (*ibid.*, § 347), Res. 998 (*ibid.*, § 348), Res. 1001 (*ibid.*, § 349), Res. 1019 (*ibid.*, § 350), Res. 1041 (*ibid.*, § 351), Res. 1049 and 1072 (*ibid.*, § 352), Res. 1052 (*ibid.*, § 353), Res. 1073 (*ibid.*, § 354), Res. 1076 (*ibid.*, § 355), Res. 1089 (*ibid.*, § 356), Res. 1161 (*ibid.*, § 357), Res. 1173 and 1180 (*ibid.*, § 358) and Res. 1181 (*ibid.*, § 359).

30 League of Nations, Assembly, Resolution adopted on 30 September 1938 (*ibid.*, § 378).

31 20th International Conference of the Red Cross, Res. XXVIII (*ibid.*, §§ 60 and 429).

32 UN General Assembly, Res. 2444 (XXIII) (adopted by unanimous vote of 111 in favour, none against and no abstentions) (*ibid.*, §§ 55 and 379).

33 27th International Conference of the Red Cross and Red Crescent, Plan of Action for the years 2000–2003 (adopted by consensus) (*ibid.*, § 433).

34 UN Security Council, Res. 1296 (*ibid.*, § 361).

Yugoslavia, in particular in the *Tadić case, Martić case* and *Kupreškić case*, and of the Inter-American Commission on Human Rights in the case relative to the events at La Tablada in Argentina provides further evidence that the obligation to make a distinction between civilians and combatants is customary in both international and non-international armed conflicts.[35]

The ICRC has called on parties to both international and non-international armed conflicts to respect the distinction between combatants and civilians.[36]

**Rule 2. Acts or threats of violence the primary purpose of which is to spread terror among the civilian population are prohibited.**

*Practice*

Volume II, Chapter 1, Section B.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts.

*International armed conflicts*

Article 51(2) of Additional Protocol I prohibits "acts or threats of violence the primary purpose of which is to spread terror among the civilian population".[37] No reservations have been made to this provision. At the Diplomatic Conference leading to the adoption of the Additional Protocols, Mexico stated that Article 51 of Additional Protocol I was so essential that it "cannot be the subject of any reservations whatsoever since these would be inconsistent with the aim and purpose of Protocol I and undermine its basis".[38] Also at the Diplomatic Conference, the United Kingdom stated that Article 51(2) was a "valuable reaffirmation" of an existing rule of customary international law.[39]

The prohibition of acts or threats of violence aimed at terrorising the civilian population is set forth in a large number of military manuals.[40] Violations of this

[35] ICJ, *Nuclear Weapons case*, Advisory Opinion (*ibid.*, §§ 61 and 434); ICTY, *Tadić case*, Interlocutory Appeal (*ibid.*, § 435), *Martić case*, Review of the Indictment (*ibid.*, §§ 437 and 552) and *Kupreškić case*, Judgement (*ibid.*, §§ 441 and 883); Inter-American Commission on Human Rights, *Case 11.137 (Argentina)* (*ibid.*, §§ 64, 443 and 810).

[36] See, e.g., the practice of the ICRC (*ibid.*, §§ 67–75).

[37] Additional Protocol I, Article 51(2) (adopted by 77 votes in favour, one against and 16 abstentions) (*ibid.*, § 477).

[38] Mexico, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, §§ 146, 307, 536 and 800).

[39] United Kingdom, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, §§ 319, 537 and 803).

[40] See, e.g., the military manuals of Argentina (*ibid.*, § 489), Australia (*ibid.*, § 490), Belgium (*ibid.*, §§ 491–492), Benin (*ibid.*, § 493), Cameroon (*ibid.*, § 494), Canada (*ibid.*, § 495), Colombia (*ibid.*, § 496), Croatia (*ibid.*, § 497), Ecuador (*ibid.*, § 498), France (*ibid.*, § 499), Germany (*ibid.*, § 500),

rule are an offence under the legislation of numerous States.[41] The prohibition is also supported by official statements.[42] This practice includes that of States not, or not at the time, party to Additional Protocol I.[43] States party to Additional Protocol I have also invoked this rule against States not party.[44]

When the ICRC appealed to the parties to the conflict in the Middle East in October 1973, i.e., before the adoption of Additional Protocol I, to respect the prohibition of "methods intended to spread terror among the civilian population", the States concerned (Egypt, Iraq, Israel and Syria) replied favourably.[45]

It can be argued that the prohibition of acts or threats of violence aimed at terrorising the civilian population is further supported by the wider prohibition of "all measures of intimidation or of terrorism" in Article 33 of the Fourth Geneva Convention.[46] Prior to the adoption of this provision, the Report of the Commission on Responsibility set up after the First World War listed "systematic terror" as a violation of the laws and customs of war.[47]

### *Non-international armed conflicts*

Article 13(2) of Additional Protocol II prohibits acts or threats of violence the primary purpose of which is to spread terror among the civilian population.[48] In addition, the prohibition is included in other instruments pertaining also to non-international armed conflicts.[49]

The prohibition of acts or threats of violence aimed at terrorising the civilian population is set forth in military manuals which are applicable in or have been applied in non-international armed conflicts.[50] Violations of this rule in any

Hungary (*ibid.*, § 501), Kenya (*ibid.*, § 502), Netherlands (*ibid.*, § 503), New Zealand (*ibid.*, § 504), Nigeria (*ibid.*, § 505), Russia (*ibid.*, § 506), Spain (*ibid.*, § 507), Sweden (*ibid.*, § 508), Switzerland (*ibid.*, § 509), Togo (*ibid.*, § 510), United States (*ibid.*, §§ 511–512) and Yugoslavia (*ibid.*, § 513).

41 See, e.g., the legislation of Argentina (*ibid.*, § 514), Australia (*ibid.*, § 515), Bangladesh (*ibid.*, § 516), Bosnia and Herzegovina (*ibid.*, § 517), China (*ibid.*, § 518), Colombia (*ibid.*, § 519), Côte d'Ivoire (*ibid.*, § 520), Croatia (*ibid.*, § 521), Czech Republic (*ibid.*, § 522), Ethiopia (*ibid.*, § 523), Ireland (*ibid.*, § 524), Lithuania (*ibid.*, § 525), Netherlands (*ibid.*, § 526), Norway (*ibid.*, § 527), Slovakia (*ibid.*, § 528), Slovenia (*ibid.*, § 529), Spain (*ibid.*, § 530) and Yugoslavia (*ibid.*, § 531).

42 See, e.g., the statements of Israel (*ibid.*, § 534), Lebanon (*ibid.*, § 535) and United States (*ibid.*, §§ 538–540).

43 See, e.g., the practice of France (*ibid.*, § 499), Israel (*ibid.*, § 534), Kenya (*ibid.*, § 502) and United States (*ibid.*, §§ 511–512 and 538–540).

44 See, e.g., the statement of Lebanon vis-à-vis Israel (*ibid.*, § 535).

45 See ICRC, The International Committee's Action in the Middle East (*ibid.*, § 556).

46 Fourth Geneva Convention, Article 33 (*ibid.*, § 476). The relevance of this provision to the present rule is explained in Yves Sandoz, Christophe Swinarski, Bruno Zimmermann (eds.), *Commentary on the Additional Protocols*, ICRC, Geneva, 1987, § 4538.

47 Report of the Commission on Responsibility (cited in Vol. II, Ch. 1, § 481).

48 Additional Protocol II, Article 13(2) (adopted by consensus) (*ibid.*, § 479).

49 See, e.g., Memorandum of Understanding on the Application of IHL between Croatia and the SFRY, para. 6 (*ibid.*, § 485); Agreement on the Application of IHL between the Parties to the Conflict in Bosnia and Herzegovina, para. 2.5 (*ibid.*, § 486).

50 See, e.g., the military manuals of Argentina (*ibid.*, § 489), Australia (*ibid.*, § 490), Benin (*ibid.*, § 493), Cameroon (*ibid.*, § 494), Canada (*ibid.*, § 495), Colombia (*ibid.*, § 496), Croatia (*ibid.*, § 497), Ecuador (*ibid.*, § 498), Germany (*ibid.*, § 500), Hungary (*ibid.*, § 501), Kenya (*ibid.*, § 502), Netherlands (*ibid.*, § 503), New Zealand (*ibid.*, § 504), Russia (*ibid.*, § 506), Spain (*ibid.*, § 507), Togo (*ibid.*, § 510) and Yugoslavia (*ibid.*, § 513).

armed conflict are an offence under the legislation of many States.[51] There are also official statements pertaining to non-international armed conflicts invoking this rule.[52]

It can be argued that the prohibition of acts or threats of violence aimed at terrorising the civilian population is further supported by the wider prohibition of "acts of terrorism" in Article 4(2)(d) of Additional Protocol II.[53] "Acts of terrorism" are specified as war crimes under the Statutes of the International Criminal Tribunal for Rwanda and of the Special Court for Sierra Leone.[54] In his report on the establishment of a Special Court for Sierra Leone, the UN Secretary-General noted that violations of Article 4 of Additional Protocol II have long been considered crimes under customary international law.[55]

No official contrary practice was found with respect to either international or non-international armed conflicts. Alleged violations of this rule have generally been condemned by States.[56] Similarly, the UN General Assembly and UN Commission on Human Rights have adopted several resolutions condemning the terrorisation of the civilian population in the conflicts in the former Yugoslavia.[57] Furthermore, the indictments in the *Đukić case, Karadžić and Mladić case* and *Galić case* before the International Criminal Tribunal for the Former Yugoslavia included charges of terrorising the civilian population in violation of the laws and customs of war, in the first two cases as part of charges of unlawful attack.[58] In its judgement in the *Galić case* in 2003, the Trial Chamber found the accused guilty of "acts of violence the primary purpose of which is to spread terror among the civilian population, as set forth in Article 51 of Additional Protocol I, as a violation of the laws or customs of war under Article 3 of the Statute of the Tribunal".[59]

[51] See, e.g., the legislation of Bosnia and Herzegovina (*ibid.*, § 517), Colombia (*ibid.*, § 519), Croatia (*ibid.*, § 521), Ethiopia (*ibid.*, § 523), Ireland (*ibid.*, § 524), Lithuania (*ibid.*, § 525), Norway (*ibid.*, § 527), Slovenia (*ibid.*, § 529), Spain (*ibid.*, § 530) and Yugoslavia (*ibid.*, § 531); see also the legislation of the Czech Republic (*ibid.*, § 522) and Slovakia (*ibid.*, § 528), the application of which is not excluded in time of non-international armed conflict, and the draft legislation of Argentina (*ibid.*, § 514).

[52] See, e.g., the statements of Botswana (*ibid.*, § 533) and United States (*ibid.*, § 540).

[53] Additional Protocol II, Article 4(2)(d) (adopted by consensus) (*ibid.*, § 478). The relevance of this provision to the present rule is explained in Yves Sandoz, Christophe Swinarski, Bruno Zimmermann (eds.), *Commentary on the Additional Protocols*, ICRC, Geneva, 1987, § 4538.

[54] ICTR Statute, Article 4(d) (cited in Vol. II, Ch. 1, § 487); Statute of the Special Court for Sierra Leone, Article 3(d) (*ibid.*, § 480).

[55] UN Secretary-General, Report on the establishment of a Special Court for Sierra Leone (*ibid.*, § 545).

[56] See, e.g., the statements of Israel (*ibid.*, § 534), Lebanon (*ibid.*, § 535) and United States (*ibid.*, § 540).

[57] See, e.g., UN General Assembly, Res. 49/196 (*ibid.*, § 541) and Res. 53/164 (*ibid.*, § 542); UN Commission on Human Rights, Res. 1992/S-2/1, 1993/7, 1994/72 and 1995/89 (*ibid.*, § 543).

[58] ICTY, *Đukić case*, Initial Indictment (*ibid.*, § 551), *Karadžić and Mladić case*, First Indictment (*ibid.*, § 553) and *Galić case*, Initial Indictment (*ibid.*, § 554).

[59] ICTY, *Prosecutor v. Stanislav Galić*, Case No. IT-98-29-T, Judgement and Opinion, 5 December 2003, § 769.

The ICRC has reminded parties to both international and non-international armed conflicts of the prohibition on terrorising the civilian population.[60]

*Examples*

Examples of acts of violence cited in practice as being prohibited under this rule include offensive support or strike operations aimed at spreading terror among the civilian population,[61] indiscriminate and widespread shelling,[62] and the regular bombardment of cities,[63] but also assault, rape, abuse and torture of women and children,[64] and mass killing.[65] The indictments on the grounds of terrorising the civilian population in the above-mentioned cases before the International Criminal Tribunal for the Former Yugoslavia concerned deliberate and indiscriminate firing on civilian targets,[66] unlawful firing on civilian gatherings,[67] and a protracted campaign of shelling and sniping upon civilian areas.[68] These examples show that many acts violating the prohibition of acts or threats of violence aimed at terrorising the civilian population are also covered by specific prohibitions.

**Rule 3. All members of the armed forces of a party to the conflict are combatants, except medical and religious personnel.**

*Practice*

Volume II, Chapter 1, Section C.

*Summary*

State practice establishes this rule as a norm of customary international law in international armed conflicts. For purposes of the principle of distinction (see Rule 1), members of State armed forces may be considered combatants in both international and non-international armed conflicts. Combatant status, on the other hand, exists only in international armed conflicts (see introductory note to Chapter 33).

[60] See, e.g., the practice of the ICRC (cited in Vol. II, Ch. 1, §§ 556–558 and 561).
[61] Australia, *Defence Force Manual* (*ibid.*, § 490).
[62] UN General Assembly, Res. 53/164 (*ibid.*, § 542).
[63] UN Commission on Human Rights, Special Rapporteur on the Situation of Human Rights in the Former Yugoslavia, Report (*ibid.*, § 546).
[64] UN High Commissioner for Human Rights, Report on systematic rape, sexual slavery and slavery-like practices during armed conflicts (*ibid.*, § 547).
[65] OSCE, Kosovo/Kosova, as seen as told, An analysis of the human rights findings of the OSCE Kosovo Verification Mission (*ibid.*, § 549).
[66] ICTY, *Đukić case*, Initial Indictment (*ibid.*, § 551).
[67] ICTY, *Karadžić and Mladić case*, First Indictment (*ibid.*, § 553).
[68] ICTY, *Galić case*, Initial Indictment (*ibid.*, § 554).

*International armed conflicts*

This rule goes back to the Hague Regulations, according to which "the armed forces of the belligerent parties may consist of combatants and non-combatants".[69] It is now set forth in Article 43(2) of Additional Protocol I.[70]

Numerous military manuals contain this definition of combatants.[71] It is supported by official statements and reported practice.[72] This practice includes that of States not, or not at the time, party to Additional Protocol I.[73]

No official contrary practice was found.

*Non-international armed conflicts*

Common Article 3 of the Geneva Conventions and Additional Protocol II refer to "armed forces" and Additional Protocol II also to "dissident armed forces and other organized armed groups". These concepts are not further defined in the practice pertaining to non-international armed conflicts. While State armed forces may be considered combatants for purposes of the principle of distinction (see Rule 1), practice is not clear as to the situation of members of armed opposition groups. Practice does indicate, however, that persons do not enjoy the protection against attack accorded to civilians when they take a direct part in hostilities (see Rule 6).

Persons taking a direct part in hostilities in non-international armed conflicts are sometimes labelled "combatants". For example, in a resolution on respect for human rights in armed conflict adopted in 1970, the UN General Assembly speaks of "combatants in all armed conflicts".[74] More recently, the term "combatant" was used in the Cairo Declaration and Cairo Plan of Action for both types of conflicts.[75] However, this designation is only used in its generic meaning and indicates that these persons do not enjoy the protection against attack accorded to civilians, but does not imply a right to combatant status or prisoner-of-war status, as applicable in international armed conflicts (see Chapter 33).

[69] Hague Regulations, Article 3 (*ibid.*, § 571).

[70] Additional Protocol I, Article 43(2) (adopted by consensus) (*ibid.*, § 572).

[71] See, e.g., the military manuals of Argentina (*ibid.*, § 574), Australia (*ibid.*, § 575), Belgium (*ibid.*, § 576), Benin (*ibid.*, § 577), Cameroon (*ibid.*, § 578), Canada (*ibid.*, § 579), Colombia (*ibid.*, § 580), Croatia (*ibid.*, §§ 581–582), Dominican Republic (*ibid.*, § 583), Ecuador (*ibid.*, § 584), France (*ibid.*, §§ 585–586), Germany (*ibid.*, § 587), Hungary (*ibid.*, § 588), Indonesia (*ibid.*, § 589), Israel (*ibid.*, § 590), Italy (*ibid.*, §§ 591–592), Kenya (*ibid.*, § 593), South Korea (*ibid.*, § 594), Madagascar (*ibid.*, § 595), Netherlands (*ibid.*, § 596), New Zealand (*ibid.*, § 597), Russia (*ibid.*, § 598), South Africa (*ibid.*, § 599), Spain (*ibid.*, § 600), Sweden (*ibid.*, § 601), Togo (*ibid.*, § 602), United Kingdom (*ibid.*, § 603) and United States (*ibid.*, §§ 604–606).

[72] See, e.g., the practice of Argentina (*ibid.*, 611), India (*ibid.*, § 612), Iraq (*ibid.*, § 613), Japan (*ibid.*, § 614), Jordan (*ibid.*, § 615) and Syria (*ibid.*, § 619).

[73] See, e.g., the practice of France (*ibid.*, § 585), Indonesia (*ibid.*, § 589), Israel (*ibid.*, § 590), Kenya (*ibid.*, § 593), United Kingdom (*ibid.*, § 603) and United States (*ibid.*, §§ 604–606).

[74] UN General Assembly, Res. 2676 (XXV), 9 December 1970, preamble and § 5.

[75] Cairo Declaration, Sections 68–69, and Cairo Plan of Action, Section 82, both adopted at the Africa-Europe Summit held under the Aegis of the Organization of African Unity and the European Union, 3–4 April 2000.

The lawfulness of direct participation in hostilities in non-international armed conflicts is governed by national law. While such persons could also be called "fighters", this term would be translated as "combatant" in a number of languages and is therefore not wholly satisfactory either.

Treaty provisions use different designations that can apply to "fighters" in the context of non-international armed conflicts, including: persons taking active part in the hostilities;[76] members of dissident armed forces or other organized armed groups;[77] persons who take a direct part in hostilities;[78] civilians who take a direct part in hostilities;[79] civilians taking direct part in hostilities;[80] and combatant adversary.[81] The uncertainty about the qualification of members of armed opposition groups is further addressed in the commentaries to Rules 5 and 6.

### *Interpretation*

According to this rule, when military medical and religious personnel are members of the armed forces, they are nevertheless considered non-combatants. According to the First Geneva Convention, temporary medical personnel have to be respected and protected as non-combatants only as long as the medical assignment lasts (see commentary to Rule 25).[82] As is the case for civilians (see Rule 6), respect for non-combatants is contingent on their abstaining from taking a direct part in hostilities.

The military manuals of Germany and the United States point out that there can be other non-combatant members of the armed forces besides medical and religious personnel. Germany's Military Manual explains that "combatants are persons who may take a direct part in hostilities, i.e., participate in the use of a weapon or a weapon-system in an indispensable function", and specifies, therefore, that "persons who are members of the armed forces but do not have any combat mission, such as judges, government officials and blue-collar workers, are non-combatants".[83] The US Naval Handbook states that "civil defense personnel and members of the armed forces who have acquired civil defense status" are non-combatants, in addition to medical and religious personnel.[84]

Non-combatant members of the armed forces are not to be confused, however, with civilians accompanying armed forces who are not members of the armed forces by definition.[85]

[76] Geneva Conventions, common Article 3.
[77] Additional Protocol II, Article 1(1) (adopted by 58 votes in favour, 5 against and 29 abstentions) (cited in Vol. II, Ch. 1, § 633).
[78] Additional Protocol II, Article 4(1) (adopted by consensus).
[79] Additional Protocol II, Article 13(3) (adopted by consensus) (*ibid.*, § 756).
[80] ICC Statute, Article 8(2)(e)(i). [81] ICC Statute, Article 8(2)(e)(ix).
[82] First Geneva Convention, Article 25 (cited in Vol. II, Ch. 7, § 7).
[83] Germany, *Military Manual* (cited in Vol. II, Ch. 1, § 587).
[84] United States, *Naval Handbook* (*ibid.*, § 605).
[85] See Third Geneva Convention, Article 4(A)(4).

While in some countries, entire segments of the population between certain ages may be drafted into the armed forces in the event of armed conflict, only those persons who are actually drafted, i.e., who are actually incorporated into the armed forces, can be considered combatants. Potential mobilisation does not render the person concerned a combatant liable to attack.[86]

**Rule 4. The armed forces of a party to the conflict consist of all organised armed forces, groups and units which are under a command responsible to that party for the conduct of its subordinates.**

*Practice*

Volume II, Chapter 1, Section D.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in international armed conflicts. For purposes of the principle of distinction, it may also apply to State armed forces in non-international armed conflicts.[87]

*International armed conflicts*

This rule is set forth in Article 43(1) of Additional Protocol I.[88]

Many military manuals specify that the armed forces of a party to the conflict consist of all organised armed groups which are under a command responsible to that party for the conduct of its subordinates.[89] This definition is supported by official statements and reported practice.[90] Practice includes that of States not, or not at the time, party to Additional Protocol I.[91]

[86] This conclusion is based on discussions during the second consultation with academic and governmental experts in the framework of this study in May 1999 and the general agreement among the experts to this effect. The experts also considered that it may be necessary to consider the legislation of a State in determining when reservists actually become members of the armed forces.

[87] See CDDH, *Official Records*, Vol. X, CDDH/I/238/Rev. 1, pp. 93–94; see also Yves Sandoz, Christophe Swinarski, Bruno Zimmermann (eds.), *Commentary on the Additional Protocols*, ICRC, Geneva, 1987, § 4462.

[88] Additional Protocol I, Article 43(1) (adopted by consensus) (cited in Vol. II, Ch. 1, § 631).

[89] See, e.g., the military manuals of Argentina (*ibid.*, § 637), Australia (*ibid.*, § 638), Canada (*ibid.*, § 642), Croatia (*ibid.*, § 644), Germany (*ibid.*, § 647), Hungary (*ibid.*, § 648), Italy (*ibid.*, § 651), Kenya (*ibid.*, § 652), Netherlands (*ibid.*, § 654), New Zealand (*ibid.*, § 655), Nigeria (*ibid.*, § 656), Russia (*ibid.*, § 657), Spain (*ibid.*, § 659), Sweden (*ibid.*, § 660) and United Kingdom (*ibid.*, § 662).

[90] See, e.g., the practice of Belgium (*ibid.*, § 670), France (*ibid.*, § 671), Germany (*ibid.*, § 672), Iran (*ibid.*, § 673), Netherlands (*ibid.*, § 676) and Syria (*ibid.*, § 677).

[91] See, e.g., the practice of France (*ibid.*, § 671), Kenya (*ibid.*, § 652), United Kingdom (*ibid.*, § 662) and United States (*ibid.*, § 665).

In essence, this definition of armed forces covers all persons who fight on behalf of a party to a conflict and who subordinate themselves to its command. As a result, a combatant is any person who, under responsible command, engages in hostile acts in an armed conflict on behalf of a party to the conflict. The conditions imposed on armed forces vest in the group as such. The members of such armed forces are liable to attack.

This definition of armed forces builds upon earlier definitions contained in the Hague Regulations and the Third Geneva Convention which sought to determine who are combatants entitled to prisoner-of-war status. Article 1 of the Hague Regulations provides that the laws, rights and duties of war apply not only to armies, but also to militia and volunteer corps fulfilling four conditions:

1. to be commanded by a person responsible for his subordinates;
2. to have a fixed distinctive emblem recognizable at a distance;
3. to carry arms openly; and
4. to conduct their operations in accordance with the laws and customs of war.

It further specifies that in countries where militia or volunteer corps (so-called "irregular" armed forces) constitute the army, or form part of it, they are included under the denomination "army".[92] This definition is also used in Article 4 of the Third Geneva Convention, with the addition of organised resistance movements.[93] The Hague Regulations and the Third Geneva Convention thus consider all members of armed forces to be combatants and require militia and volunteer corps, including organised resistance movements, to comply with four conditions in order for them to be considered combatants entitled to prisoner-of-war status. The idea underlying these definitions is that the regular armed forces fulfil these four conditions *per se* and, as a result, they are not explicitly enumerated with respect to them. The definition contained in Additional Protocol I does not distinguish between the regular armed forces and other armed groups or units, but defines all armed forces, groups and units which are under a command responsible to a party for the conduct of its subordinates as armed forces of that party. Both definitions express the same idea, namely that all persons who fight in the name of a party to a conflict – who "belong to" a party in the words of Article 4 of the Third Geneva Convention – are combatants. The four conditions contained in the Hague Regulations and the Third Geneva Convention have been reduced to two conditions, the main difference being the exclusion of the requirements of visibility for the definition of armed forces as such. The requirement of visibility is relevant with respect to a combatant's entitlement to prisoner-of-war status (see Rule 106). Additional Protocol I, therefore, has lifted this requirement from the definition of armed

[92] Hague Regulations, Article 1 (*ibid.*, § 628).
[93] Third Geneva Convention, Article 4 (*ibid.*, § 630).

forces (Article 43) and placed it in the provision dealing with combatants and prisoner-of-war status (Article 44).

In addition, Article 43 of Additional Protocol I does not mention the requirement to respect the laws and customs of war but includes a requirement to have an internal disciplinary system to enforce compliance with international humanitarian law, but this change does not substantially alter the definition of armed forces for the purposes of determining those combatants entitled to prisoner-of-war status. The requirement of an internal disciplinary system supplements the provisions concerning command responsibility (see Rules 152–153) and is a corollary to the obligation to issue instructions which comply with international humanitarian law (see commentary to Rule 139).[94]

Articles 43 and 44 of Additional Protocol I reaffirm what was already stated in Article 85 of the Third Geneva Convention, namely that "prisoners of war prosecuted under the laws of the Detaining Power for acts committed prior to capture shall retain, even if convicted, the benefits of the present Convention", that is to say that they retain their status. These provisions "thus preclude any attempt to deny prisoner of war status to members of independent or regular armed forces on the allegation that their force does not enforce some provision of customary or conventional law of armed conflict (as construed by the Detaining Power)".[95] Only the failure to distinguish oneself from the civilian population (see Rule 106) or being caught as a spy (see Rule 107) or a mercenary (see Rule 108) warrants forfeiture of prisoner-of-war status.

The definition in Article 43 of Additional Protocol I is now generally applied to all forms of armed groups who belong to a party to an armed conflict to determine whether they constitute armed forces. It is therefore no longer necessary to distinguish between regular and irregular armed forces. All those fulfilling the conditions in Article 43 of Additional Protocol I are armed forces.

### *Incorporation of paramilitary or armed law enforcement agencies into armed forces*

Specific practice was found concerning the incorporation of paramilitary or armed law enforcement agencies, such as police forces, *gendarmerie* and constabulary, into armed forces.[96] Examples of such paramilitary agencies incorporated into the armed forces of a State include the Special Auxiliary Force attached to Bishop Muzorewa's United African National Congress in Zimbabwe, which was integrated into the national army after the Bishop became

[94] See Yves Sandoz, Christophe Swinarski, Bruno Zimmermann (eds.), *Commentary on the Additional Protocols*, ICRC, Geneva, 1987, § 1675.

[95] Michael Bothe, Karl Josef Partsch, Waldemar A. Solf, *New Rules for Victims of Armed Conflicts*, Martinus Nijhoff, The Hague, 1982, p. 239.

[96] See, e.g., the practice of Argentina (cited in Vol. II, Ch. 1, § 688), Belgium (*ibid.*, § 685), Canada (*ibid.*, § 689), France (*ibid.*, § 686), Germany (*ibid.*, § 690), Netherlands (*ibid.*, § 691), New Zealand (*ibid.*, § 692), Spain (*ibid.*, §§ 693 and 696) and Philippines (*ibid.*, § 695) and the reported practice of India (*ibid.*, § 698), South Korea (*ibid.*, § 699), Syria (*ibid.*, § 700) and Zimbabwe (*ibid.*, § 697).

Prime Minister, and India's Border Security Force in Assam.[97] Examples of armed law enforcement agencies being incorporated into the armed forces include the Philippine Constabulary and Spain's Guardia Civil.[98]

Incorporation of paramilitary or armed law enforcement agencies into armed forces is usually carried out through a formal act, for example, an act of parliament. In the absence of formal incorporation, the status of such groups will be judged on the facts and in the light of the criteria for defining armed forces. When these units take part in hostilities and fulfil the criteria of armed forces, they are considered combatants. In addition, Additional Protocol I requires a party to the conflict to notify such incorporation to the other parties to the conflict.[99] Belgium and France issued a general notification to this effect to all States party upon ratification of Additional Protocol I.[100] This method of satisfying the requirement of notification was explicitly recognised by the Rapporteur of the Working Group at the Diplomatic Conference leading to the adoption of the Additional Protocols.[101] In the light of the general obligation to distinguish between combatants and civilians (see Rule 1), such notification is important because members of the armed forces of each side have to know who is a member of the armed forces and who is a civilian. Confusion is particularly likely since police forces and *gendarmerie* usually carry arms and wear a uniform, although in principle their uniforms are not the same as those of the armed forces proper. While notification is not constitutive of the status of the units concerned, it does serve to avoid confusion and thus enhances respect for the principle of distinction.

**Rule 5. Civilians are persons who are not members of the armed forces. The civilian population comprises all persons who are civilians.**

*Practice*

Volume II, Chapter 1, Section E.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in international armed conflicts. It also applies to non-international armed conflicts although practice is ambiguous as to whether members of armed opposition groups are considered members of armed forces or civilians.

[97] These examples are quoted in New Zealand, *Military Manual* (*ibid.*, § 692).
[98] Philippines, *Decree on the Constitution of the Integrated National Police* (*ibid.*, § 695); Spain, *Military Criminal Code* (*ibid.*, § 696).
[99] Additional Protocol I, Article 43(3) (adopted by consensus) (*ibid.*, § 684).
[100] Belgium, Interpretative declarations made upon ratification of Additional Protocol I (*ibid.*, § 685); France, Reservations and declarations made upon ratification of Additional Protocol I (*ibid.*, § 686).
[101] Yves Sandoz, Christophe Swinarski, Bruno Zimmermann (eds.), *Commentary on the Additional Protocols*, ICRC, Geneva, 1987, § 1682.

*International armed conflicts*

The definition of civilians as persons who are not members of the armed forces is set forth in Article 50 of Additional Protocol I, to which no reservations have been made.[102] It is also contained in numerous military manuals.[103] It is reflected in reported practice.[104] This practice includes that of States not, or not at the time, party to Additional Protocol I.[105]

In its judgement in the *Blaškić case* in 2000, the International Criminal Tribunal for the Former Yugoslavia defined civilians as "persons who are not, or no longer, members of the armed forces".[106]

No official contrary practice was found. Some practice adds the condition that civilians are persons who do not participate in hostilities. This additional requirement merely reinforces the rule that a civilian who participates directly in hostilities loses protection against attack (see Rule 6). However, such a civilian does not thereby become a combatant entitled to prisoner-of-war status and, upon capture, may be tried under national law for the mere participation in the conflict, subject to fair trial guarantees (see Rule 100).

*Exception*

An exception to this rule is the *levée en masse*, whereby the inhabitants of a country which has not yet been occupied, on the approach of the enemy, spontaneously take up arms to resist the invading troops without having time to form themselves into an armed force. Such persons are considered combatants if they carry arms openly and respect the laws and customs of war (see commentary to Rule 106). This is a long-standing rule of customary international humanitarian law already recognised in the Lieber Code and the Brussels Declaration.[107] It is codified in the Hague Regulations and the Third Geneva Convention.[108] Although of limited current application, the *levée en masse* is still repeated in many military manuals, including very recent ones.[109]

[102] Additional Protocol I, Article 50 (adopted by consensus) (cited in Vol. II, Ch. 1, § 705).

[103] See, e.g., the military manuals of Argentina (*ibid.*, § 712), Australia (*ibid.*, § 713), Benin (*ibid.*, § 714), Cameroon (*ibid.*, § 715), Canada (*ibid.*, § 716), Colombia (*ibid.*, § 717), Croatia (*ibid.*, §§ 718–719), Dominican Republic (*ibid.*, § 720), Ecuador (*ibid.*, § 721), France (*ibid.*, §§ 722–723), Hungary (*ibid.*, § 724), Indonesia (*ibid.*, § 725), Italy (*ibid.*, § 727), Kenya (*ibid.*, § 728), Madagascar (*ibid.*, § 729), Netherlands (*ibid.*, § 730), South Africa (*ibid.*, § 731), Spain (*ibid.*, § 732), Sweden (*ibid.*, § 733), Togo (*ibid.*, § 734), United Kingdom (*ibid.*, § 735), United States (*ibid.*, §§ 736–737) and Yugoslavia (*ibid.*, § 738).

[104] See, e.g., the reported practice of Israel (*ibid.*, § 726), Jordan (*ibid.*, § 743), Rwanda (*ibid.*, § 746) and Syria (*ibid.*, § 747).

[105] See, e.g., the practice of France (*ibid.*, § 722), Indonesia (*ibid.*, § 725), Israel (*ibid.*, § 726), Kenya (*ibid.*, § 728), United Kingdom (*ibid.*, § 735) and United States (*ibid.*, §§ 736–737).

[106] ICTY, *Blaškić case*, Judgement (*ibid.*, § 751).

[107] Lieber Code, Articles 49 and 51; Brussels Declaration, Article 10.

[108] Hague Regulations, Article 2; Third Geneva Convention, Article 4(A)(6).

[109] See, e.g., the military manuals of Benin (cited in Vol. II, Ch. 1, § 714), Cameroon (*ibid.*, § 715), Canada (*ibid.*, § 764), Kenya (*ibid.*, § 728), Madagascar (*ibid.*, § 729), South Africa (*ibid.*, § 731) and Togo (*ibid.*, § 734).

*Non-international armed conflicts*

The definition that "any person who is not a member of armed forces is considered to be a civilian" and that "the civilian population comprises all persons who are civilians" was included in the draft of Additional Protocol II.[110] The first part of this definition was amended to read that "a civilian is anyone who is not a member of the armed forces or of an organized armed group" and both parts were adopted by consensus in Committee III of the Diplomatic Conference leading to the adoption of the Additional Protocols.[111] However, this definition was dropped at the last moment of the conference as part of a package aimed at the adoption of a simplified text.[112] As a result, Additional Protocol II does not contain a definition of civilians or the civilian population even though these terms are used in several provisions.[113] It can be argued that the terms "dissident armed forces or other organized armed groups . . . under responsible command" in Article 1 of Additional Protocol II inferentially recognise the essential conditions of armed forces, as they apply in international armed conflict (see Rule 4), and that it follows that civilians are all persons who are not members of such forces or groups.[114] Subsequent treaties, applicable to non-international armed conflicts, have similarly used the terms civilians and civilian population without defining them.[115]

While State armed forces are not considered civilians, practice is not clear as to whether members of armed opposition groups are civilians subject to Rule 6 on loss of protection from attack in case of direct participation or whether members of such groups are liable to attack as such, independently of the operation of Rule 6. Although the military manual of Colombia defines the term civilians as "those who do not participate directly in military hostilities (internal conflict, international conflict)",[116] most manuals define civilians negatively with respect to combatants and armed forces and are silent on the status of members of armed opposition groups.

**Rule 6. Civilians are protected against attack unless and for such time as they take a direct part in hostilities.**

*Practice*

Volume II, Chapter 1, Section F.

[110] Draft Additional Protocol II submitted by the ICRC to the Diplomatic Conference leading to the adoption of the Additional Protocols, Article 25 (*ibid.*, § 706).
[111] Draft Additional Protocol II, Article 25 as adopted by Committee III (*ibid.*, § 706).
[112] See *ibid.*, § 706.
[113] Additional Protocol II, Articles 13–15 and 17–18.
[114] Michael Bothe, Karl Joseph Partsch, Waldemar A. Solf (eds.), *New Rules for Victims of Armed Conflicts*, Martinus Nijhoff, The Hague, 1982, p. 672.
[115] See, e.g., Amended Protocol II to the CCW, Article 3(7)–(11); Protocol III to the CCW, Article 2; Ottawa Convention, preamble; ICC Statute, Article 8(2)(e)(i), (iii) and (viii).
[116] Colombia, *Instructors' Manual* (*ibid.*, § 717).

*Summary*

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts. The use of human shields is the subject of Rule 97.

*International armed conflicts*

The rule whereby civilians lose their protection against attack when and for such time as they take a direct part in hostilities is contained in Article 51(3) of Additional Protocol I, to which no reservations have been made.[117] At the Diplomatic Conference leading to the adoption of the Additional Protocols, Mexico stated that Article 51 of Additional Protocol I was so essential that it "cannot be the subject of any reservations whatsoever since these would be inconsistent with the aim and purpose of Protocol I and undermine its basis".[118] Also at the Diplomatic Conference, the United Kingdom stated that the exception to the civilian immunity from attack contained in Article 51(3) was a "valuable reaffirmation" of an existing rule of customary international law.[119] Upon ratification of the Convention on Certain Conventional Weapons, the United Kingdom declared that civilians enjoyed the protection of the Convention "unless and for such time as they take a direct part in hostilities".[120]

Numerous military manuals state that civilians are not protected against attack when they take a direct part in hostilities.[121] The rule is supported by official statements and reported practice.[122] This practice includes that of States not, or not at the time, party to Additional Protocol I.[123] When the ICRC appealed to the parties to the conflict in the Middle East in October 1973, i.e., before the adoption of Additional Protocol I, to respect civilian immunity from

[117] Additional Protocol I, Article 51(3) (adopted by 77 votes in favour, one against and 16 abstentions) (*ibid.*, § 755).

[118] Mexico, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, § 800).

[119] United Kingdom, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, § 803).

[120] United Kingdom, Declaration made upon ratification of the CCW (*ibid.*, § 757).

[121] See, e.g., the military manuals of Australia (*ibid.*, § 762), Benin (*ibid.*, § 763), Canada (*ibid.*, § 764), Colombia (*ibid.*, § 765), Croatia (*ibid.*, § 766), Dominican Republic (*ibid.*, § 767), Ecuador (*ibid.*, § 768), France (*ibid.*, § 769), Germany (*ibid.*, § 770), India (*ibid.*, § 771), Indonesia (*ibid.*, § 772), Italy (*ibid.*, § 773), Kenya (*ibid.*, § 774), Madagascar (*ibid.*, § 775), Netherlands (*ibid.*, §§ 776–777), New Zealand (*ibid.*, § 778), Nigeria (*ibid.*, §§ 779–780), South Africa (*ibid.*, § 781), Spain (*ibid.*, § 782), Sweden (*ibid.*, § 783), Togo (*ibid.*, § 784), United Kingdom (*ibid.*, § 786), United States (*ibid.*, §§ 787–788) and Yugoslavia (*ibid.*, § 789).

[122] See, e.g., the statements of Belgium (*ibid.*, § 792) and United States (*ibid.*, §§ 804–806) and the reported practice of Chile (*ibid.*, § 793), Jordan (*ibid.*, § 796), Malaysia (*ibid.*, § 799) and United States (*ibid.*, § 807).

[123] See, e.g., the practice of France (*ibid.*, § 769), India (*ibid.*, § 771), Indonesia (*ibid.*, § 772), Kenya (*ibid.*, § 774), Malaysia (*ibid.*, § 799), Nigeria (*ibid.*, § 779), United Kingdom (*ibid.*, § 786) and United States (*ibid.*, §§ 787–788 and 804–807).

attack, unless and for such time as they took a direct part in hostilities, the States concerned (Egypt, Iraq, Israel and Syria) replied favourably.[124]

*Non-international armed conflicts*

Pursuant to Article 13(3) of Additional Protocol II, civilians are immune from direct attack "unless and for such time as they take a direct part in hostilities".[125] In addition, this rule is set forth in other instruments pertaining also to non-international armed conflicts.[126]

The rule that civilians are not protected against attack when they take a direct part in hostilities is included in many military manuals which are applicable in or have been applied in non-international armed conflicts.[127]

In the case concerning the events at La Tablada in Argentina, the Inter-American Commission on Human Rights held that civilians who directly take part in fighting, whether singly or as members of a group, thereby become legitimate military targets but only for such time as they actively participate in combat.[128]

To the extent that members of armed opposition groups can be considered civilians (see commentary to Rule 5), this rule appears to create an imbalance between such groups and governmental armed forces. Application of this rule would imply that an attack on members of armed opposition groups is only lawful for "such time as they take a direct part in hostilities" while an attack on members of governmental armed forces would be lawful at any time. Such imbalance would not exist if members of armed opposition groups were, due to their membership, either considered to be continuously taking a direct part in hostilities or not considered to be civilians.

It is clear that the lawfulness of an attack on a civilian depends on what exactly constitutes direct participation in hostilities and, related thereto, when direct participation begins and when it ends. As explained below, the meaning of direct participation in hostilities has not yet been clarified. It should be noted, however, that whatever meaning is given to these terms, immunity from attack does not imply immunity from arrest and prosecution.

124 See ICRC, The International Committee's Action in the Middle East (*ibid.*, § 813).
125 Additional Protocol II, Article 13(3) (adopted by consensus) (*ibid.*, § 756).
126 See, e.g., Memorandum of Understanding on the Application of IHL between Croatia and the SFRY, para. 6 (*ibid.*, § 759); Agreement on the Application of IHL between the Parties to the Conflict in Bosnia and Herzegovina, para. 2.5 (*ibid.*, § 760); UN Secretary-General's Bulletin, Section 5.2 (*ibid.*, § 761).
127 See, e.g., the military manuals of Australia (*ibid.*, § 762), Benin (*ibid.*, § 763), Colombia (*ibid.*, § 765), Croatia (*ibid.*, § 766), Ecuador (*ibid.*, § 768), Germany (*ibid.*, § 770), Italy (*ibid.*, § 773), Kenya (*ibid.*, § 774), Madagascar (*ibid.*, § 775), Netherlands (*ibid.*, § 776), Nigeria (*ibid.*, § 779), South Africa (*ibid.*, § 781), Spain (*ibid.*, § 782), Togo (*ibid.*, § 784) and Yugoslavia (*ibid.*, § 789).
128 Inter-American Commission on Human Rights, *Case 11.137 (Argentina)* (*ibid.*, § 810).

*Definition*

A precise definition of the term "direct participation in hostilities" does not exist. The Inter-American Commission on Human Rights has stated that the term "direct participation in hostilities" is generally understood to mean "acts which, by their nature or purpose, are intended to cause actual harm to enemy personnel and *matériel*".[129] Loss of protection against attack is clear and uncontested, as evidenced by several military manuals, when a civilian uses weapons or other means to commit acts of violence against human or material enemy forces.[130] But there is also a lot of practice which gives little or no guidance on the interpretation of the term "direct participation", stating, for example, that the assessment of direct participation has to be made on a case-by-case basis or simply repeating the general rule that direct participation causes civilians to lose protection against attack.[131] The military manuals of Ecuador and the United States give several examples of acts constituting direct participation in hostilities, such as serving as guards, intelligence agents or lookouts on behalf of military forces.[132] The Report on the Practice of the Philippines similarly considers that civilians acting as spies, couriers or lookouts lose their protection against attack.[133]

In a report on human rights in Colombia, the Inter-American Commission on Human Rights sought to distinguish "direct" from "indirect" participation:

> Civilians whose activities merely support the adverse party's war or military effort or otherwise only indirectly participate in hostilities cannot on these grounds alone be considered combatants. This is because indirect participation, such as selling goods to one or more of the armed parties, expressing sympathy for the cause of one of the parties or, even more clearly, failing to act to prevent an incursion by one of the armed parties, does not involve acts of violence which pose an immediate threat of actual harm to the adverse party.[134]

[129] Inter-American Commission on Human Rights, Third report on human rights in Colombia (*ibid.*, § 811).

[130] See, e.g., the military manuals of Australia (*ibid.*, § 820), Belgium (*ibid.*, § 821), Ecuador (*ibid.*, § 822), El Salvador (*ibid.*, § 823), India (*ibid.*, § 824), Netherlands (*ibid.*, § 825), United States (*ibid.*, §§ 827 and 830) and Yugoslavia (*ibid.*, § 831).

[131] See, e.g., Geneva Conventions, Common Article 3 (*ibid.*, § 754); Additional Protocol I, Article 51(3) (adopted by 77 votes in favour, one against and 16 abstentions) (*ibid.*, § 755); Additional Protocol II, Article 13(3) (adopted by consensus) (*ibid.*, § 756); Memorandum of Understanding on the Application of IHL between Croatia and the SFRY, para. 6 (*ibid.*, § 759); Agreement on the Application of IHL between the Parties to the Conflict in Bosnia and Herzegovina, para. 2.5 (*ibid.*, § 760); UN Secretary-General's Bulletin, Section 5.2 (*ibid.*, § 761); the practice of Australia (*ibid.*, § 762), Belgium (*ibid.*, § 792), Benin (*ibid.*, § 763), Canada (*ibid.*, § 764), Colombia (*ibid.*, § 765), Croatia (*ibid.*, § 766), Dominican Republic (*ibid.*, § 767), Ecuador (*ibid.*, § 768), France (*ibid.*, § 769), Germany (*ibid.*, § 770), India (*ibid.*, § 771), Indonesia (*ibid.*, § 772), Italy (*ibid.*, § 773), Jordan (*ibid.*, § 796), Kenya (*ibid.*, § 774), Madagascar (*ibid.*, § 775), Malaysia (*ibid.*, § 799), Netherlands (*ibid.*, § 776), New Zealand (*ibid.*, § 778), Spain (*ibid.*, § 782), Sweden (*ibid.*, § 783), Togo (*ibid.*, § 784), United Kingdom (*ibid.*, §§ 757 and 786), United States (*ibid.*, §§ 787–788 and 804–806), Yugoslavia (*ibid.*, § 789); Inter-American Commission on Human Rights, *Case 11.137 (Argentina)* (*ibid.*, § 810).

[132] Ecuador, *Naval Manual* (*ibid.*, § 822); United States, *Naval Handbook* (*ibid.*, § 830).

[133] Report on the Practice of the Philippines (*ibid.*, § 849).

[134] Inter-American Commission on Human Rights, Third report on human rights in Colombia (*ibid.*, § 811).

The distinction between direct and indirect participation had previously been developed by the Special Representative of the UN Commission on Human Rights for El Salvador.[135] It is clear, however, that international law does not prohibit States from adopting legislation that makes it a punishable offence for anyone to participate in hostilities, whether directly or indirectly.

The Report on the Practice of Rwanda makes a distinction between acts that constitute direct participation in international and non-international armed conflicts and excludes logistical support in non-international armed conflicts from acts that constitute direct participation. According to the responses of Rwandan army officers to a questionnaire referred to in the report, unarmed civilians who follow their armed forces during an international armed conflict in order to provide them with food, transport munitions or carry messages, for example, lose their status as civilians. In the context of a non-international armed conflict, however, unarmed civilians who collaborate with one of the parties to the conflict always remain civilians. According to the report, this distinction is justified by the fact that in internal armed conflicts civilians are forced to cooperate with the party that holds them in its power.[136]

It is fair to conclude, however, that outside the few uncontested examples cited above, in particular use of weapons or other means to commit acts of violence against human or material enemy forces, a clear and uniform definition of direct participation in hostilities has not been developed in State practice.[137]

Several military manuals specify that civilians working in military objectives, for example, munitions factories, do not participate directly in hostilities but must assume the risks involved in an attack on that military objective.[138] The injuries or death caused to such civilians are considered incidental to an attack upon a legitimate target which must be minimised by taking all feasible precautions in the choice of means and methods, for example, by attacking at night (see Rule 17). The theory that such persons must be considered quasi-combatants, liable to attack, finds no support in modern State practice.

### *Situations of doubt as to the character of a person*

The issue of how to classify a person in case of doubt is complex and difficult. In the case of international armed conflicts, Additional Protocol I has sought to resolve this issue by stating that "in case of doubt whether a person is a

[135] UN Commission on Human Rights, Special Representative on the Situation of Human Rights in El Salvador, Final Report (*ibid.*, § 853).

[136] Report on the Practice of Rwanda (*ibid.*, § 850).

[137] The ICRC has sought to clarify the notion of direct participation by means of a series of expert meetings that began in 2003.

[138] See, e.g., the military manuals of Australia (cited in Vol. II, Ch. 2, § 635), Canada (*ibid.*, § 636), Colombia (*ibid.*, § 637), Croatia (*ibid.*, § 638), Ecuador (*ibid.*, § 639), Germany (*ibid.*, § 640), Hungary (*ibid.*, § 641), Madagascar (*ibid.*, § 642), Netherlands (*ibid.*, § 643), New Zealand (*ibid.*, § 644), Spain (*ibid.*, §§ 645–646), Switzerland (*ibid.*, § 647) and United States (*ibid.*, § 648).

civilian, that person shall be considered to be a civilian".[139] Some States have written this rule into their military manuals.[140] Others have expressed reservations about the military ramifications of a strict interpretation of such a rule. In particular, upon ratification of Additional Protocol I, France and the United Kingdom expressed their understanding that this presumption does not override commanders' duty to protect the safety of troops under their command or to preserve their military situation, in conformity with other provisions of Additional Protocol I.[141] The US Naval Handbook states that:

> Direct participation in hostilities must be judged on a case-by-case basis. Combatants in the field must make an honest determination as to whether a particular civilian is or is not subject to deliberate attack based on the person's behavior, location and attire, and other information available at the time.[142]

In the light of the foregoing, it is fair to conclude that when there is a situation of doubt, a careful assessment has to be made under the conditions and restraints governing a particular situation as to whether there are sufficient indications to warrant an attack. One cannot automatically attack anyone who might appear dubious.

In the case of non-international armed conflicts, the issue of doubt has hardly been addressed in State practice, even though a clear rule on this subject would be desirable as it would enhance the protection of the civilian population against attack. In this respect, the same balanced approach as described above with respect to international armed conflicts seems justified in non-international armed conflicts.

[139] Additional Protocol I, Article 50(1) (adopted by consensus) (cited in Vol. II, Ch. 1, § 887).

[140] See, e.g., the military manuals of Argentina (*ibid.*, § 893), Australia (*ibid.*, § 894), Cameroon (*ibid.*, § 895), Canada (*ibid.*, § 896), Colombia (*ibid.*, § 897), Croatia (*ibid.*, § 898), Hungary (*ibid.*, § 900), Kenya (*ibid.*, § 901), Madagascar (*ibid.*, § 902), Netherlands (*ibid.*, § 903), South Africa (*ibid.*, § 904), Spain (*ibid.*, § 905), Sweden (*ibid.*, § 906) and Yugoslavia (*ibid.*, § 908).

[141] France, Declarations and reservations made upon ratification of Additional Protocol I (*ibid.*, § 888); United Kingdom, Declarations and reservations made upon ratification of Additional Protocol I (*ibid.*, § 889).

[142] United States, *Naval Handbook* (*ibid.*, § 830).

CHAPTER 2

# DISTINCTION BETWEEN CIVILIAN OBJECTS AND MILITARY OBJECTIVES

**Rule 7. The parties to the conflict must at all times distinguish between civilian objects and military objectives. Attacks may only be directed against military objectives. Attacks must not be directed against civilian objects.**

*Practice*

Volume II, Chapter 2, Section A.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts. The three components of this rule are interrelated and the practice pertaining to each reinforces the validity of the others. Belligerent reprisals against civilian objects are discussed in Chapter 41.

*International armed conflicts*

This rule is codified in Articles 48 and 52(2) of Additional Protocol I, to which no reservations have been made.[1] At the Diplomatic Conference leading to the adoption of the Additional Protocols, Mexico stated that Article 52 was so essential that it "cannot be the subject of any reservations whatsoever since these would be inconsistent with the aim and purpose of Protocol I and undermine its basis".[2] The prohibition on directing attacks against civilian objects is also set forth in Amended Protocol II and Protocol III to the Convention on Certain Conventional Weapons.[3] In addition, under the Statute of the International Criminal Court, "intentionally directing attacks against civilian objects, that is, objects which are not military objectives", constitutes a war crime in international armed conflicts.[4]

[1] Additional Protocol I, Article 48 (adopted by consensus) (cited in Vol. II, Ch. 2, § 1) and Article 52(2) (adopted by 79 votes in favour, none against and 7 abstentions) (*ibid.*, § 50).
[2] Mexico, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, § 79).
[3] Amended Protocol II to the CCW, Article 3(7) (*ibid.*, § 107); Protocol III to the CCW, Article 2(1) (*ibid.*, § 106).
[4] ICC Statute, Article 8(2)(b)(ii) (*ibid.*, § 108).

The obligation to distinguish between civilian objects and military objectives and the prohibition on directing attacks against civilian objects is contained in a large number of military manuals.[5] Sweden's IHL Manual, in particular, identifies the principle of distinction as set out in Article 48 of Additional Protocol I as a rule of customary international law.[6] Many States have adopted legislation making it an offence to attack civilian objects during armed conflict.[7] There are also numerous official statements invoking this rule.[8] This practice includes that of States not, or not at the time, party to Additional Protocol I.[9]

In their pleadings before the International Court of Justice in the *Nuclear Weapons case*, several States invoked the principle of distinction between civilian objects and military objectives.[10] In its advisory opinion, the Court stated that the principle of distinction was one of the "cardinal principles" of international humanitarian law and one of the "intransgressible principles of international customary law".[11]

When the ICRC appealed to the parties to the conflict in the Middle East in October 1973, i.e., before the adoption of Additional Protocol I, to respect the distinction between civilian objects and military objectives, the States concerned (Egypt, Iraq, Israel and Syria) replied favourably.[12]

### *Non-international armed conflicts*

The distinction between civilian objects and military objectives was included in the draft of Additional Protocol II but was dropped at the last moment as

[5] See, e.g., the military manuals of Argentina, Australia, Belgium, Benin, Cameroon, Canada, Croatia, France, Germany, Hungary, Israel, Netherlands, New Zealand, Nigeria, Philippines, Spain, Sweden, Switzerland, Togo and United States (*ibid.*, § 7), Indonesia (*ibid.*, § 8), Sweden (*ibid.*, § 9), Argentina, Australia, Belgium, Benin, Cameroon, Canada, Colombia, Croatia, Ecuador, France, Germany, Italy, Kenya, Lebanon, Madagascar, Netherlands, New Zealand, Nigeria, South Africa, Spain, Togo, United Kingdom, United States and Yugoslavia (*ibid.*, § 115), Argentina (*ibid.*, § 116) and United States (*ibid.*, § 117).

[6] Sweden, *IHL Manual* (*ibid.*, § 9).

[7] See, e.g., the legislation of Australia (*ibid.*, § 119), Azerbaijan (*ibid.*, § 120), Canada (*ibid.*, § 122), Congo (*ibid.*, § 123), Croatia (*ibid.*, § 124), Estonia (*ibid.*, § 126), Georgia (*ibid.*, § 127), Germany (*ibid.*, § 128), Hungary (*ibid.*, § 129), Ireland (*ibid.*, § 130), Italy (*ibid.*, § 131), Mali (*ibid.*, § 132), Netherlands (*ibid.*, § 133), New Zealand (*ibid.*, § 134), Norway (*ibid.*, § 136), Slovakia (*ibid.*, § 137), Spain (*ibid.*, § 138), United Kingdom (*ibid.*, § 140) and Yemen (*ibid.*, § 141); see also the draft legislation of Argentina (*ibid.*, § 118), Burundi (*ibid.*, § 121), El Salvador (*ibid.*, § 125), Nicaragua (*ibid.*, § 135) and Trinidad and Tobago (*ibid.*, § 139).

[8] See, e.g., the statements of Croatia (*ibid.*, 145), Egypt (*ibid.*, § 146), EC and its member States, USSR and United States (*ibid.*, § 147), France (*ibid.*, § 148), Iran (*ibid.*, § 149), Iraq (*ibid.*, § 150), Mexico (*ibid.*, § 151), Mozambique (*ibid.*, § 152), Slovenia (*ibid.*, § 155), Sweden (*ibid.*, § 156), United Arab Emirates (*ibid.*, § 157), United Kingdom (*ibid.*, §§ 158–159) and United States (*ibid.*, §§ 160–163).

[9] See, e.g., the practice of Egypt (*ibid.*, § 146), France (*ibid.*, §§ 7, 115 and 148), Indonesia (*ibid.*, § 8), Iran (*ibid.*, § 149), Iraq (*ibid.*, § 150), Kenya (*ibid.*, § 115), United Kingdom (*ibid.*, §§ 115 and 158–159) and United States (*ibid.*, §§ 7, 115, 117 and 160–163).

[10] See the pleadings before the ICJ in the *Nuclear Weapons case* by Egypt (*ibid.*, § 16), Iran (*ibid.*, § 23), Japan (*ibid.*, § 25), Sweden (*ibid.*, § 156) and United Kingdom (*ibid.*, § 32).

[11] ICJ, *Nuclear Weapons case*, Advisory Opinion (*ibid.*, § 179).

[12] See ICRC, The International Committee's Action in the Middle East (*ibid.*, § 102).

part of a package aimed at the adoption of a simplified text.[13] As a result, Additional Protocol II does not contain this principle nor the prohibition on directing attacks against civilian objects, even though it has been argued that the concept of general protection in Article 13(1) of Additional Protocol II is broad enough to cover it.[14] The prohibition on directing attacks against civilian objects has, however, been included in more recent treaty law applicable in non-international armed conflicts, namely Amended Protocol II to the Convention on Certain Conventional Weapons.[15] This prohibition is also contained in Protocol III to the Convention on Certain Conventional Weapons, which has been made applicable in non-international armed conflicts pursuant to an amendment of Article 1 of the Convention adopted by consensus in 2001.[16] In addition, the Second Protocol to the Hague Convention for the Protection of Cultural Property uses the principle of distinction between civilian objects and military objectives as a basis to define the protection due to cultural property in non-international armed conflicts.[17]

The Statute of the International Criminal Court does not explicitly define attacks on civilian objects as a war crime in non-international armed conflicts. It does, however, define the destruction of the property of an adversary as a war crime unless such destruction be "imperatively demanded by the necessities of the conflict".[18] Therefore, an attack against a civilian object constitutes a war crime under the Statute inasmuch as such an attack is not imperatively demanded by the necessities of the conflict. The destruction of property is subject to Rule 50 and the practice establishing that rule also supports the existence of this rule. It is also relevant that the Statute defines attacks again installations, material, units or vehicles involved in a humanitarian assistance or peacekeeping mission as a war crime in non-international armed conflicts, as long as these objects "are entitled to the protection given to ... civilian objects under the international law of armed conflict".[19]

In addition, the prohibition on directing attacks against civilian objects is included in other instruments pertaining also to non-international armed conflicts.[20]

[13] Draft Additional Protocol II submitted by the ICRC to the Diplomatic Conference leading to the adoption of the Additional Protocols, Article 24(1) (*ibid.*, § 2).

[14] Michael Bothe, Karl Joseph Partsch, Waldemar A. Solf (eds.), *New Rules for Victims of Armed Conflicts*, Martinus Nijhoff, The Hague, 1982, p. 677.

[15] Amended Protocol II to the CCW, Article 3(7) (cited in Vol. II, Ch. 2, § 107).

[16] Protocol III to the CCW, Article 2(1) (*ibid.*, § 106).

[17] Second Protocol to the Hague Convention for the Protection of Cultural Property, Article 6(a) (cited in Vol. II, Ch. 12, § 21).

[18] ICC Statute, Article 8(2)(e)(xii).

[19] ICC Statute, Article 8(2)(e)(iii).

[20] See, e.g., Memorandum of Understanding on the Application of IHL between Croatia and the SFRY, para. 6 (cited in Vol. II, Ch. 2, §§ 3, 60 and 111); Agreement on the Application of IHL between the Parties to the Conflict in Bosnia and Herzegovina, para. 2.5 (*ibid.*, §§ 4, 61 and 112); San Remo Manual, paras. 39 and 41 (*ibid.*, §§ 5 and 62); UN Secretary-General's Bulletin, Section 5.1 (*ibid.*, §§ 6, 63 and 113); Cairo Declaration on Human Rights in Islam, Article 3(b) (*ibid.*, § 109); Hague Statement on Respect for Humanitarian Principles (*ibid.*, § 110).

The obligation to distinguish between civilian objects and military objectives and the prohibition on directing attacks against civilian objects is included in military manuals which are applicable in or have been applied in non-international armed conflicts.[21] Numerous States have adopted legislation making it an offence to attack civilian objects during any armed conflict.[22] There is also some national case-law based on this rule.[23] There are, furthermore, a number of official statements pertaining to non-international armed conflicts which refer to this rule.[24] The statements before the International Court of Justice in the *Nuclear Weapons case* referred to above were couched in general terms applicable in all armed conflicts.

No official contrary practice was found with respect to either international or non-international armed conflicts. States and international organisations have generally condemned alleged attacks against civilian objects, for example, during the conflicts in Bosnia and Herzegovina, Lebanon, Sudan and between Iran and Iraq.[25] As early as 1938, the Assembly of the League of Nations stated that "objectives aimed at from the air must be legitimate military objectives and must be identifiable".[26] More recently, in a resolution on protection of civilians in armed conflicts adopted in 1999, the UN Security Council strongly condemned all "attacks on objects protected under international law".[27]

The jurisprudence of the International Court of Justice and of the International Criminal Tribunal for the Former Yugoslavia provides further evidence that the prohibition on attacking civilian objects is customary in both international and non-international armed conflicts.[28]

[21] See, e.g., the military manuals of Benin, Croatia, Germany, Nigeria, Philippines and Togo (*ibid.*, § 7) and Benin, Colombia, Croatia, Ecuador, Germany, Italy, Kenya, Lebanon, Madagascar, South Africa, Togo and Yugoslavia (*ibid.*, § 115).

[22] See, e.g., the legislation of Australia (*ibid.*, § 119), Azerbaijan (*ibid.*, § 120), Canada (*ibid.*, § 122), Congo (*ibid.*, § 123), Croatia (*ibid.*, § 124), Estonia (*ibid.*, § 126), Georgia (*ibid.*, § 127), Germany (*ibid.*, § 128), New Zealand (*ibid.*, § 134), Norway (*ibid.*, § 136), Spain (*ibid.*, § 138) and United Kingdom (*ibid.*, § 140); see also the legislation of Hungary (*ibid.*, § 129), Italy (*ibid.*, § 131) and Slovakia (*ibid.*, § 137), the application of which is not excluded in time of non-international armed conflict, and the draft legislation of Argentina (*ibid.*, § 118), Burundi (*ibid.*, § 121), El Salvador (*ibid.*, § 125), Nicaragua (*ibid.*, § 135) and Trinidad and Tobago (*ibid.*, § 139).

[23] See, e.g., Colombia, *Administrative Case No. 9276* (*ibid.*, § 142); Croatia, *RA. R. case* (*ibid.*, § 143).

[24] See the statements of the EC and its member States (*ibid.*, § 147) and of Mozambique (*ibid.*, § 152), Slovenia (*ibid.*, § 155), USSR (*ibid.*, § 147) and United States (*ibid.*, § 147).

[25] See, e.g., the statements of the EC and its member States (*ibid.*, § 147) and of Croatia (*ibid.*, § 145), Egypt (*ibid.*, § 146), Iran (*ibid.*, § 149), Slovenia (*ibid.*, § 155), USSR (*ibid.*, § 147), United States (*ibid.*, § 147) and United Kingdom (*ibid.*, § 159); UN Security Council, Res. 1052 (*ibid.*, § 164); UN General Assembly, Res. 50/193 (*ibid.*, 168) and Res. 51/112 (*ibid.*, § 169); UN Commission on Human Rights, Res. 1993/7 (*ibid.*, § 170), Res. 1994/75 (*ibid.*, § 171) and Res. 1995/89 (*ibid.*, § 173); Contact Group of the OIC (Egypt, Iran, Pakistan, Saudi Arabia, Senegal and Turkey), Letter to the President of the UN Security Council (*ibid.*, § 177).

[26] League of Nations, Assembly, Resolution adopted on 30 September 1938 (*ibid.*, § 167).

[27] UN Security Council, Res. 1265 (*ibid.*, § 165).

[28] ICJ, *Nuclear Weapons case*, Advisory Opinion (*ibid.*, § 179); ICTY, *Kupreškić case*, Judgement (*ibid.*, § 180) and *Kordić and Čerkez case*, Decision on the Joint Defence Motion and Judgement (*ibid.*, § 182).

The Plan of Action for the years 2000–2003, adopted by the 27th International Conference of the Red Cross and Red Crescent in 1999, requires that all parties to an armed conflict respect "the total ban on directing attacks ... against civilian objects".[29] The ICRC has called on parties to both international and non-international armed conflicts to respect the distinction between civilian objects and military objectives and not to direct attacks at civilian objects.[30]

*Interpretation*

Several States have stressed that the rule contained in Article 52(2) of Additional Protocol I, which provides that "attacks shall be limited strictly to military objectives", only prohibits direct attacks against civilian objects and does not deal with the question of incidental damage resulting from attacks directed against military objectives.[31] The purpose of these statements is to emphasise that an attack which affects civilian objects is not unlawful as long as it is directed against a military objective and the incidental damage to civilian objects is not excessive. This consideration is taken into account in the formulation of the current rule by the use of the words "attacks *directed* against". The same consideration applies *mutatis mutandis* to Rule 1.

**Rule 8. In so far as objects are concerned, military objectives are limited to those objects which by their nature, location, purpose or use make an effective contribution to military action and whose partial or total destruction, capture or neutralisation, in the circumstances ruling at the time, offers a definite military advantage.**

*Practice*

Volume II, Chapter 2, Section B.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts.

[29] 27th International Conference of the Red Cross and Red Crescent, Plan of Action for the years 2000–2003 (adopted by consensus) (*ibid.*, § 178).
[30] See, e.g., the practice of the ICRC (*ibid.*, §§ 185–186 and 188–193).
[31] See the reservations and declarations made upon ratification of the Additional Protocols and other statements by Australia (*ibid.*, § 51), Canada (*ibid.*, §§ 52 and 71), France (*ibid.*, § 53), Federal Republic of Germany (*ibid.*, § 75), Italy (*ibid.*, § 54), Netherlands (*ibid.*, § 80), New Zealand (*ibid.*, § 55), United Kingdom (*ibid.*, §§ 56 and 86) and United States (*ibid.*, § 92).

ហៅកូនជើងរាវកោះលក្ខ ឆ្លោះទៅផ្ទះជាតិលេខ៨ ភូមិស្នួនពេជ្ជ សង្កាត់សន្ធាត់ ខណ្ឌកំបូលរាជធានីភ្នំពេញ ជនត្រូវចោទឈ្មោះ អ៊ីយ ជាអ្នកជាត់ម៉ូតូជនរងគ្រោះ ម៉ាកនិច សេរីឆ្នាំ២០២៥ ពណ៌ខៀសៃ មិនមានផ្លាកលេខ ចំណែកឯជនត្រូវចោទឈ្មោះ ផ្ទៅ ដឹះម៉ូតូជាមួយជនមិនស្គាល់ឈ្មោះ ជាអ្នកលើកម៉ូតូដែលជាត់ចានដឹះគេចខ្លួនទៅបាត់។ ខ្លួនមិនបានដឹះម៉ូតូបិទតូចទេ។ បន្ទាប់ពីជនត្រូវចោទឈ្មោះ បញ្ញា ហៅ ផ្ទៅ យកម៉ូតូបានហើយក៏យកទៅលក់ ប៉ុន្តែខ្លួនមិនដឹងថាលក់បានតម្លៃប៉ុន្មានទេ ដឹងត្រឹមតែជនត្រូវចោទឈ្មោះ បញ្ញា ហៅ ផ្ទៅ ២ស្រីលុយមកខ្លួនចំនួន ១០០$ (មួយរយដុល្លារអាមេរិក)។ ខ្លួនមិនដឹងថាជនត្រូវចោទឈ្មោះ បញ្ញា ហៅ ផ្ទៅ យកម៉ូតូទៅលក់នៅទីណាទេ។ កាលពីថ្ងៃមិនចាំ ខែឧសភា ឆ្នាំ២០២៥ ខ្លួនទិងបក្សពួក ឈ្មោះ បញ្ញា ហៅ ផ្ទៅ, ឈ្មោះ ហៀ និងឈ្មោះ យន កិយ បានដឹះម៉ូតូទៅលួចម៉ូតូជនរងគ្រោះនៅខណ្ឌកំពង់ស្តី ម៉ាក HONDA DREAM សេរី២០២៥ ពណ៌ខ្មៅ មិនចាំផ្លាកលេខ ហើយជនត្រូវចោទឈ្មោះ បញ្ញា ហៅ ផ្ទៅ ជាអ្នកយកទៅលក់ ប៉ុន្តែខ្លួនមិនដឹងថាលក់បានតម្លៃប៉ុន្មានទេ ដឹងត្រឹមតែជនត្រូវចោទឈ្មោះ បញ្ញា ហៅ ផ្ទៅ ២ស្រីលុយមកខ្លួនចំនួន ៧០$ (ចិតសិបដុល្លារអាមេរិក)។ ខ្លួនតុំផ្ទាប់ប្រើប្រាស់គ្រឿងញៀនទេ។ ចំពោះម៉ូតូម៉ាកនិច សេរីឆ្នាំ២០២០ ពណ៌លឿង មិនចាំផ្លាកលេខ ជាកម្មសិទ្ធិរបស់ឈ្មោះ លីន ភេទប្រុស អាយុ១៧ឆ្នាំ។ ជនត្រូវចោទឈ្មោះ បញ្ញា ហៅ ផ្ទៅ ភេទប្រុស អាយុប្រហែល១៧ឆ្នាំ មានទីលំនៅភូមិលាតស់ ឃុំនិណាត់អំពិល ស្រុកអង្គស្នួល ខេត្តកណ្តាល។ ជនត្រូវចោទឈ្មោះ ហៀ ភេទប្រុស អាយុ១៧ឆ្នាំ មានទីលំនៅភូមិព្រៃពួច ឃុំព្រៃពួច ស្រុកអង្គស្នួល ខេត្តកណ្តាល។ ចំណែកជនត្រូវចោទឈ្មោះ អ៊ីយ និងបក្សពួកចំនួន ០៨ទៀត ខ្លួនមិនស្គាល់ទីលំនៅទេ។ សម្ភារៈកិច្ចយកតំណែងបានដកហូតម៉ូតូម៉ាកនិច សេរីឆ្នាំ២០២០ ពណ៌លឿង មិនចាំផ្លាកលេខ និងទូរស័ព្ទម៉ាក IPHONE XS MAX ពណ៌មាស មានស៊ីមកាតលេខ ០៦៦ ៨៩១ ៧១៣។

**ដោយយោងតាម** លិខិតសម្រេចរារាំងខ្លួនបណ្តោះអាសន្ន លេខ ៦៣២២ ។ខ។ ជ.ត.ស លើជនត្រូវចោទឈ្មោះ យន កិយ ចុះថ្ងៃទី០៧ ខែតុលា ឆ្នាំ២០២៥ របស់ចៅក្រមស៊ើបសួរនៃសាលាដំបូងរាជធានីភ្នំពេញ។

**ដោយយោងតាម** លិខិតបង្គាប់ឲ្យរារាំងខ្លួនលេខ ៨៩៣៦ ។ខ។ ជ.ឃ.ជ លើជនត្រូវចោទឈ្មោះ យន កិយ ចុះថ្ងៃទី០៧ ខែតុលា ឆ្នាំ២០២៥ របស់ចៅក្រមស៊ើបសួរនៃសាលាដំបូងរាជធានីភ្នំពេញ។

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**ដោយយោងតាម** លិខិតបង្គាប់ឲ្យរារាំងខ្លួនលេខ ៨៩៣៣ ។ខ។ ជ.ឃ.ជ លើជនត្រូវចោទឈ្មោះ ស៊ុនឌន សុវណ្ណារ៉ា ចុះថ្ងៃទី០៧ ខែតុលា ឆ្នាំ២០២៥ របស់ចៅក្រមស៊ើបសួរនៃសាលាដំបូងរាជធានីភ្នំពេញ។

**ដោយយោងតាម** លិខិតចាត់ឲ្យស៊ើបសួរជំនួស លេខ ៨៣២ ។ខ។ ក្រ.ទ ចុះថ្ងៃទី១៨ ខែតុលា ឆ្នាំ២០២៥ របស់ចៅក្រមស៊ើបសួរនៃសាលាដំបូងរាជធានីភ្នំពេញ។

**ដោយយោងតាម** លិខិតសំណើសុំផ្តល់មេធាវីការពារសិទ្ធិឲ្យជនត្រូវចោទជាអនីតិជន លេខ ៣១៨៣ ។ម២៥ ចុះថ្ងៃទី១៦ ខែតុលា ឆ្នាំ២០២៥ របស់ចៅក្រមស៊ើបសួរនៃសាលាដំបូងរាជធានីភ្នំពេញ។

**ដោយយោងតាម** លិខិតចាត់តាំងមេធាវីការពារជូនជនត្រីក្រោយបានតតាំងតវ៉ា លេខ ១០៦៨ស្រ.ត.ម២៥ ចុះថ្ងៃទី២០ ខែតុលា ឆ្នាំ២០២៥ របស់ភាពីហាលីយប្រធានក្រុមការងារប្រចាំសាលាដំបូងរាជធានីភ្នំពេញ នៃសាលារាជធានីព្រះសីហនុ ។

**ដោយយោងតាម** លិខិតបង្គាប់ឲ្យនាំជនត្រូវចោទមកសួរនាំ លេខ ៨០៨ ។ខ។ ក្រ.ទ ចុះថ្ងៃទី២៣ ខែតុលា ឆ្នាំ២០២៥ របស់ចៅក្រមស៊ើបសួរនៃសាលាដំបូងរាជធានីភ្នំពេញ។

**ដោយយោងតាម** លិខិតស្នើរកើតឡើងការចាត់ឲ្យស៊ើបសួរជំនួស លេខ ៨៣១៩ ។ខ។ ម.ប.ព ចុះថ្ងៃទី២១ ខែធ្នូ ឆ្នាំ២០២៥ របស់ចៅក្រមស៊ើបសួរនៃសាលាដំបូងរាជធានីភ្នំពេញ។



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# ស៊ីន សុរម្យនា

**Soromnear SIN (Mrs.)**

Co-Principal

អាសយដ្ឋាន ២F TK Roundabout ផ្លូវលេខ ២៨៩
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ជាតិ សាសនា ព្រះមហាក្សត្រ

ក្រសួងបរិស្ថាន
លេខ:.....បរ.ស្ត/ប

# ប្រកាស
# ស្តីពី
# ចំណាត់ថ្នាក់គម្រោងអតិថន្ធសម្រាប់ការវាយតម្លៃហេតុប៉ះពាល់បរិស្ថាន

## រដ្ឋមន្ត្រីក្រសួងបរិស្ថាន

- បានឃើញរដ្ឋធម្មនុញ្ញនៃព្រះរាជាណាចក្រកម្ពុជា
  បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០៨២៣/១៩៨១ ចុះថ្ងៃទី២២ ខែសីហា ឆ្នាំ២០២៣ ស្តីពីការតែងតាំងរាជរដ្ឋាភិបាលនៃព្រះរាជាណាចក្រកម្ពុជា
  បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០២២៤/២០៥ ចុះថ្ងៃទី២១ ខែកុម្ភៈ ឆ្នាំ២០២៤ ស្តីពីការតែងតាំងបំពេញបន្ថែមសមាសភាពរាជរដ្ឋាភិបាលនៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/០៩២៤/១១៦៩ ចុះថ្ងៃទី២០ ខែកញ្ញា ឆ្នាំ២០២៤ ស្តីពីការកែសម្រួល និងតែងតាំងសមាសភាពរាជរដ្ឋាភិបាលនៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រឹត្យលេខ នស/រកត/១១២៤/១៤៧៧ ចុះថ្ងៃទី២០ ខែវិច្ឆិកា ឆ្នាំ២០២៤ ស្តីពីការកែសម្រួល និងតែងតាំងបំពេញបន្ថែមសមាសភាពរាជរដ្ឋាភិបាលនៃព្រះរាជាណាចក្រកម្ពុជា
- បានឃើញព្រះរាជក្រមលេខ នស/រកម/០៦១៨/០១២ ចុះថ្ងៃទី២៨ ខែមិថុនា ឆ្នាំ២០១៨ ដែលប្រកាសឱ្យប្រើច្បាប់ស្តីពីការរៀបចំ និងការប្រព្រឹត្តទៅនៃគណៈរដ្ឋមន្ត្រី
- បានឃើញព្រះរាជក្រមលេខ នស/រកម/០១៩៦/២១ ចុះថ្ងៃទី២៤ ខែមករា ឆ្នាំ១៩៩៦ ដែលប្រកាសឱ្យប្រើច្បាប់ស្តីពីការបង្កើតក្រសួងបរិស្ថាន
- បានឃើញព្រះរាជក្រមលេខ នស/រកម/០៦២៣/០០៧ ចុះថ្ងៃទី២៩ ខែមិថុនា ឆ្នាំ២០២៣ ដែលប្រកាសឱ្យប្រើក្រមបរិស្ថាននិងធនធានធម្មជាតិ
- បានឃើញអនុក្រឹត្យលេខ ២៣៤ អនក្រ.បក ចុះថ្ងៃទី១៧ ខែវិច្ឆិកា ឆ្នាំ២០២១ ស្តីពីការរៀបចំនិងការប្រព្រឹត្តទៅរបស់ក្រសួងបរិស្ថាន
- បានឃើញអនុក្រឹត្យលេខ ៧២ អនក្រ.បក ចុះថ្ងៃទី១១ ខែសីហា ឆ្នាំ១៩៩៩ ស្តីពីកិច្ចដំណើរការវាយតម្លៃហេតុប៉ះពាល់បរិស្ថាន
- យោងតាមតម្រូវការចាំបាច់របស់ក្រសួងបរិស្ថាន



អគារលេខ១ ផ្លូវ២០០ ក្រុមលេខ១ ភូមិ២ ១ ១ ១

**ប្រការ១...**

ប្រកាសនេះកំណត់ការធ្វើចំណាត់ថ្នាក់នៃការវាយតម្លៃហេតុប៉ះពាល់បរិស្ថាន សម្រាប់គម្រោងអភិវឌ្ឍ ដែលតម្រូវឲ្យរៀបចំរបាយការណ៍វាយតម្លៃហេតុប៉ះពាល់បរិស្ថានពេញលេញ ពោលការណ៍វាយតម្លៃហេតុប៉ះពាល់បរិស្ថានដំបូង ឬកិច្ចសន្យាការពារបរិស្ថាន ដើម្បីជួយសម្រួល និងផ្តល់ការណែនាំដល់ម្ចាស់គម្រោងអភិវឌ្ឍ ក្នុងការអនុវត្តនូវនិតិវិធីនៃការវាយតម្លៃហេតុប៉ះពាល់បរិស្ថាន សម្រាប់គម្រោងអភិវឌ្ឍឲ្យមានប្រសិទ្ធភាពនៅក្នុងព្រះរាជាណាចក្រកម្ពុជា។

**ប្រការ២...**

ប្រកាសនេះមានវិសាលភាពអនុវត្តចំពោះប្រភេទគម្រោងអភិវឌ្ឍដែលបានស្នើឡើង ព្រមទាំងសកម្មភាពដែលមានស្រាប់និងកំពុងដំណើរការរបស់បុគ្គលឯកជន ក្រុមហ៊ុនឯកជន ក្រុមហ៊ុនចម្រុះវិញ្ញ ឬក្រុមហ៊ុនវិញ្ញ ក្រសួង-ស្ថាប័នវិញ្ញ ដូចមាននៅក្នុងភាគខ១បសម្គ័ន្ធនៃប្រកាសនេះ។

**ប្រការ៣...**

វាក្យសព្ទសំខាន់ៗដែលប្រើក្នុងប្រកាសនេះ ត្រូវបានកំណត់និយមន័យដូចខាងក្រោម៖

១-**គម្រោងអភិវឌ្ឍ៖** សំដៅលើគម្រោងនានាយោតទាំងសាធារណៈ និងឯកជន មានដូចជាគម្រោងស្នើសុំ គម្រោងមានស្រាប់ និងគម្រោងកំពុងដំណើរការ។

២-**ការវាយតម្លៃហេតុប៉ះពាល់បរិស្ថាន៖** សំដៅដល់ការសិក្សាលើធនធានរូបសាស្ត្រ ធនធានជីវសាស្ត្រ ធនធានសេដ្ឋកិច្ចសង្គម និងសម្បត្តិវប្បធម៌ ហើយភាគច្រើនពឹងផ្អែកលើទិន្នន័យមានស្រាប់ឬទិន្នន័យចម្លងដែលនៅក្នុង និងជុំវិញតំបន់គម្រោង ដើម្បីជាមូលដ្ឋានក្នុងការកំណត់ ព្យាករណ៍ និងការវិភាគនូវសក្តានុពលហេតុប៉ះពាល់បរិស្ថាននិងសង្គម ដែលអាចកើតមានឡើងដោយសារសកម្មភាពគម្រោង ដើម្បីកសាងការការពារ ដោយកាត់បន្ថយហេតុប៉ះពាល់បរិស្ថានអវិជ្ជមានឲ្យដល់កម្រិតអប្បបរមា និងបង្កើតហេតុប៉ះពាល់បរិស្ថានវិជ្ជមានឲ្យដល់កម្រិតអតិបរមា។

៣-**ពាណិជ្ជករ៖** សំដៅដល់សហគ្រាសកម្មន្តសាល ដែលមាន ឬរំពឹងថានឹងមានឧបករណ៍ ម៉ាស៊ីន សម្ភារៈ និងបរិក្ខារ ដែលត្រូវប្រើនៅក្នុងសហគ្រាស ដើម្បីផលិតផលិតផល ដែលមានទុនសមមូលសរុបប្រើនជាង ៥០០ ០០០(ប្រាំរយពាន់) ដុល្លារអាមេរិក។

៤-**សហគ្រាសធុនមធ្យម៖** សំដៅដល់សហគ្រាសកម្មន្តសាល ដែលមាន ឬរំពឹងថានឹងមានឧបករណ៍ ម៉ាស៊ីន និងបរិក្ខារ ដែលត្រូវប្រើនៅក្នុងសហគ្រាស ដើម្បីផលិតផលិតផល ដែលមានទុនសមមូលសរុបចន្លោះពី ២៥០ ០០០(ពីរសែនហាសិបពាន់) ទៅក្រោម ៥០០ ០០០ (ប្រាំរយពាន់) ដុល្លារអាមេរិក។

៥-**សហគ្រាសធុនតូច៖** សំដៅដល់សហគ្រាសកម្មន្តសាល ដែលមាន ឬរំពឹងថានឹងមានឧបករណ៍ ម៉ាស៊ីន និងបរិក្ខារ ដែលត្រូវប្រើនៅក្នុងសហគ្រាស ដើម្បីផលិតផលិតផល ដែលមានទុនសមមូលសរុបចន្លោះពី ៥០ ០០០(ហាសិបពាន់) ទៅក្រោម ២៥០ ០០០(ពីរសែនហាសិបពាន់) ដុល្លារអាមេរិក។

**ព្រះរាជាណាចក្រកម្ពុជា**
**ជាតិ សាសនា ព្រះមហាក្សត្រ**

**ក្រសួងបរិស្ថាន**

លេខ:.....ប.ស្ត/ប

ប្រកាស
ស្តីពី
ចំណាត់ថ្នាក់ការប្រើប្រាស់ដីសម្រាប់ការងារកសិកម្ម និងការងារមិនកសិកម្ម

ក្នុងក្រសួងបរិស្ថាន

- ១ យោងតាមច្បាប់ស្តីពីការការពារបរិស្ថានរបស់ព្រះរាជាណាចក្រកម្ពុជា
  យោងតាមព្រះរាជក្រឹត្យលេខ នស/រកត/០៥០៥/០០១ ចុះថ្ងៃទី២៦ ខែសីហា ឆ្នាំ២០០៣ ស្តីពីការតែងតាំងនូវក្រសួងនានានៃព្រះរាជាណាចក្រកម្ពុជា
  យោងតាមព្រះរាជក្រឹត្យលេខ នស/រកត/០១០២/០០៦ ចុះថ្ងៃទី១ ខែកម្ភៈ ឆ្នាំ២០២៤ ស្តីពីការកែសម្រួលរចនាសម្ព័ន្ធក្រសួងបរិស្ថាន
- ២ យោងតាមព្រះរាជក្រឹត្យលេខ នស/រកត/០៩០៥/១១៤ ចុះថ្ងៃទី២០ ខែកញ្ញា ឆ្នាំ២០២៥ ស្តីពីការកែសម្រួលនូវនិយតកម្មសហការរវាងក្រសួងនានានៃព្រះរាជាណាចក្រកម្ពុជា
- ៣ យោងតាមព្រះរាជក្រឹត្យលេខ នស/រកត/១២០២/១៤០ ចុះថ្ងៃទី២០ ខែកុម្ភៈ ឆ្នាំ២០២៤ ស្តីពីការតែងតាំងលោកជ ណារ៉ា ជាប្រធានក្រសួងបរិស្ថាន
- ៤ យោងតាមព្រះរាជក្រមលេខ នស/រក/០២១២/០១២ ចុះថ្ងៃទី២៤ ខែមីនា ឆ្នាំ២០១២ ស្តីពីការរៀបចំ និងការប្រព្រឹត្តទៅនៃសណ្ឋាគារ
- ៥ យោងតាមច្បាប់ស្តីពីការការពារ និងការអភិវឌ្ឍធនធានជលផល
- ៦ យោងតាមច្បាប់ស្តីពីការការពារ និងការគ្រប់គ្រងតំបន់ការពារធម្មជាតិ
- ៧ យោងតាមច្បាប់ស្តីពីការការពារ និងការគ្រប់គ្រងធនធានជលផល
- ៨ យោងតាមច្បាប់ស្តីពីការការពារ និងការគ្រប់គ្រងធនធានកសិកម្ម
- ៩ យោងតាមការចាំបាច់របស់ក្រសួងបរិស្ថាន



អាសយដ្ឋាន លេខ១០០ ផ្លូវលេខ១០០ សង្កាត់ទួលទំពូង១ ខណ្ឌចំការមន រាជធានីភ្នំពេញ ទូរស្ព័ទ: 023 236 004 / 023 236 006

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**ប្រការ៧.**

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**ប្រការ១០.**

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**ប្រការ១២.**

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ដោយការណ៍។ ដោយពេល ៩០(កៅសិប)ថ្ងៃនេះ ត្រូវអស់សុពលភាពនៅពេលដែលក្រសួងបរិស្ថានបានផ្តល់យោបល់ ទោះបីជាយោបល់នោះជាយោបល់បដិសេធ ឬឯកភាព ឬបង្ហាប់ឱ្យមានការកែលើដោយការណ៍ក៏ដោយ។

**ប្រការ១០...**

ប្រសិនបើគម្រោងអភិវឌ្ឍជួបមានភ្ជាប់នៅក្នុងតារាងឧបសម្ព័ន្ធនៃប្រកាសនេះ អាចកែប្រែបានតាមយោ-ប្រកាសរបស់រដ្ឋមន្ត្រីក្រសួងហិរញ្ញវត្ថុ។

**ប្រការ១១...**

ប្រកាសលេខ ០២១ ប្រក ប.ស ចុះថ្ងៃទី០៣ ខែកុម្ភៈ ឆ្នាំ២០២០ ស្តីពីចំណាត់ថ្នាក់នៃការកំណត់តម្លៃហេតុប៉ះពាល់បរិស្ថានសម្រាប់គម្រោងអភិវឌ្ឍន៍ និងបទប្បញ្ញត្តិទាំងឡាយណាដែលផ្ទុយនឹងប្រកាសនេះ ត្រូវទុកជានិរាករណ៍។

**ប្រការ១២...**

អគ្គនាយកនៃគ្រប់អគ្គនាយកដ្ឋាន អគ្គាធិការនៃអគ្គាធិការដ្ឋាន នាយកដ្ឋានសវនកម្មផ្ទៃក្នុង នាយកដ្ឋានកំណត់តម្លៃហេតុប៉ះពាល់បរិស្ថាន និងគ្រប់អង្គភាពក្រោមឱវាទក្រសួងហិរញ្ញវត្ថុ ត្រូវចូលរួមគោរពអនុវត្តប្រកាសនេះ តាមការកិច្ចរៀងៗខ្លួនចាប់ពីថ្ងៃចុះហត្ថលេខានេះតទៅ។

ថ្ងៃ ខែ ឆ្នាំម្សាញ់ សប្តស្ក ព.ស.២៥៦៨

ធ្វើនៅរាជធានីភ្នំពេញ ថ្ងៃទី ០3 ខែកុម្ภៈ ឆ្នាំ២០២៥

រដ្ឋមន្ត្រី

**ហ៊ីង សុជណ្ឌ**

**កន្លែងទទួល៖**
- ទីស្តីការគណៈរដ្ឋមន្ត្រី
- ក្រសួងសេដ្ឋកិច្ចនិងហិរញ្ញវត្ថុ
- ខុទ្ទកាល័យសម្តេចមហាបវរធិបតី នាយករដ្ឋមន្ត្រី
- ខុទ្ទកាល័យឯកឧត្តមឧបនាយករដ្ឋមន្ត្រី
- រដ្ឋបាលរាជធានី ខេត្ត
- ដូចប្រការ១២ (ដើម្បីអនុវត្ត)
- រាជកិច្ច
- ឯកសារ កាលប្បវត្តិ

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# FOREWORD BY DR. JAKOB KELLENBERGER

**President of the International Committee of the Red Cross**

The laws of war were born of confrontation between armed forces on the battlefield. Until the mid-nineteenth century, these rules remained customary in nature, recognised because they had existed since time immemorial and because they corresponded to the demands of civilisation. All civilisations have developed rules aimed at minimising violence – even this institutionalised form of violence that we call war – since limiting violence is the very essence of civilisation.

By making international law a matter to be agreed between sovereigns and by basing it on State practice and consent, Grotius and the other founding fathers of public international law paved the way for that law to assume universal dimensions, applicable both in peacetime and in wartime and able to transcend cultures and civilizations. However, it was the nineteenth-century visionary Henry Dunant who was the true pioneer of contemporary international humanitarian law. In calling for "some international principle, sanctioned by a Convention and inviolate in character" to protect the wounded and all those trying to help them, Dunant took humanitarian law a decisive step forward. By instigating the adoption, in 1864, of the Geneva Convention for the amelioration of the condition of the wounded and sick in armed forces in the field, Dunant and the other founders of the International Committee of the Red Cross laid the cornerstone of treaty-based international humanitarian law.

This treaty was revised in 1906, and again in 1929 and 1949. New conventions protecting hospital ships, prisoners of war and civilians were also adopted. The result is the four Geneva Conventions of 1949, which constitute the foundation of international humanitarian law in force today. Acceptance by the States of these Conventions demonstrated that it was possible to adopt, in peacetime, rules to attenuate the horrors of war and protect those affected by it.

Governments also adopted a series of treaties governing the conduct of hostilities: the Declaration of St Petersburg of 1868, the Hague Conventions of 1899 and 1907, and the Geneva Protocol of 1925, which bans the use of chemical and bacteriological weapons.

These two normative currents merged in 1977 with the adoption of the two Protocols additional to the 1949 Geneva Conventions, which brought up to date both the rules governing the conduct of hostilities and those protecting war victims.

More recently, other important conventions were added to this already long list of treaties, in particular the 1980 Convention on Certain Conventional Weapons and its five Protocols, the 1997 Ottawa Convention on the Prohibition of Anti-Personnel Landmines, the 1998 Statute of the International Criminal Court, the 1999 Protocol to the 1954 Convention for the Protection of Cultural Property in the Event of Armed Conflict and the 2000 Optional Protocol on the Involvement of Children in Armed Conflict.

This remarkable progress in codifying international humanitarian law should not, however, cause us to ignore customary humanitarian law. There are three reasons why this body of law remains extremely important.

First, while the Geneva Conventions enjoy universal adherence today, this is not yet the case for other major treaties, including the Additional Protocols. These treaties apply only between or within States that have ratified them. Rules of customary international humanitarian law on the other hand, sometimes referred to as "general" international law, bind all States and, where relevant, all parties to the conflict, without the need for formal adherence.

Second, international humanitarian law applicable to non-international armed conflict falls short of meeting the protection needs arising from these conflicts. As admitted by the diplomatic conferences that adopted them, Article 3 common to the Geneva Conventions and Protocol II additional to those Conventions represent only the most rudimentary set of rules. State practice goes beyond what those same States have accepted at diplomatic conferences, since most of them agree that the essence of customary rules on the conduct of hostilities applies to *all* armed conflicts, international and non-international.

Last, customary international law can help in the interpretation of treaty law. It is a well-established principle that a treaty must be interpreted in good faith and with due regard for all relevant rules of international law.

With this in mind, one better understands the mandate assigned to the ICRC by the 26th International Conference of the Red Cross and Red Crescent (Geneva, 1995), when the organization was asked to:

> prepare, with the assistance of experts in international humanitarian law representing various geographical regions and different legal systems, and in consultation with experts from governments and international organisations, a report on customary rules of international humanitarian law applicable in international and non-international armed conflicts, and to circulate the report to States and competent international bodies.

The ICRC accepted this mandate with gratitude and humility – gratitude because it appreciates the international community's confidence in it as symbolised by this assignment, and humility since it was fully aware of the difficulty involved in describing the present state of customary international law on the basis of all available sources.

The ICRC charged two members of its Legal Division with the task of carrying out this study. Under the guidance of a Steering Committee composed of 12 experts of international repute, the ICRC engaged in a large-scale consultation process involving over 100 eminent authorities. Considering this report primarily as a work of scholarship, the ICRC respected the academic freedom both of the report's authors and of the experts consulted, the idea being to capture the clearest possible "photograph" of customary international humanitarian law as it stands today.

The ICRC believes that the study does indeed present an accurate assessment of the current state of customary international humanitarian law. It will therefore duly take the outcome of this study into account in its daily work, while being aware that the formation of customary international law is an ongoing process. The study should also serve as a basis for discussion with respect to the implementation, clarification and development of humanitarian law.

Lastly, the ICRC is pleased that this study has served to emphasise the universality of humanitarian law. All traditions and civilizations have contributed to the development of this law, which is today part of the common heritage of mankind.

The ICRC would like to express its deep gratitude to the experts who gave freely of their time and expertise, to the staff of its Legal Division, and in particular to the authors, who, in bringing this unique project to its conclusion, refused to be discouraged by the enormity of the task.

In presenting this study to the States party to the Geneva Conventions, to National Red Cross and Red Crescent Societies and other humanitarian organisations, to judges and scholars and to other interested parties, the ICRC's sincere hope is that it will clarify the meaning and significance of a number of rules of international humanitarian law and that it will ensure greater protection for war victims.

## FOREWORD BY DR. ABDUL G. KOROMA

**Judge at the International Court of Justice**

Sadly, it cannot be said that the incidence of armed conflict has become any rarer since the end of the Second World War. Rather, a host of conflicts across the world, both international and non-international, have highlighted as never before the extent to which civilians have become targets and the growing need to ensure the protection of the wounded, the sick, detainees and the civilian population afforded to them by the rules of international humanitarian law. Opinions vary as to the reason for the increasing number of violations of international humanitarian law. Is it a lack of awareness of the rules on the part of those who should observe them? Is it the inadequacy of the rules even where they are known? Is it weak mechanisms for enforcing the rules? Or is it sheer disregard for the rules? To some extent, there is truth in each. For international humanitarian law to be more effective, not one but all of these facets of the problem need to be addressed. Clearly, the first step in achieving the goal of universal respect for humanitarian rules must be the articulation of what the rules require; only then can the question of how to improve upon them be considered.

This study of customary international humanitarian law and its role in protecting the victims of war is both timely and important for a number of reasons. The relevant treaty law covers a wide variety of aspects of warfare, but treaty law, by its very nature, is unable to provide a complete picture of the state of the law. While treaties bind those States that have adhered to them, without the existence of customary law, non-parties would be free to act as they wished. In addition, because they are written down, treaty rules are well defined and must be clear as to the standard of conduct they require; but since a treaty is the result of an agreement between the parties, the instruction provided by a treaty rule is only as useful as the degree of genuine agreement achieved. Written rules cannot be vague or open to divergent interpretations. Customary international law, while being notorious for its imprecision, may be no less useful than treaty law, and may in fact actually have certain advantages over it. For example, it is widely accepted that general customary international law binds States that have not persistently and openly dissented in relation to a rule while that rule was in the process of formation. Also, one of the most important bases for the success of a treaty regime is the extent of the political will to achieve the

purposes of that treaty, and that is as important, if not more so, than the need for the rules to be in written form.

Accordingly, this study, which aims to articulate the existing customary rules on the subject, can only help improve respect for international humanitarian law and offer greater protection to victims of war. Knowledge of the relevant customary law on the part of the various actors involved in its application, dissemination and enforcement, such as military personnel, governmental authorities, courts and tribunals and governmental and non-governmental organisations, is a vital first step towards enhancing the effectiveness of international humanitarian law. This study is an invaluable contribution to that goal.

# FOREWORD BY DR. YVES SANDOZ

**Member of the International Committee of the Red Cross; former Director of the ICRC Department of International Law and Policy; Lecturer, Universities of Geneva and Fribourg**

The decision to go ahead with a study on customary international humanitarian law depended primarily on the answer to two questions – how useful it would be and how much it would cost – which together give us the famous cost-effectiveness ratio, something that must be taken into account in any undertaking, even if its purpose is humanitarian.

To be sure, applying the criterion of cost-effectiveness is not necessarily appropriate for humanitarian work since it would be cynical to attach a financial price to life and well-being. Nevertheless, those who run an organisation like the ICRC have a moral duty to seek maximum efficiency in the use to which they put their human and financial resources (while seeking to increase those resources). For, as long as there are wars, it will never be possible to do enough, or to do it well enough, to protect and assist those affected.

The international community has given the ICRC the onerous mandate to "work for the faithful application of international humanitarian law". This imposes a duty of constant vigilance. For the ICRC, impartiality means not only avoiding discrimination between the different victims of a given conflict, but also constantly striving to ensure that all the victims of all the conflicts on the planet are treated equitably, without regional or ethnic preference and independently of the emotions sparked by media-selected images.

This concern to avoid discrimination and to ensure impartiality on a global scale guides the ICRC in choosing its activities. When the time comes to make these choices, meeting the victims' urgent need for food and medical care logically remains the priority and claims far and away the largest part of the organisation's budget. How could paying for a meeting of experts take precedence over delivering sacks of flour?

The choices, however, are not that stark. Experience has shown that nothing is to be gained by swinging blindly into action when the fighting starts. Many organisations have learned the hard way that you cannot be effective without first understanding the situation in which you are working, the mentality of those involved in the conflict and the society and culture of those you seek to aid. And if you must first understand, you must also be understood, not only by the combatants – who must know and accept the red cross and red crescent

emblems and the principles of humanity, impartiality and neutrality symbolised by that emblem – but also by your intended beneficiaries.

The ICRC's long experience has convinced it that in order to be effective it has to engage in a wide range of activities, activities that must not be viewed in isolation but rather in relation to one another. The complementary nature of those activities has grown ever clearer with the passing years.

Each of these activities is linked to other activities, all fitting together to form a coherent edifice. That is, humanitarian action in the field prompts discussion, which then develops in meetings of experts of various kinds before eventually taking the form of treaty provisions or new international institutions such as the International Criminal Court, whose Statute was adopted in 1998. The next task is to work towards universal acceptance of the new rules by convincing the States through their governments, their parliaments, their senior officials, etc. of the importance of respecting such rules. Lastly, individual States must be encouraged to adopt national laws incorporating the new rules into domestic legislation, to ensure that the public knows and understands basic humanitarian principles, to ensure that international humanitarian law is adequately taught in schools and universities, and to integrate the subject into military training. The ultimate goal of all this work is to benefit the victims of war and facilitate the task of those seeking to help them.

But it will never be enough. War will remain cruel and there will never be adequate compliance with rules aimed at curbing that cruelty. New problems will arise requiring new forms of action and new discussion about the adequacy of existing rules or their application to new realities. And so the great wheel of law and humanitarian endeavour will continue to turn in the direction of a goal that may never be fully attained, that is, an end to armed conflict. Indeed, that goal sometimes seems to recede amid the pain and anguish of countless wars; but we must always struggle back towards it.

A lawyer in an office working on the development of international humanitarian law is doing a job different from that of the surgeon treating wounded people or a nutritionist in a refugee camp. But all three are in fact pursuing the same objective, each with his or her own place in the indispensable circle of law and humanitarian action.

Ascertaining the role played by legal experts is nevertheless not enough to justify a study on customary international humanitarian law. As part of the process outlined above, the ICRC has in recent years devoted significant resources to considering the state of the law and to spreading knowledge of it. But those resources are limited and choices must therefore be made between various options within the legal domain. Should priority be given to developing new law, promoting national legislation, clarifying certain aspects of practical implementation, consulting experts on sensitive questions, training the

miliitary or mobilising public opinion as a means of bringing about greater compliance? All these activities are necessary to some extent, but the question is where the priority belongs. The singular thing about the proposed study on customary law was that it was ill-suited to compromise and to half-measures. The choice was between doing it – and ensuring that one had the means to do it well – and foregoing it on the grounds that its value would rely totally on its credibility.

The decision was eventually taken to go ahead with the project. The ICRC's Legal Division was assigned this difficult task and given the means to do a thorough job. Lavish means were not necessary because the ICRC is lucky enough to be able to count on volunteer work by a wide range of the world's leading experts. And we cannot thank them enough for their generosity and commitment. But the administrative work involved and the tasks of organising meetings and translating a number of texts all obviously cost money, as does tapping the sources, in all corners of the world, on which the study is based.

How then can such an investment be justified? Why devote large-scale resources to clarifying what is customary in a branch of law that is so widely codified and by whose treaties the vast majority of States are bound? Many reasons can be given for this, but I will cite two which seem to me essential.

The first is that, despite everything, there remain in international humanitarian law vast but little-known reaches that it is important to explore more fully. This is particularly the case for the rules restricting the use of certain means and methods of warfare. These rules, which were laid down in the Additional Protocols of 1977, very directly concern the military, since it is they who have to implement these rules. If they are sometimes rather vague, this is because at the time of their adoption it was not possible for everyone to agree on a more precise formulation.

The problem is all the more sensitive as the great majority of modern-day armed conflicts are internal, while most of the rules in question are formally applicable only to international conflicts. For the average person, this is completely absurd. Indeed, how can one claim the right to employ against one's own population means of warfare which one has prohibited for use against an invader? Nevertheless, for historical reasons, precisely this distinction has been made. To be sure, treaties drawn up today tend to soften the effects of this distinction. It exists all the same, and the study on customary law makes it possible to ascertain the extent to which it has been blurred in practice and according to the *opinio juris* of the States.

The ICRC study also represents an excellent opportunity to view international humanitarian law in its entirety, asking what purpose it has served and how it has been applied, studying the relevance of its various provisions and determining whether some of the problems encountered today do not call for a fresh look at this or that provision.

The study plays a capital role in answering these questions, especially as the problem is not to know whether given rules exist or not but rather how to interpret them. But this is no easy matter. Whatever else, the study's conclusions will serve as a valuable basis for identifying areas in the law that should be clarified or developed and for engaging in whatever dialogue or negotiation is necessary to strengthen the coherence of military doctrines and those of the jurisprudence of national and international courts, present or future. Therefore, coherence is indispensable to international humanitarian law's credibility.

The second reason is to be found not so much in the results of the study but in the study itself. Doing research throughout the world to find out how the rules are complied with, translated, taught and applied, then collating that information in order to ascertain both the successes and the remaining gaps – is all this not the best way to ensure more effective application of these rules, to stimulate interest, research and new ideas and, above all, to encourage dialogue between the world's different cultures? This undertaking has particular significance at a time of renewed tension for humanity when religious and cultural frictions are being exploited for violent ends. The Geneva Conventions have been universally embraced. The rules of international humanitarian law represent a kind of common heritage of mankind, with its roots in all human cultures. They can therefore be viewed as a cement between different cultures. It is thus essential to remind people of those rules and persuade them to comply. The study has been a golden opportunity to do this.

With the fruit of this enormous labour before us, one might think that the circle has been closed. The contrary is the case, however, and I would like to conclude by stressing that this study will have achieved its goal only if it is considered not as the end of a process but as a beginning. It reveals what has been accomplished but also what remains unclear and what remains to be done.

The study is a still photograph of reality, taken with great concern for absolute honesty, that is, without trying to make the law say what one wishes it would say. I am convinced that this is what lends the study international credibility. But though it represents the truest possible reflection of reality, the study makes no claim to be the final word. It is not all-encompassing – choices had to be made – and no one is infallible. In the introduction to *De jure belli ac pacis*, Grotius says this to his readers: "I beg and adjure all those into whose hands this work shall come, that they assume towards me the same liberty which I have assumed in passing upon the opinions and writings of others." What better way to express the objective of those who carried out this study? May it be read, discussed and commented on. May it prompt renewed examination of international humanitarian law and of the means of bringing about greater compliance and of developing the law. Perhaps it could even help go beyond the

subject of war and spur us to think about the value of the principles on which the law is based in order to build universal peace – the utopian imperative – in the century on which we have now embarked.

The study on customary international humanitarian law is more than the record of a worthy project – it is above all a challenge for the future.

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Jean-Marie Henckaerts
Louise Doswald-Beck

# INTRODUCTION

International humanitarian law has its origins in the customary practices of armies as they developed over the ages and on all continents. The "laws and customs of war", as this branch of international law has traditionally been called, was not applied by all armies, and not necessarily vis-à-vis all enemies, nor were all the rules the same. However, the pattern that could typically be found was restraint of behaviour vis-à-vis combatants and civilians, primarily based on the concept of the soldier's honour. The content of the rules generally included the prohibition of behaviour that was considered unnecessarily cruel or dishonourable, and was not only developed by the armies themselves, but was also influenced by the writings of religious leaders.

The most significant landmark from the point of view of cataloguing these customs in one document was the drafting by Professor Francis Lieber of the Instructions for the Government of Armies of the United States in the Field, promulgated as General Order No. 100 by President Lincoln in 1863 during the American Civil War. The Lieber Code, as it is now known, strongly influenced the further codification of the laws and customs of war and the adoption of similar regulations by other States. Together, they formed the basis of the draft of an international convention on the laws and customs of war presented to the Brussels Conference in 1874. Although this conference did not adopt a binding treaty, much of its work was later used in the development of the 1899 and 1907 Hague Conventions and Declarations. These treaties did not codify all aspects of custom, but its continued importance was reaffirmed in the so-called "Martens clause", first inserted in the preamble to the 1899 Hague Convention (II), which provides that:

> Until a more complete code of the laws of war is issued, the High Contracting Parties think it right to declare that in cases not included in the Regulations adopted by them, populations and belligerents remain under the protection and empire of the principles of international law, as they result from the usages established between civilized nations, from the laws of humanity and the requirements of the public conscience.

The importance attributed to customary law, despite, or because of, its partial codification, was most clearly seen in the reliance placed on it by the various war crimes trials after both the First and Second World Wars.[1]

[1] See Knut Dörmann, *Elements of War Crimes under the Rome Statute of the International Criminal Court: Sources and Commentary*, Cambridge University Press, 2003.

The driving force behind the development of international humanitarian law has been the International Committee of the Red Cross (ICRC), founded in 1863. It initiated the process which led to the conclusion of the Geneva Conventions for the protection of the victims of war of 1864, 1906, 1929 and 1949. It was at the origin of the 1899 Hague Convention (III) and 1907 Hague Convention (X), which adapted, respectively, the 1864 and 1906 Geneva Conventions to maritime warfare and were the precursors of the Geneva Convention for the Amelioration of the Condition of the Wounded, Sick and Shipwrecked Members of Armed Forces at Sea of 1949. It took the initiative to supplement the Geneva Conventions that led to the adoption in 1977 of two Additional Protocols. The ICRC has both encouraged the development of and been involved in the negotiation of numerous other treaties, such as the 1980 Convention on Certain Conventional Weapons, the 1997 Ottawa Convention banning anti-personnel landmines and the 1998 Statute of the International Criminal Court. Recognition of this role is reflected in the mandate given to the ICRC by the international community to work for "the faithful application of international humanitarian law applicable in armed conflicts" and for "the understanding and dissemination of knowledge of international humanitarian law applicable in armed conflicts and to prepare any development thereof".[2]

More than 50 years have now passed since the Geneva Conventions of 1949 were adopted and almost 30 years since the adoption of their Additional Protocols. These years have, unfortunately, been marked by a proliferation of armed conflicts affecting every continent. Throughout these conflicts, the Geneva Conventions – and in particular Article 3 common to the four Conventions, applicable in non-international armed conflicts – together with their Additional Protocols have provided legal protection to war victims, namely persons who do not or no longer participate in hostilities (the wounded, sick and shipwrecked, persons deprived of their liberty for reasons related to the conflict, and civilians). Nevertheless, there have been countless violations of these treaties and of basic humanitarian principles, resulting in suffering and

[2] Statutes of the International Red Cross and Red Crescent Movement, adopted by the 25th International Conference of the Red Cross, Geneva, 23–31 October 1986, Article 5(2)(c) and (g) respectively. The Statutes were adopted by the States party to the Geneva Conventions and the members of the International Red Cross and Red Crescent Movement. This mandate was first given to the ICRC by Article 7 of the Statutes of the International Red Cross adopted by the 13th International Conference of the Red Cross, The Hague, 23–27 October 1928, according to which "all complaints in regard to alleged violations of the international Conventions, and in general, all questions calling for examination by a specifically neutral body, shall remain the exclusive province of the International Committee of the Red Cross". Subsequently, Article 6(4) and (7) of the Statutes of the International Red Cross adopted by the 18th International Conference of the Red Cross, Toronto, 22 July–8 August 1952, stated that the ICRC "undertakes the tasks incumbent on it under the Geneva Conventions, works for the faithful application of these Conventions and takes cognizance of complaints regarding alleged breaches of the humanitarian Conventions" and "works for the continual improvement and diffusion of the Geneva Conventions".

death which might have been avoided had international humanitarian law been respected.

The general opinion is that violations of international humanitarian law are not due to the inadequacy of its rules, but rather to a lack of willingness to respect them, to a lack of means to enforce them and to uncertainty as to their application in some circumstances, but also to ignorance of the rules on the part of political leaders, commanders, combatants and the general public.

The International Conference for the Protection of War Victims, convened in Geneva from 30 August to 1 September 1993, discussed, in particular, ways and means to address violations of international humanitarian law but did not propose the adoption of new treaty provisions. Instead, in its Final Declaration, adopted by consensus, the Conference reaffirmed "the necessity to make the implementation of humanitarian law more effective" and called upon the Swiss government "to convene an open-ended intergovernmental group of experts to study practical means of promoting full respect for and compliance with that law, and to prepare a report for submission to the States and to the next session of the International Conference of the Red Cross and Red Crescent".[3]

To this end, the Intergovernmental Group of Experts for the Protection of War Victims met in Geneva in January 1995 and adopted a series of recommendations aimed at enhancing respect for international humanitarian law, in particular by means of preventive measures that would ensure better knowledge and more effective implementation of the law. Recommendation II of the Intergovernmental Group of Experts proposed that:

> The ICRC be invited to prepare, with the assistance of experts in IHL [international humanitarian law] representing various geographical regions and different legal systems, and in consultation with experts from governments and international organisations, a report on customary rules of IHL applicable in international and non-international armed conflicts, and to circulate the report to States and competent international bodies.[4]

In December 1995, the 26th International Conference of the Red Cross and Red Crescent endorsed this recommendation and officially mandated the ICRC to prepare a report on customary rules of international humanitarian law applicable in international and non-international armed conflicts.[5] The present study is the outcome of the research carried out pursuant to this mandate.

[3] International Conference for the Protection of War Victims, Geneva, 30 August–1 September 1993, Final Declaration, *International Review of the Red Cross*, No. 296, 1993, p. 381.

[4] Meeting of the Intergovernmental Group of Experts for the Protection of War Victims, Geneva, 23–27 January 1995, Recommendation II, *International Review of the Red Cross*, No. 310, 1996, p. 84.

[5] 26th International Conference of the Red Cross and Red Crescent, Geneva, 3–7 December 1995, Resolution 1, International humanitarian law: From law to action; Report on the follow-up to the International Conference for the Protection of War Victims, *International Review of the Red Cross*, No. 310, 1996, p. 58.

**Purpose of the study**

International humanitarian treaty law is well developed and covers a wide variety of aspects of warfare, offering protection to victims of war and limiting permissible means and methods of warfare. The four Geneva Conventions of 1949 and their Additional Protocols of 1977 provide an extensive regime for the protection of persons who do not or no longer participate in armed conflict. The regulation of the means and methods of warfare in treaty law goes back to the 1868 St. Petersburg Declaration, the 1899 and 1907 Hague Conventions and the 1925 Geneva Gas Protocol and has most recently been addressed in the 1972 Biological Weapons Convention, the 1977 Additional Protocols, the 1980 Convention on Certain Conventional Weapons and its five Protocols, the 1993 Chemical Weapons Convention and the 1997 Ottawa Convention banning anti-personnel landmines. The protection of cultural property in the event of armed conflict is regulated in detail in the 1954 Hague Convention and its two Protocols. The 1998 Statute of the International Criminal Court contains a list of war crimes subject to its jurisdiction.

There are, however, two important impediments to applying these treaties to current armed conflicts. First, treaties apply only to the States that have ratified them. This means that different treaties of international humanitarian law apply to different armed conflicts depending on which treaties the States involved have ratified. While nearly all States have ratified the four Geneva Conventions of 1949, Additional Protocol I has not yet gained universal adherence. As the Protocol is applicable only between parties to a conflict that have ratified it, its efficacy today is limited because several States that have been involved in international armed conflicts are not a party to it. Similarly, Additional Protocol II is only applicable in armed conflicts taking place on the territory of a State that has ratified it. While some 150 States have ratified this Protocol, several States in which non-international armed conflicts are taking place have not. In these non-international armed conflicts, common Article 3 of the four Geneva Conventions often remains the only applicable treaty provision.

Secondly, this wealth of treaty law does not regulate a large proportion of today's armed conflicts in sufficient detail. The primary reason for this is that the majority of current armed conflicts are non-international, which are subject to far fewer treaty rules than international conflicts, although their number is increasing. In fact, only a limited number of treaties apply to non-international armed conflicts, namely the Convention on Certain Conventional Weapons, as amended, the Statute of the International Criminal Court, the Ottawa Convention banning anti-personnel landmines, the Chemical Weapons Convention, the Hague Convention for the Protection of Cultural Property and its Second Protocol and, as already mentioned, Additional Protocol II and Article 3 common to the four Geneva Conventions. While common Article 3 is of

fundamental importance, it only provides a rudimentary framework of minimum standards and does not contain much detail. Additional Protocol II usefully supplements common Article 3, but it is still less detailed than the rules governing international armed conflicts contained in Additional Protocol I.

Additional Protocol II contains a mere 15 substantive articles, whereas Additional Protocol I has more than 80. These figures may not be all important, but they nonetheless show that there is a significant difference in terms of regulation between international and non-international armed conflicts, with the latter suffering from a lack of rules, definitions, details and requirements in treaty law. This is the prevailing situation, even though the majority of armed conflicts today are non-international.

Specifically, Additional Protocol II contains only a very rudimentary regulation of the conduct of hostilities. Article 13 provides that "the civilian population as such, as well as individual civilians, shall not be the object of attack . . . unless and for such time as they take a direct part in hostilities". Unlike Additional Protocol I, Additional Protocol II does not contain, however, specific rules and definitions with respect to the principles of distinction and proportionality.

Common sense would suggest that such rules, and the limits they impose on the way war is waged, should be equally applicable in international and non-international armed conflicts. The fact that in 2001 the Convention on Certain Conventional Weapons was amended to extend its scope to non-international armed conflicts is an indication that this notion is gaining currency within the international community.

This study provides evidence that many rules of customary international law apply in both international and non-international armed conflicts and shows the extent to which State practice has gone beyond existing treaty law and expanded the rules applicable to non-international armed conflicts. In particular, the gaps in the regulation of the conduct of hostilities in Additional Protocol II have largely been filled through State practice, which has led to the creation of rules parallel to those in Additional Protocol I, but applicable as customary law to non-international armed conflicts.

Knowledge of the rules of customary international law is therefore of use to the many actors involved in the application, dissemination and enforcement of international humanitarian law, such as governmental authorities, arms bearers, international organisations, components of the International Red Cross and Red Crescent Movement and non-governmental organisations. A study on customary international humanitarian law may also be helpful in reducing the uncertainties and the scope for argument inherent in the concept of customary international law.

Knowledge of the rules of customary international law may also be of service in a number of situations where reliance on customary international law is required. This is especially relevant for the work of courts and international

organisations. Indeed, courts are frequently required to apply customary international law. This is the case, for example, for the International Criminal Tribunal for the Former Yugoslavia which, pursuant to Article 3 of its Statute, has jurisdiction over violations of the laws and customs of war. As a result, the Tribunal has had to determine whether certain violations of international humanitarian law were violations under customary international law over which the Tribunal has jurisdiction. In addition, in many countries, customary international law is a source of domestic law and can be invoked before and adjudicated by national courts. Customary international law is also relevant to the work of international organisations in that it generally represents the law binding upon all member States.

## Scope of the study

This study has not sought to determine the customary nature of each treaty rule of international humanitarian law and, as a result, does not necessarily follow the structure of existing treaties. Rather, it has sought to analyse issues in order to establish what rules of customary international law can be found inductively on the basis of State practice in relation to these issues. As the approach chosen does not analyse each treaty provision with a view to establishing whether or not it is customary, it cannot be concluded that any particular treaty rule is *not* customary merely because it does not appear as such in this study. In this regard, it is important to note that the great majority of the provisions of the Geneva Conventions of 1949, including common Article 3, are considered to be customary law, and the same is true for the 1907 Hague Regulations (see *infra*). Furthermore, given that the Geneva Conventions have now been ratified by 192 States, they are binding on nearly all States as a matter of treaty law.

It was decided not to research customary law applicable to naval warfare as this area of law was recently the subject of a major restatement, namely the San Remo Manual on Naval Warfare.[6] The general rules contained in the manual were nevertheless considered useful for the assessment of the customary nature of rules that apply to all types of warfare.

A number of topics could not be developed in sufficient detail for inclusion in this edition, but they might be included in a future update. These include, for example, the Martens clause, identification of specifically protected persons and objects, and civil defence.

Where relevant, practice under international human rights law has been included in the study. This was done because international human rights law

[6] Louise Doswald-Beck (ed.), *San Remo Manual on International Law Applicable to Armed Conflicts at Sea*, Prepared by international lawyers and naval experts convened by the International Institute of Humanitarian Law, Cambridge University Press, 1995.

continues to apply during armed conflicts, as indicated by the express terms of the human rights treaties themselves, although some provisions may, subject to certain conditions, be derogated from in time of public emergency. The continued applicability of human rights law during armed conflict has been confirmed on numerous occasions by the treaty bodies that have analysed State behaviour, including during armed conflict, and by the International Court of Justice (see introduction to Chapter 32). This study does not purport, however, to provide an assessment of customary human rights law. Instead, human rights law has been included in order to support, strengthen and clarify analogous principles of international humanitarian law. In addition, while they remain separate branches of international law, human rights law and international humanitarian law have directly influenced each other, and continue to do so, and this for mainly three reasons. First, an assessment of conformity with human rights law at times involves a determination of respect for or breach of international humanitarian law. For example, measures taken in states of emergency will be unlawful under human rights law if, *inter alia*, they violate international humanitarian law.[7] Conversely, international humanitarian law contains concepts the interpretation of which needs to include a reference to human rights law, for example, the provision that no one may be convicted of a crime other than by a "regularly constituted court affording all the judicial guarantees which are recognised as indispensable".[8] Secondly, human rights-type provisions are to be found in international humanitarian law, for example, Article 75 of Additional Protocol I and Articles 4 and 6 of Additional Protocol II, and humanitarian law-type provisions are to be found in human rights law, for example, the provisions on child soldiers in the Convention on the Rights of the Child and its Protocol on the Involvement of Children in Armed Conflict. Thirdly, and most significantly, there is extensive practice by States and by international organisations commenting on the behaviour of States during armed conflict in the light of human rights law.[9]

## Assessment of customary international law

The Statute of the International Court of Justice describes customary international law as "a general practice accepted as law".[10] It is generally agreed that

[7] Article 4 of the International Covenant on Civil and Political Rights, Article 15 of the European Convention on Human Rights and Article 27 of the American Convention on Human Rights all state that derogation measures by States must not be "inconsistent with their other obligations under international law". The African Charter on Human and Peoples' Rights does not allow for derogation.

[8] Common Article 3(1)(d) of the Geneva Conventions of 1949.

[9] See, in particular, Chapter 32 on Fundamental Guarantees.

[10] ICJ Statute, Article 38(1)(b).

the existence of a rule of customary international law requires the presence of two elements, namely State practice (*usus*) and a belief that such practice is required, prohibited or allowed, depending on the nature of the rule, as a matter of law (*opinio juris sive necessitatis*). As the International Court of Justice stated in the *Continental Shelf case*: "It is of course axiomatic that the material of customary international law is to be looked for primarily in the actual practice and *opinio juris* of States."[11] The exact meaning and content of these two elements has been the subject of much academic writing. The approach taken in this study to determine whether a rule of general customary international law exists is a classic one, set out by the International Court of Justice in a number of cases, in particular in the *North Sea Continental Shelf cases*.[12]

### *State practice*

In the assessment of State practice, two separate issues need to be addressed, namely the selection of practice that contributes to the creation of customary international law and the assessment of whether this practice establishes a rule of customary international law.

#### Selection of State practice

The practice collected for the purpose of this study, and which is summarised in Volume II, was selected on the basis of the following criteria.

(i) Both physical and verbal acts of States constitute practice that contributes to the creation of customary international law. Physical acts include, for example, battlefield behaviour, the use of certain weapons and the treatment provided to different categories of persons. Verbal acts include military manuals, national legislation, national case-law, instructions to armed and security forces, military communiqués during war, diplomatic protests, opinions of official legal advisers, comments by governments on draft treaties, executive decisions and regulations, pleadings before international tribunals, statements in international organisations and at international conferences and government positions taken with respect to resolutions of international organisations.

The approach to consider both physical and verbal acts as practice follows that taken by leading bodies in the field of international law and by States themselves. The International Court of Justice has taken into consideration official statements as State practice in a number of cases, including the *Fisheries*

[11] ICJ, *Continental Shelf case (Libyan Arab Jamahiriya v. Malta)*, Judgement, 3 June 1985, *ICJ Reports 1985*, pp. 29–30, § 27.
[12] ICJ, *North Sea Continental Shelf cases*, Judgement, 20 February 1969, *ICJ Reports 1969*, p. 3.

*Jurisdiction cases*,[13] the *Nicaragua case*,[14] and the *Gabčíkovo-Nagymaros Project case*.[15]

The International Law Commission has similarly considered verbal acts of States as contributing towards the creation of customary international law. It did so, for example, in the context of the Draft Articles on State Responsibility where it considered the concept of a "state of necessity" to be customary.[16]

The International Criminal Tribunal for the Former Yugoslavia has stated that in appraising the formation of customary rules of international humanitarian law, "reliance must primarily be placed on such elements as official pronouncements of States, military manuals and judicial decisions".[17]

The International Law Association considers that "verbal acts, and not only physical acts, of States count as State practice" and points out that "the practice of the international tribunals is replete with examples of verbal acts being treated as examples of practice. Similarly, States regularly treat this sort of act in the same way."[18]

Whether physical or verbal, relevant practice only consists of *official* practice. Hence, the physical acts of parties to armed conflicts contribute only to the

[13] ICJ, *Fisheries Jurisdiction case (United Kingdom v. Iceland)*, Joint separate opinion of Judges Forster, Bengzon, Jiménez de Aréchaga, Singh and Ruda, 25 July 1974, *ICJ Reports 1974*, p. 47; Separate opinion of Judge Dillard, 25 July 1974, *ICJ Reports 1974*, pp. 56–58; Separate opinion of Judge De Castro, 25 July 1974, *ICJ Reports 1974*, pp. 81–88; Separate opinion of Judge Waldock, 25 July 1974, *ICJ Reports 1974*, pp. 119–120; Dissenting opinion of Judge Gros, 25 July 1974, *ICJ Reports 1974*, p. 135; Dissenting opinion of Judge Petrén, 25 July 1974, *ICJ Reports 1974*, p. 161. The judges inferred the existence of customary rules from claims made to areas of the sea, without considering whether they had been enforced; see also the opinions of the same judges in the *Fisheries Jurisdiction case (Federal Republic of Germany v. Iceland)*, 25 July 1974, *ICJ Reports 1974*, p. 175.

[14] ICJ, *Case concerning Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States)*, Merits, Judgement, 27 June 1986, *ICJ Reports 1986*, p. 100, § 190. The Court found further confirmation of the validity as customary international law of the principle of the prohibition of the use of force expressed in Article 2(4) of the UN Charter in the fact that it was "frequently referred to in statements by State representatives as being not only a principle of customary international law but also a fundamental or cardinal principle of such law".

[15] ICJ, *Case concerning the Gabčíkovo-Nagymaros Project (Hungary v. Slovakia)*, Judgement, 25 September 1997, *ICJ Reports 1997*, pp. 39–46, §§ 49–58. The Court declared the customary nature of the concept of a "state of necessity", which could preclude the wrongfulness of an act not in conformity with international law. In so doing, the Court relied on materials, including many official statements, used by the ILC in drafting the corresponding article of the Draft Articles on State Responsibility.

[16] ILC, Draft Articles on State Responsibility, *Yearbook of the ILC*, 1980, Vol. II, Part 2, UN Doc. A/CN.4/SER.A/1980/Add.1 (Part 2), 1980, pp. 34–52. The ILC based its conclusions on statements of government representatives or lawyers. For another example, see *Yearbook of the ILC*, 1950, Vol. II, pp. 368–372. The Commission referred to the following categories of evidence of customary international law: international instruments, decisions of national and international courts and national legislation, as well as to diplomatic correspondence, opinions of national legal advisers and the practice of international organisations.

[17] ICTY, *Tadić case*, Case No. IT-94-AR72, Decision on the defence motion for interlocutory appeal on jurisdiction, 2 October 1995, § 99.

[18] ILA, Final Report of the Committee on the Formation of Customary (General) International Law, Statement of Principles Applicable to the Formation of General Customary International Law, Report of the Sixty-Ninth Conference, London, 2000, Principle 4 and commentary (a) thereto, pp. 725–726 (hereinafter "ILA Report").

creation of rules of customary international law as long as they represent official practice.

Abstention from certain conduct is also noted where relevant. Such omissions will be discussed in more detail below.

(ii) The practice of the executive, legislative and judicial organs of a State can contribute to the formation of customary international law. The State comprises the executive, legislative and judicial branches of government. The organs of these branches can engage the international responsibility of the State and adopt positions that affect its international relations.[19] In case of conflict between the positions of various organs of a State, the practice is considered internally inconsistent and does not contribute to the formation of customary law.

(iii) Acts do not contribute to the formation of customary international law if they are never disclosed.[20] This is so as long as such acts are not known to other States and, consequently, do not give them an opportunity, if they so wished, to react to them. In order to count, practice has to be public or communicated to some extent. This does not necessarily mean that the practice has to be published or communicated to the whole world, but at least it should be communicated to one other State or relevant international organisation, including the ICRC. States communicate with the ICRC in the context of its international mandate to assist in the implementation of international humanitarian law and the fact that it may "take cognizance of any complaints based on alleged breaches of [international humanitarian law]".[21] Hence, communications to the ICRC, while often confidential, are not purely private acts and count as State practice.

(iv) Although decisions of international courts are subsidiary sources of international law,[22] they do not constitute State practice. This is because, unlike national courts, international courts are not State organs. Their decisions have nevertheless been included because a finding by an international court that a rule of customary international law exists constitutes persuasive evidence to that effect. In addition, because of the precedential value of their decisions, international courts can also contribute to the emergence of a rule of customary international law by influencing the subsequent practice of States and international organisations.

[19] For a more elaborate reasoning and references to international case-law on this point, see ILA Report, *supra* note 18, Principle 9, pp. 728–729, referring to PCIJ, *Nottebohm case (second phase) (Liechtenstein v. Guatemala)*, Judgement, 6 April 1955, *ICJ Reports 1955*, p. 22 and the *Lotus case (France v. Turkey)*, Judgement, 7 September 1927, PCIJ Ser. A, No. 10, pp. 23, 26 and 28–29.

[20] See, e.g., ILA Report, *supra* note 18, Principle 5, p. 726.

[21] Statutes of the International Red Cross and Red Crescent Movement, *supra* note 2, Article 5(2)(c).

[22] ICJ Statute, Article 38(1)(d).

What States claim before international courts, however, is clearly a form of State practice.

(v) International organisations have international legal personality and can participate in international relations in their own capacity, independently of their member States. In this respect, their practice can contribute to the formation of customary international law.[23] Therefore, this study has included, for example, the UN Secretary-General's Bulletin on observance by United Nations forces of international humanitarian law as relevant practice, in particular because "the instructions in the Bulletin reflect the quintessential and most fundamental principles of the laws and customs of war", even though it is recognised that "the Secretary-General did not consider himself necessarily constrained by the customary international law provisions of the Conventions and Protocols as the lowest common denominator by which all national contingents would otherwise be bound".[24]

In addition, official ICRC statements, in particular appeals and memoranda on respect for international humanitarian law, have been included as relevant practice because the ICRC has international legal personality.[25] The practice of the organisation is particularly relevant in that it has received an official mandate from States "to work for the faithful application of international humanitarian law applicable in armed conflicts and ... to prepare any development thereof".[26] The view that ICRC practice counts is also adopted by the International Criminal Tribunal for the Former Yugoslavia, which has regarded the organisation's practice as an important factor in the emergence of customary rules applicable to non-international armed conflicts.[27] In addition, the official reactions which ICRC statements elicit are State practice.

(vi) The negotiation and adoption of resolutions by international organisations or conferences, together with the explanations of vote, are acts of the States involved. With a few exceptions, it is recognised that resolutions are normally not binding in themselves and therefore the value accorded to any particular resolution depends on its content, its degree of acceptance and the

[23] See, e.g., ICJ, *Case concerning Reservations to the Convention on Genocide*, Advisory Opinion, 28 May 1951, *ICJ Reports 1951*, p. 25. The Court took into account the depository practice of the UN Secretary-General.

[24] Daphna Shraga, "UN Peacekeeping Operations: Applicability of International Humanitarian Law and Responsibility for Operations-Related Damage", *American Journal of International Law*, Vol. 94, 2000, p. 408.

[25] See, e.g., ICTY, *The Prosecutor v. Blagoje Simić et al.*, Case No. IT-95–9-PT, Decision on the prosecution motion under Rule 73 for a ruling concerning the testimony of a witness, 27 July 1999, released as a public document by Order of 1 October 1999, § 46 and footnote 9.

[26] Statutes of the International Red Cross and Red Crescent Movement, *supra* note 2, Article 5(2)(c) and (g).

[27] ICTY, *Tadić case, supra* note 17, § 109.

consistency of State practice outside it.[28] The greater the support for the resolution, the more importance it is to be accorded. Information on reasons for abstentions or negative votes is therefore indicated in this study where relevant, for such votes are often based on disagreement with certain parts of the resolution and not necessarily with the resolution as a whole. Likewise, statements made by States during debates on the drafting of resolutions constitute State practice and have been included where relevant.

(vii) The practice of armed opposition groups, such as codes of conduct, commitments made to observe certain rules of international humanitarian law and other statements, does not constitute State practice as such. While such practice may contain evidence of the acceptance of certain rules in non-international armed conflicts, its legal significance is unclear and it has therefore been listed under "Other Practice" in Volume II.

Assessment of State practice

State practice has to be weighed to assess whether it is sufficiently "dense" to create a rule of customary international law.[29] To establish a rule of customary international law, State practice has to be virtually uniform, extensive and representative. Although some time will normally elapse before there is sufficient practice to satisfy these criteria, no precise amount of time is required. As stated by the International Court of Justice in the *North Sea Continental Shelf cases*:

> Although the passage of only a short period of time is not necessarily, or of itself, a bar to the formation of a new rule of customary international law on the basis of what was originally a purely conventional rule, an indispensable requirement would be that within the period in question, short though it might be, State practice, including that of States whose interests are specially affected, should have been both extensive and virtually uniform in the sense of the provision invoked; and should moreover have occurred in such a way as to show a general recognition that a rule of law or legal obligation is involved.[30]

(i) The first requirement for State practice to create a rule of customary international law is that it must be *virtually uniform*. Different States must not have engaged in substantially different conduct, some doing one thing and some another. In the *Asylum case*, the International Court of Justice was presented with a situation in which practice was not sufficiently uniform to establish a rule of customary international law with respect to the exercise of diplomatic asylum. In this respect, it stated that:

[28] The importance of these conditions was stressed by the ICJ in the *Nuclear Weapons case*, Advisory Opinion, 8 July 1996, *ICJ Reports 1996*, pp. 254–255, §§ 70–73.

[29] The expression comes from Sir Humphrey Waldock, "General Course on Public International Law", *Collected Courses of the Hague Academy of International Law*, Vol. 106, 1962, p. 44.

[30] ICJ, *North Sea Continental Shelf cases, supra* note 12, p. 43, § 74.

The facts brought to the knowledge of the Court disclose so much uncertainty and contradiction, so much fluctuation and discrepancy in the exercise of diplomatic asylum and in the official views expressed on various occasions, there has been so much inconsistency in the rapid succession of conventions on asylum, ratified by some States and rejected by others, and the practice has been so much influenced by considerations of political expediency in the various cases, that it is not possible to discern in all this any constant and uniform usage, accepted as law.[31]

In the *Fisheries case*, the International Court of Justice dealt with a similar situation with respect to a ten-mile closing line for bays in which it considered that, although such a line had

been adopted by certain States both in their national law and in their treaties and conventions, and although certain arbitral decisions have applied it as between these States, other States have adopted a different limit. Consequently, the ten-mile rule has not acquired the authority of a general rule of international law.[32]

However, the Court in this case also considered that "too much importance need not be attached to a few uncertainties or contradictions, real or apparent" in a State's practice when making an evaluation.[33] It is enough that the practice is sufficiently similar. It was on the basis of such sufficient similarity that the International Court of Justice found in the *Continental Shelf cases* that the concept of the exclusive economic zone had become part of customary law. Even though the various proclamations of such a zone were not identical, they were sufficiently similar for the Court to reach this conclusion.[34]

The jurisprudence of the International Court of Justice shows that contrary practice which, at first sight, appears to undermine the uniformity of the practice concerned, does not prevent the formation of a rule of customary international law as long as this contrary practice is condemned by other States or denied by the government itself and therefore does not represent its *official* practice. Through such condemnation or denial, the original rule is actually confirmed. The International Court of Justice dealt with such a situation in the *Nicaragua case* in which it looked at the customary nature of the principles of non-use of force and non-intervention, stating that:

It is not to be expected that in the practice of States the application of the rules in question should have been perfect, in the sense that States should have refrained, with complete consistency, from the use of force or from intervention in each other's internal affairs. The Court does not consider that, for a rule to be established as customary, the corresponding practice must be in absolute rigorous conformity with

[31] ICJ, *Asylum case (Colombia v. Peru)*, Judgement, 20 November 1950, *ICJ Reports 1950*, p. 277.
[32] ICJ, *Fisheries case (United Kingdom v. Norway)*, Judgement, 18 December 1951, *ICJ Reports 1951*, p. 131.
[33] *Ibid.* p. 138.
[34] ICJ, *Continental Shelf case (Tunisia v. Libyan Arab Jamahiriya)*, Judgement, 24 February 1982, *ICJ Reports 1982*, p. 74, § 100 and *Continental Shelf case, supra* note 11, p. 33, § 34.

the rule. In order to deduce the existence of customary rules, the Court deems it sufficient that the conduct of States should, in general, be consistent with such rules, and that instances of State conduct inconsistent with a given rule should generally have been treated as breaches of that rule, not as indications of the recognition of a new rule. If a State acts in a way prima facie incompatible with a recognized rule, but defends its conduct by appealing to exceptions or justifications contained within the rule itself, then whether or not the State's conduct is in fact justifiable on that basis, the significance of that attitude is to confirm rather than to weaken the rule.[35]

This finding is particularly relevant for a number of rules of international humanitarian law where there is overwhelming evidence of verbal State practice supporting a certain rule found alongside repeated evidence of violations of that rule. Where this has been accompanied by excuses or justifications by the actors and/or condemnations by other States, such violations are not of a nature to challenge the existence of the rule in question. States wishing to change an existing rule of customary international law have to do so through their *official* practice and claim to be acting *as of right*.

(ii) The second requirement for a rule of general customary international law to come into existence is that the State practice concerned must be both *extensive and representative*. It does not, however, need to be universal; a "general" practice suffices.[36] No precise number or percentage of States is required. One reason why it is impossible to put a precise figure on the extent of participation required is that the criterion is in a sense *qualitative* rather than quantitative. That is to say, it is not simply a question of how many States participate in the practice, but also *which* States.[37] In the words of the International Court of Justice in the *North Sea Continental Shelf cases*, the practice must "include that of States whose interests are specially affected".[38]

This consideration has two implications: (1) if all "specially affected States" are represented, it is not essential for a majority of States to have actively participated, but they must have at least acquiesced in the practice of "specially affected States"; (2) if "specially affected States" do not accept the practice, it cannot mature into a rule of customary international law, even though unanimity is not required as explained.[39] Who is "specially affected" will vary according to circumstances. Concerning the question of the legality of the use of blinding laser weapons, for example, "specially affected States" include those identified as having been in the process of developing such weapons. In the area of humanitarian aid, States whose population is in need of such aid or States which

[35] ICJ, *Case concerning Military and Paramilitary Activities in and against Nicaragua, supra* note 14, p. 98, § 186.
[36] ILA Report, *supra* note 18, Principle 14, p. 734.
[37] ILA Report, *supra* note 18, commentary (d) and (e) to Principle 14, pp. 736–737.
[38] ICJ, *North Sea Continental Shelf cases, supra* note 12, p. 43, § 74.
[39] ILA Report, *supra* note 18, commentary (e) to Principle 14, p. 737.

frequently provide such aid are to be considered "specially affected". With respect to any rule of international humanitarian law, countries that participated in an armed conflict are "specially affected" when their practice examined for a certain rule was relevant to that armed conflict. Notwithstanding the fact that there are specially affected States in certain areas of international humanitarian law, it is also true that all States have a legal interest in requiring respect for international humanitarian law by other States, even if they are not a party to the conflict (see the commentary to Rule 144). As a result, the practice of all States must be considered, whether or not they are "specially affected" in the strict sense of that term.

This study has taken no view as to whether it is legally possible to be a "persistent objector" in relation to customary rules of international humanitarian law. Apart from the fact that many authorities believe that this is not possible in the case of rules of *jus cogens*, there are also authorities that doubt the continued validity of this doctrine.[40] If one accepts that it is legally possible to be a persistent objector, the State concerned must have objected to the emergence of a new norm during its formation and continue to object afterwards; it is not possible to be a "subsequent objector".

(iii) The third requirement is related to the time necessary to form a rule of customary international law through the adoption of virtually uniform, extensive and representative practice. As indicated above, while some time will normally elapse before there is sufficient practice to satisfy these criteria, there is no specific time requirement. It is all a question of accumulating a practice of sufficient density, in terms of uniformity, extent and representativeness.[41]

### *Opinio juris*

The second requirement for the existence of a rule of customary international law, *opinio juris*, relates to the need for the practice to be carried out *as of right*. The particular form in which the practice and this legal conviction needs to be expressed may well differ depending on whether the rule involved contains a prohibition, an obligation or merely a right to behave in a certain manner.

Practice establishing the existence of a prohibition, for example, the rule that it is prohibited to declare that no quarter will be given (see Rule 46), includes not only statements that such behaviour is prohibited and condemnations of instances where the prohibited behaviour did take place, possibly combined with justifications or excuses from the criticised State, but also physical practice abstaining from the prohibited behaviour. If the practice largely consists of abstention combined with silence, there will need to be some indication

[40] For an in-depth discussion of this issue, see Maurice H. Mendelson, "The Formation of Customary International Law", *Collected Courses of the Hague Academy of International Law*, Vol. 272, 1998, pp. 227–244.

[41] ILA Report, *supra* note 18, commentary (b) to Principle 12, p. 731.

that the abstention is based on a legitimate expectation to that effect from the international community.

Practice establishing the existence of an obligation, for example, the rule that the wounded and sick must be cared for (see Rule 110), can be found primarily in behaviour in conformity with such a requirement. The fact that it is a legal requirement, rather than one reflecting courtesy or mere comity, can be found by either an expression of the need for such behaviour, or by criticism by other States in the absence of such behaviour. It may also be that, following criticism by other States, the criticised State will explain its abstinence by seeking justification within the rule.

Practice establishing the existence of a rule that allows a certain conduct, for example, the rule that States have the right to vest universal jurisdiction in their courts over war crimes (see Rule 157), can be found in acts that recognise the right to behave in such a way without actually requiring such behaviour. This will typically take the form of States undertaking such action, together with the absence of protests by other States.

During work on the study it proved very difficult and largely theoretical to strictly separate elements of practice and legal conviction. More often than not, one and the same act reflects practice and legal conviction. As the International Law Association has pointed out, the International Court of Justice "has not in fact said in so many words that just because there are (allegedly) distinct elements in customary law the same conduct cannot manifest both. It is in fact often difficult or even impossible to disentangle the two elements."[42] This is particularly so because verbal acts count as State practice and often reflect the legal conviction of the State involved at the same time.

When there is sufficiently dense practice, an *opinio juris* is generally contained within that practice and, as a result, it is not usually necessary to demonstrate separately the existence of an *opinio juris. Opinio juris* plays an important role, however, in certain situations where the practice is ambiguous, in order to decide whether or not that practice counts towards the formation of custom. This is often the case with omissions, when States omit to act or react but it is not clear why. An example of such a situation was analysed by the Permanent Court of International Justice in the *Lotus case* in which France disputed Turkey's right to prosecute for a collision on the high seas. France argued that the absence of such prosecutions proved a prohibition under customary international law to prosecute, except by the flag State of the ship on board which the wrongful act took place. The Court, however, disagreed because it was not clear whether other States had abstained from prosecuting because they thought they had no right to do so or because of some other reason, for example, lack of interest or belief that a court of the flag State is a more

[42] ILA Report, *supra* note 18, § 10(c), p. 718. For an in-depth analysis, see Peter Haggenmacher, "La doctrine des deux éléments du droit coutumier dans la pratique de la Cour internationale", *Revue générale de droit international public*, Vol. 90, 1986, p. 5.

convenient forum. The Court stated there was no evidence of any "conscious[ness] of having a duty to abstain".[43]

Another situation of ambiguity was analysed by the International Court of Justice in the *North Sea Continental Shelf cases* in which Denmark and the Netherlands argued that a customary rule existed requiring a continental shelf to be delimited on the basis of the equidistance principle, *inter alia*, because a number of States had done so. The Court considered that the basis of the action of those States remained speculative and that no inference could be drawn that they believed themselves to be applying a rule of customary international law.[44] In other words, the States that had delimited their continental shelf on the basis of the equidistance principle had behaved in accordance with that principle but nothing showed that they considered themselves bound by it. It is basically in such cases, where practice is ambiguous, that both the International Court of Justice and its predecessor, the Permanent Court of International Justice, have looked in particular at whether they could separately establish the existence of an *opinio juris* that would indicate that the ambiguous practice in fact counted towards the establishment of customary international law.[45]

In the area of international humanitarian law, where many rules require abstention from certain conduct, omissions pose a particular problem in the assessment of *opinio juris* because it has to be proved that the abstention is not a coincidence but based on a legitimate expectation. When such a requirement of abstention is indicated in statements and documents, the existence of a *legal* requirement to abstain from the conduct in question can usually be proved. In addition, such abstentions may also occur after the behaviour in question created a certain controversy, which also helps to prove that the abstention was not coincidental, although it is not always easy to conclude that the abstention occurred because of a sense of legal obligation. A particular example of this problem is abstention from certain conduct in non-international armed conflicts when a clear rule to abstain from such conduct can only be found in treaty law applicable to international armed conflicts. This is, for example, the case for abstention from the use of certain weapons in non-international armed conflicts, when the prohibition of the use of these weapons was agreed to by treaty a long time ago when rules in relation to non-international armed conflicts were not as readily thought about or accepted as they are now. Abstention from such use or of prohibited behaviour is not likely to lead other States to comment, and this is particularly the case in relation to non-international armed conflicts in which other States are not directly affected. The process of claim and counterclaim does not produce as much clarity with respect to non-international armed conflicts as it does with respect to international armed conflicts because in the latter case, two or more States are directly affected

[43] PCIJ, *Lotus case, supra* note 19, p. 28.
[44] ICJ, *North Sea Continental Shelf cases, supra* note 12, pp. 43–44, §§ 76–77.
[45] ILA Report, *supra* note 18, Principle 17(iv) and commentary.

by each other's behaviour, while in the former case, usually only one State is directly affected.

It appears that international courts and tribunals on occasion conclude that a rule of customary international law exists when that rule is a desirable one for international peace and security or for the protection of the human person, provided that there is no important contrary *opinio juris*.[46] Examples of such conclusions are the finding by the International Military Tribunal at Nuremberg that the Hague Conventions of 1907 had hardened into customary law,[47] and the finding by the International Court of Justice in the *Nicaragua case* that the rule of non-intervention in the internal and external affairs of other States was part of customary international law.[48] However, when there was clear evidence of contrary *opinio juris* by a number of States, including specially affected ones, international case-law has held that the existence of a rule of customary international was not proven, for example, the advisory opinion of the International Court of Justice in the *Nuclear Weapons case* on the issue of whether the use of nuclear weapons was illegal,[49] and the ruling of the sole arbitrator in the *Texaco v. Libya case* on the issue of a possible change in the law relating to compensation for expropriation.[50]

This aspect of the assessment of customary law is particularly relevant for international humanitarian law, given that most of this law seeks to regulate behaviour for humanitarian reasons. In some instances, it is not yet possible to find a rule of customary international law even though there is a clear majority practice in favour of the rule and such a rule is very desirable.

### *Impact of treaty law*

Treaties are also relevant in determining the existence of customary international law because they help assess how States view certain rules of international law. Hence, the ratification, interpretation and implementation of a

[46] For an analysis of this phenomenon in the behaviour of international courts, see Frederic L. Kirgis, "Custom on a Sliding Scale", *American Journal of International Law*, Vol. 81, 1987, p. 146.

[47] International Military Tribunal at Nuremberg, *Case of the Major War Criminals*, Judgement, 1 October 1946, *Official Documents*, Vol. I, pp. 253–254.

[48] ICJ, *Case concerning Military and Paramilitary Activities in and against Nicaragua, supra* note 14, pp. 106–110, §§ 202–209.

[49] ICJ, *Nuclear Weapons case, supra* note 28, p. 255, § 73. This finding of the ICJ was in relation to an analysis of whether there was sufficiently consistent *opinio juris*. In this context, the Court found, with respect to UN General Assembly resolutions which stated that the use of nuclear weapons was illegal and which were adopted by a large majority of States, that they did not create sufficient *opinio juris* to establish a rule of customary law because of the large number of negative votes and abstentions.

[50] *Texaco Overseas Petroleum Company and California Asiatic Oil Company v. Libyan Arab Republic*, Arbitral Award, 19 January 1977, §§ 80–91, reprinted in *International Legal Materials*, Vol. 17, 1978, pp. 27–31. The sole arbitrator found that there was insufficient support by one group of specially affected States for the Charter of Economic Rights and Duties of States and for the Declaration on the Establishment of a New International Economic Order.

treaty, including reservations and statements of interpretation made upon ratification, are included in the study. In the *North Sea Continental Shelf cases*, the International Court of Justice clearly considered the degree of ratification of a treaty to be relevant to the assessment of customary law. In that case, the Court stated that "the number of ratifications and accessions so far secured [39] is, though respectable, hardly sufficient", especially in a context where practice outside the treaty was contradictory.[51] Conversely, in the *Nicaragua case*, the Court placed a great deal of weight, when assessing the customary status of the non-intervention rule, on the fact that the UN Charter was almost universally ratified and that relevant UN General Assembly resolutions had been widely approved, in particular Resolution 2625 (XXV) on friendly relations between States, which was adopted without a vote.[52] It can even be the case that a treaty provision reflects customary law, even though the treaty is not yet in force, provided that there is sufficiently similar practice, including by specially affected States, so that there remains little likelihood of significant opposition to the rule in question.[53]

In practice, the drafting of treaty norms helps to focus world legal opinion and has an undeniable influence on the subsequent behaviour and legal conviction of States. This reality was recognised by the International Court of Justice in the *Continental Shelf case*:

> It is of course axiomatic that the material of customary international law is to be looked for primarily in the actual practice and *opinio juris* of States, even though multilateral conventions may have an important role to play in recording and defining rules deriving from custom, or indeed in developing them.[54]

The Court thus recognised that treaties may codify pre-existing customary international law but may also lay the foundation for the development of new customs based on the norms contained in those treaties. The Court has even gone so far as to state that "it might be that ... a very widespread and representative participation in [a] convention might suffice of itself, provided it included that of States whose interests were specially affected".[55]

The International Law Association has summarised this case-law, stating that a (multilateral) treaty may thus interact in four different ways with custom: it can provide evidence of existing custom; it can provide the inspiration or model for the adoption of new custom through State practice; it can assist in the so-called "crystallisation" of emerging custom; and it can even give rise to new custom of "its own impact" if the rule concerned is of a fundamentally

[51] ICJ, *North Sea Continental Shelf cases, supra* note 12, p. 42, § 73.
[52] ICJ, *Case concerning Military and Paramilitary Activities in and against Nicaragua, supra* note 14, pp. 99–100, § 188.
[53] ICJ, *Continental Shelf case, supra* note 11, p. 33, § 34. The number of claims to an exclusive economic zone had risen to 56, which included several specially affected States.
[54] ICJ, *Continental Shelf case, supra* note 11, pp. 29–30, § 27.
[55] ICJ, *North Sea Continental Shelf cases, supra* note 12, p. 42, § 73.

norm-creating character and is widely adopted by States with a view to creating a new general legal obligation. There can be no presumption that any of these interactions has taken place and in each case it is a matter of examining the evidence.[56]

This study takes the cautious approach that widespread ratification is only an indication and has to be assessed in relation to other elements of practice, in particular the practice of States not party to the treaty in question. Consistent practice of States not party has been considered as important positive evidence. Contrary practice of States not party, however, has been considered as important negative evidence. The practice of States party to a treaty vis-à-vis States not party is also particularly relevant.

This study has not, however, limited itself to the practice of States not party to the relevant treaties of international humanitarian law. To limit the study to a consideration of the practice of only the 30-odd States that have not ratified the Additional Protocols, for example, would not comply with the requirement that customary international law be based on widespread and representative practice. Therefore, the assessment of the existence of customary law takes into account the fact that, at the time of writing, Additional Protocol I has been ratified by 162 States and Additional Protocol II by 157 States. Similarly, the assessment of customary law also takes into account the fact that the Geneva Conventions have been ratified by 192 States and this is not repeated in the commentaries.

Lastly, the most important judicial decisions on the customary nature of humanitarian law provisions are not repeated in the commentaries which cite the rules held to be customary. This applies in particular to the finding by the International Military Tribunal at Nuremberg that the 1907 Hague Regulations "undoubtedly represented an advance over existing international law at the time of their adoption ... but by 1939 these rules laid down in the Convention were recognized by all civilized nations, and were regarded as being declaratory of the laws and customs of war".[57] It also applies to the *Nicaragua case*, in which the International Court of Justice held that common Article 3 of the Geneva Conventions reflected "elementary considerations of humanity" constituting a "minimum yardstick" applicable to all armed conflicts.[58] It further applies to the finding of the International Court of Justice in the *Nuclear Weapons case* that the great majority of the provisions of the 1949 Geneva Conventions represent customary international law.[59] In the same vein, it is important to stress, though it is not repeated in the commentaries, that with regard to the Statute of the International Criminal Court, there was a "general

[56] ILA Report, *supra* note 18, Principles 20–21, 24, 26 and 27, pp. 754–765.
[57] International Military Tribunal at Nuremberg, *Case of the Major War Criminals, supra* note 47.
[58] ICJ, *Case concerning Military and Paramilitary Activities in and against Nicaragua, supra* note 14, p. 114, § 218.
[59] ICJ, *Nuclear Weapons case, supra* note 28, pp. 257–258, §§ 79 and 82.

agreement that the definitions of crimes in the ICC Statute were to reflect existing customary international law, and not to create new law".[60]

## Organisation of the study

To determine the best way of fulfilling the mandate entrusted to it, the ICRC consulted a group of academic experts in international humanitarian law who formed the Steering Committee of the study. The Steering Committee consisted of Professors Georges Abi-Saab, Salah El-Din Amer, Ove Bring, Eric David, John Dugard, Florentino Feliciano, Horst Fischer, Françoise Hampson, Theodor Meron, Djamchid Momtaz, Milan ahović and Raúl Emilio Vinuesa. The Steering Committee adopted a Plan of Action in June 1996 and research started in October 1996. Pursuant to the Plan of Action, research was conducted using both national and international sources reflecting State practice. Research into these sources focused on the six parts of the study as identified in the Plan of Action:

- Principle of distinction
- Specifically protected persons and objects
- Specific methods of warfare
- Weapons
- Treatment of civilians and persons *hors de combat*
- Implementation

The measure of access to national and international sources largely explains the research method adopted.

### *Research in national sources of practice*

Since national sources are more easily accessible from within a country, it was decided to seek the cooperation of national researchers. To this end, nearly 50 countries were selected (9 in Africa, 15 in Asia, 11 in Europe, 11 in the Americas and 1 in Australasia) and in each a researcher or group of researchers was identified to report on State practice (see Annex I). The Steering Committee selected the countries on the basis of geographic representation, as well as recent experience of different kinds of armed conflicts in which a variety of methods of warfare had been used. The result was a series of reports on State practice. Significant practice of other countries was identified through research into international sources and ICRC archives (see *infra*).

The sources of State practice collected by the national researchers include military manuals, national legislation, national case-law, instructions to armed

[60] Philippe Kirsch, "Foreword", in Knut Dörmann, *Elements of War Crimes under the Rome Statute of the International Criminal Court: Sources and Commentary, supra* note 1, p. xiii; see also Report of the Preparatory Committee on the Establishment of an International Criminal Court, Vol. I, Proceedings of the Preparatory Committee during March–April and August 1996, *UN General Assembly Official Records*, UN Doc. A/51/22, 13 September 1996, § 54.

and security forces, military communiqués during war, diplomatic protests, opinions of official legal advisers, comments by governments on draft treaties, executive decisions and regulations, pleadings before international tribunals, statements in international organisations and at international conferences and government positions taken with respect to resolutions of international organisations.

The military manuals and national legislation of countries not covered by the reports on State practice were also researched and collected. This work was facilitated by the network of ICRC delegations around the world and the extensive collection of national legislation gathered by the ICRC Advisory Service on International Humanitarian Law. The purpose of the additional research was also to make sure that the study would be as up-to-date as possible and would, to the extent possible, take into account developments up to 31 December 2002. In some cases, it has been possible to include more recent practice.

*Research in international sources of practice*

State practice gleaned from international sources was collected by six teams, each of which concentrated on one part of the study. These teams consisted of the following persons:

Part I. Principle of distinction
*Rapporteur: Georges Abi-Saab*
*Researcher: Jean-François Quéguiner*
Part II. Specifically protected persons and objects
*Rapporteur: Horst Fischer*
*Researchers: Gregor Schotten and Heike Spieker*
Part III. Specific methods of warfare
*Rapporteur: Theodor Meron*
*Researcher: Richard Desgagné*
Part IV. Weapons
*Rapporteur: Ove Bring*
*Researcher: Gustaf Lind*
Part V. Treatment of civilians and persons hors de combat
*Rapporteur: Françoise Hampson*
*Researcher: Camille Giffard*
Part VI. Implementation
*Rapporteur: Eric David*
*Researcher: Richard Desgagné*

These teams researched practice in the framework of the United Nations and of other international organisations, in particular the African Union (formerly the Organization of African Unity), Council of Europe, Gulf Cooperation Council, European Union, League of Arab States, Organization of American

States, Organization of the Islamic Conference and Organization for Security and Cooperation in Europe. The practice of the Commonwealth of Independent States, Inter-Parliamentary Union and Non-Aligned Movement was also researched. Access to the practice of these organisations was facilitated by the ICRC delegations which maintain contacts with them.

State practice at the international level is reflected in a variety of sources, including in resolutions adopted in the framework of the United Nations, in particular by the Security Council, General Assembly and Commission on Human Rights, ad hoc investigations conducted by the United Nations, the work of the International Law Commission and comments it elicited from governments, the work of the committees of the UN General Assembly, reports of the UN Secretary-General, thematic and country-specific procedures of the UN Commission on Human Rights, reporting procedures before the Human Rights Committee, the Committee against Torture, the Committee on the Elimination of Discrimination Against Women and the Committee on the Rights of the Child, *travaux préparatoires* of treaties, and State submissions to international and regional courts.

International case-law was also collected to the extent that it provides evidence of the existence of rules of customary international law.

### *Research in ICRC archives*

To complement the research into national and international sources, the ICRC looked into its own archives relating to nearly 40 recent armed conflicts, some 20 of which occurred in Africa, 8 in Asia, 8 in Europe and 2 in the Americas (see Annex II). In general, these conflicts were selected so that countries and conflicts not yet dealt with by a report on State practice would also be covered.

The result of this three-pronged approach – that is, research into national, international and ICRC sources – is that practice from all parts of the world is cited. In the nature of things, however, this research cannot purport to be complete. Research for the study focused in particular on practice from the last 30 years to ensure that the result would be a restatement of contemporary customary international law, but, where still relevant, older practice has also been cited.

### *Consolidation of research results*

Upon completion of the research, all practice gathered was summarised and consolidated into separate parts covering the different areas of the study. This work was carried out by the six international research teams for the part which concerned them. The chapters containing this consolidated practice were

subsequently edited, supplemented and updated by a group of ICRC researchers, and are published in Volume II, "Practice". The reason for publishing such voluminous chapters is twofold. First, those consulting the study should be able to verify the basis in State practice for each rule of customary international law. Each rule in Volume I refers to the chapter and section in Volume II where the practice on which that rule is based can be found. Secondly, it was considered useful to publish the wealth of information that has been compiled. Many practitioners and scholars will thus be able to use the practice gathered for their own professional purposes.

### *Expert consultations*

In a first round of consultations, the ICRC invited the international research teams to produce an "executive summary" containing a preliminary assessment of customary international humanitarian law on the basis of the practice collected. These executive summaries were discussed within the Steering Committee at three meetings in Geneva (see Annex III). On the basis of this first round of consultations, the "executive summaries" were updated, and during a second round of consultations, they were submitted to a group of academic and governmental experts from all the regions of the world invited in their personal capacity by the ICRC to attend two meetings with the Steering Committee (see Annex III). During these two meetings in Geneva, the experts helped to evaluate the practice collected and indicated particular practice that had been missed.

### *Writing of the report*

The assessment by the Steering Committee, as reviewed by the group of academic and governmental experts, served as a basis for the writing of the final report. The authors of the study re-examined the practice, reassessed the existence of custom, reviewed the formulation and the order of the rules, and drafted the commentaries. The draft texts were submitted to the ICRC Legal Division, whose members provided extremely helpful comments and insights. Moreover, each Part was reviewed by an additional reader: Maurice Mendelson for the introductory part on the assessment of customary international law, Knut Dörmann for Part I, Theodor Meron for Part II, Horst Fischer for Part III, the Mines and Arms Unit of the ICRC led by Peter Herby for Part IV, William Fenrick for Part V and Antonio Cassese for Part VI. On the basis of their comments and those of the ICRC Legal Division, a second draft was prepared, which was submitted for written consultation to the Steering Committee, the group of academic and governmental experts and the ICRC Legal Division. The text was further updated and finalised taking into account the comments received.

This study was initiated under the supervision of Louise Doswald-Beck, then Deputy Head and later Head of the ICRC Legal Division. Jean-Marie Henckaerts has been responsible for the overall management of the study and drafted Parts I, II, III and V of Volume I. Louise Doswald-Beck drafted Parts IV and VI, as well as Chapters 14 and 32, of Volume I. The introductory parts were drafted by both of them. In drafting the text they received important contributions from Carolin Alvermann, Knut Dörmann and Baptiste Rolle. The authors, jointly, bear the sole responsibility for the content of the study.

## Annex I. National research

On the basis of geographical representation and experience of armed conflict, the following States were selected for an in-depth study of national practice on international humanitarian law by a local expert. Significant practice of other States was found in international sources and the ICRC's archives.

**Africa**
Algeria, Angola, Botswana, Egypt, Ethiopia, Nigeria, Rwanda, South Africa, Zimbabwe.

**Asia**
China, India, Indonesia, Iran, Iraq, Israel, Japan, Jordan, Republic of Korea, Kuwait, Lebanon, Malaysia, Pakistan, Philippines, Syria.

**Australasia**
Australia.

**Europe**
Belgium, Bosnia and Herzegovina, Croatia, France, Germany, Italy, Netherlands, Russian Federation, Spain, United Kingdom, Yugoslavia.

**Americas**
Argentina, Brazil, Canada, Chile, Colombia, Cuba, El Salvador, Nicaragua, Peru, United States of America, Uruguay.

## Annex II. Research in the ICRC archives

The conflicts for which research was carried out in the ICRC archives were chosen in order to include States and territories not covered by a report on State practice.

**Africa**
Angola, Burundi, Chad, Chad–Libya, Democratic Republic of the Congo, Djibouti, Eritrea–Yemen, Ethiopia (1973–1994), Liberia, Mozambique, Namibia,

Nigeria–Cameroon, Rwanda, Senegal, Senegal–Mauritania, Sierra Leone, Somalia, Somalia–Ethiopia, Sudan, Uganda, Western Sahara.

**Asia**
Afghanistan, Cambodia, India (Jammu and Kashmir), Papua New Guinea, Sri Lanka, Tajikistan, Yemen, Yemen–Eritrea (also under Africa).

**Europe**
Armenia–Azerbaijan (Nagorno-Karabakh), Cyprus, Former Yugoslavia (conflict in Yugoslavia (1991–1992), conflict in Bosnia and Herzegovina (1992–1996), conflict in Croatia (Krajinas) (1992–1995)), Georgia (Abkhazia), Russian Federation (Chechnya), Turkey.

**Americas**
Guatemala, Mexico.

## Annex III. Expert consultations

### 1. Consultation with the Steering Committee (1998)

*First meeting, 28 April–1 May 1998*: Specific methods of warfare; Weapons.

*Second meeting, 16–18 August 1998*: Principle of distinction; Specifically protected persons and objects.

*Third meeting, 14–17 October 1998*: Treatment of civilians and persons *hors de combat*; Implementation.

The Steering Committee consisted of Professors Georges Abi-Saab, Salah El-Din Amer, Ove Bring, Eric David, John Dugard, Florentino Feliciano, Horst Fischer, Françoise Hampson, Theodor Meron, Djamchid Momtaz, Milan ahović and Raúl Emilio Vinuesa.

### 2. Consultation with academic and governmental experts (1999)

*First meeting, 4–8 January 1999*: Specific methods of warfare; Weapons; Specifically protected persons and objects.

*Second meeting, 1–5 May 1999*: Principle of distinction; Treatment of civilians and persons *hors de combat*; Implementation.

The following academic and governmental experts were invited by the ICRC, in their personal capacity, to participate in this consultation:

Abdallah Ad-Douri (Iraq), Paul Berman (United Kingdom), Sadi Çaycý (Turkey), Michael Cowling (South Africa), Edward Cummings (United States of America), Antonio de Icaza (Mexico), Yoram Dinstein (Israel), Jean-Michel Favre (France), William Fenrick (Canada), Dieter Fleck (Germany), Juan Carlos Gómez Ramírez (Colombia), Jamshed A. Hamid (Pakistan), Arturo Hernández-Basave (Mexico), Ibrahim Idriss (Ethiopia), Hassan Kassem Jouni (Lebanon), Kenneth Keith (New Zealand), Githu Muigai (Kenya), Rein Müllerson (Estonia), Bara Niang (Senegal), Mohamed Olwan (Jordan), Raul C. Pangalangan (Philippines),

Stelios Perrakis (Greece), Paulo Sergio Pinheiro (Brazil), Arpád Prandler (Hungary), Pemmaraju Sreenivasa Rao (India), Camilo Reyes Rodríguez (Colombia), Itse E. Sagay (Nigeria), Harold Sandoval (Colombia), Somboon Sangianbut (Thailand), Marat A. Sarsembayev (Kazakhstan), Muhammad Aziz Shukri (Syria), Parlaungan Sihombing (Indonesia), Geoffrey James Skillen (Australia), Guoshun Sun (China), Bakhtyar Tuzmukhamedov (Russia) and Karol Wolfke (Poland).

**3. Written consultation with the academic and governmental experts (2002–2004)**

The experts listed above were invited to comment on two drafts, and a number of them provided written comments which were taken into account.

## Authors' Note

This volume catalogues rules of customary international humanitarian law. As such, only the black letter rules are identified as part of customary international law, and not the commentaries to the rules. The commentaries may, however, contain useful clarifications with respect to the application of the black letter rules.

The practice on which these rules are based can be found in Volume II of this study. Each chapter in Volume I corresponds to a chapter in Volume II, and each rule in Volume I corresponds to a section within a chapter in Volume II.

The present study examines first and foremost the rules of customary international law that have been formed by State practice. References are therefore for the most part to State practice, and not to academic writings. Most of these references are cited in Volume II and the footnotes therefore refer to Volume II.

The qualification of conflicts in this study is based on the practice from which it is taken and does not necessarily reflect the opinion of the authors or that of the International Committee of the Red Cross.

## ABBREVIATIONS

| | |
|---|---|
| CCW | Convention on Prohibitions or Restrictions on the Use of Certain Conventional Weapons which may be deemed to be Excessively Injurious or to have Indiscriminate Effects (1980) |
| CDDH | Diplomatic Conference on the Reaffirmation and Development of International Humanitarian Law Applicable in Armed Conflicts (Geneva, 1974–1977) |
| CIS | Commonwealth of Independent States |
| CSCE | Conference on Security and Cooperation in Europe |
| ECOSOC | United Nations Economic and Social Council |
| ENMOD Convention | Convention on the Prohibition of Military or Any Other Hostile Use of Environmental Modification Techniques (1976) |
| EC | European Community |
| EU | European Union |
| FMLN | Farabundo Martí para la Liberación Nacional (Farabundo Martí National Liberation Front, El Salvador) |
| FRY | Federal Republic of Yugoslavia |
| ICC | International Criminal Court |
| ICJ | International Court of Justice |
| ICJ Reports | International Court of Justice, Reports of Judgments, Advisory Opinions and Orders |
| ICRC | International Committee of the Red Cross |
| ICTR | International Criminal Tribunal for Rwanda |
| ICTY | International Criminal Tribunal for the Former Yugoslavia |
| IHL | International humanitarian law |
| ILA | International Law Association |
| ILC | International Law Commission |
| IMT | International Military Tribunal |
| LTTE | Liberation Tigers of Tamil Eelam (Sri Lanka) |
| NATO | North Atlantic Treaty Organisation |
| OAS | Organization of American States |

| | |
|---|---|
| OAU | Organization of African Unity (now African Union) |
| OIC | Organization of the Islamic Conference |
| OSCE | Organization for Security and Cooperation in Europe |
| PCIJ | Permanent Court of International Justice |
| POW | Prisoner of war |
| SFRY | Socialist Federal Republic of Yugoslavia |
| SPLM/A | Sudan People's Liberation Movement/Army |
| UN | United Nations |
| UNESCO | United Nations Education, Scientific and Cultural Organization |
| UNHCR | United Nations High Commissioner for Refugees |
| UN Sub-Commission on Human Rights | United Nations Sub-Commission on the Promotion and Protection of Human Rights (formerly the Sub-Commission on Prevention of Discrimination and Protection of Minorities) |
| USSR | Union of Soviet Socialist Republics |
| UK | United Kingdom of Great Britain and Northern Ireland |
| US | United States of America |
| YPA | Yugoslav People's Army |

PART I

# THE PRINCIPLE OF DISTINCTION

CHAPTER 1

# DISTINCTION BETWEEN CIVILIANS AND COMBATANTS

**Rule 1. The parties to the conflict must at all times distinguish between civilians and combatants. Attacks may only be directed against combatants. Attacks must not be directed against civilians.**

*Practice*

Volume II, Chapter 1, Section A.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts. The three components of this rule are interrelated and the practice pertaining to each of them reinforces the validity of the others. The term "combatant" in this rule is used in its generic meaning, indicating persons who do not enjoy the protection against attack accorded to civilians, but does not imply a right to combatant status or prisoner-of-war status (see Chapter 33). This rule has to be read in conjunction with the prohibition to attack persons recognised to be *hors de combat* (see Rule 47) and with the rule that civilians are protected against attack unless and for such time as they take a direct part in hostilities (see Rule 6). Belligerent reprisals against civilians are discussed in Chapter 41.

*International armed conflicts*

The principle of distinction between civilians and combatants was first set forth in the St. Petersburg Declaration, which states that "the only legitimate object which States should endeavour to accomplish during war is to weaken the military forces of the enemy".[1] The Hague Regulations do not as such specify that a distinction must be made between civilians and combatants, but Article 25, which prohibits "the attack or bombardment, by whatever means, of towns, villages, dwellings, or buildings which are undefended", is based on this principle.[2] The principle of distinction is now codified in Articles 48, 51(2)

[1] St. Petersburg Declaration, preamble (cited in Vol. II, Ch. 1, § 83).
[2] Hague Regulations, Article 25.

and 52(2) of Additional Protocol I, to which no reservations have been made.[3] According to Additional Protocol I, "attacks" means "acts of violence against the adversary, whether in offence or in defence".[4]

At the Diplomatic Conference leading to the adoption of the Additional Protocols, Mexico stated that Articles 51 and 52 of Additional Protocol I were so essential that they "cannot be the subject of any reservations whatsoever since these would be inconsistent with the aim and purpose of Protocol I and undermine its basis".[5] Also at the Diplomatic Conference, the United Kingdom stated that Article 51(2) was a "valuable reaffirmation" of an existing rule of customary international law.[6]

The prohibition on directing attacks against civilians is also laid down in Protocol II, Amended Protocol II and Protocol III to the Convention on Certain Conventional Weapons and in the Ottawa Convention banning anti-personnel landmines.[7] In addition, under the Statute of the International Criminal Court, "intentionally directing attacks against the civilian population as such or against individual civilians not taking direct part in hostilities" constitutes a war crime in international armed conflicts.[8]

Numerous military manuals, including those of States not, or not at the time, party to Additional Protocol I, stipulate that a distinction must be made between civilians and combatants and that it is prohibited to direct attacks against civilians.[9] Sweden's IHL Manual identifies the principle of distinction as laid down in Article 48 of Additional Protocol I as a rule of customary international law.[10] In addition, there are numerous examples of national legislation which make it a criminal offence to direct attacks against civilians, including the legislation of States not, or not at the time, party to Additional Protocol I.[11]

In the *Kassem case* in 1969, Israel's Military Court at Ramallah recognised the immunity of civilians from direct attack as one of the basic rules of international humanitarian law.[12] There are, moreover, many official statements which invoke the rule, including by States not, or not at the time, party to

[3] Additional Protocol I, Article 48 (adopted by consensus) (cited in Vol. II, Ch. 1, § 1), Article 51(2) (adopted by 77 votes in favour, one against and 16 abstentions) (*ibid.*, § 154) and Article 52(2) (adopted by 79 votes in favour, none against and 7 abstentions) (*ibid.*, § 85).

[4] Additional Protocol I, Article 49.

[5] Mexico, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (cited in Vol. II, Ch. 1, §§ 146, 307, 536 and 800).

[6] United Kingdom, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, §§ 319, 537 and 803).

[7] Protocol II to the CCW, Article 3(2) (*ibid.*, § 157); Amended Protocol II to the CCW, Article 3(7) (*ibid.*, § 157); Protocol III to the CCW, Article 2(1) (*ibid.*, § 158); Ottawa Convention, preamble (*ibid.*, § 3).

[8] ICC Statute, Article 8(2)(b)(i) (*ibid.*, § 160).

[9] See military manuals (*ibid.*, §§ 10–34 and 173–216), in particular the manuals of France (*ibid.*, §§ 21 and 188), Indonesia (*ibid.*, § 192), Israel (*ibid.*, §§ 25 and 193–194), Kenya (*ibid.*, § 197), United Kingdom (*ibid.*, §§ 212–213) and United States (*ibid.*, §§ 33–34 and 214–215).

[10] Sweden, *IHL Manual* (*ibid.*, § 29).

[11] See legislation (*ibid.*, §§ 217–269), in particular the legislation of Azerbaijan (*ibid.*, §§ 221–222), Indonesia (*ibid.*, § 243) and Italy (*ibid.*, § 245).

[12] Israel, Military Court at Ramallah, *Kassem case* (*ibid.*, § 271).

Additional Protocol I.[13] The rule has also been invoked by parties to Additional Protocol I against non-parties.[14]

In their pleadings before the International Court of Justice in the *Nuclear Weapons case*, many States invoked the principle of distinction.[15] In its advisory opinion in the *Nuclear Weapons case*, the Court stated that the principle of distinction was one of the "cardinal principles" of international humanitarian law and one of the "intransgressible principles of international customary law".[16]

When the ICRC appealed to the parties to the conflict in the Middle East in October 1973, i.e., before the adoption of Additional Protocol I, to respect the distinction between combatants and civilians, the States concerned (Egypt, Iraq, Israel and Syria) replied favourably.[17]

### *Non-international armed conflicts*

Article 13(2) of Additional Protocol II prohibits making the civilian population as such, as well as individual civilians, the object of attack.[18] The prohibition on directing attacks against civilians is also contained in Amended Protocol II to the Convention on Certain Conventional Weapons.[19] It is also set forth in Protocol III to the Convention on Certain Conventional Weapons, which has been made applicable in non-international armed conflicts pursuant to an amendment of Article 1 of the Convention adopted by consensus in 2001.[20] The Ottawa Convention banning anti-personnel landmines states that the Convention is based, *inter alia*, on "the principle that a distinction must be made between civilians and combatants".[21]

Under the Statute of the International Criminal Court, "intentionally directing attacks against the civilian population as such or against individual civilians not taking direct part in hostilities" constitutes a war crime in non-international armed conflicts.[22] In addition, this rule is included in other instruments pertaining also to non-international armed conflicts.[23]

[13] See, e.g., the statements of Azerbaijan (*ibid.*, § 273), China (*ibid.*, § 279), France (*ibid.*, §§ 41 and 285), Germany (*ibid.*, §§ 290–291 and 293), Iran (*ibid.*, §§ 296–297), Iraq (*ibid.*, § 298), Pakistan (*ibid.*, §§ 311–312), South Africa (*ibid.*, § 49), United Kingdom (*ibid.*, § 321) and United States (*ibid.*, §§ 51–53 and 322–329).

[14] See, e.g., the statements of Germany vis-à-vis Turkey (*ibid.*, § 292) and Iraq (*ibid.*, § 293), of Lebanon (*ibid.*, § 304) and Pakistan (*ibid.*, § 312) vis-à-vis Israel, and of Spain vis-à-vis Iran and Iraq (*ibid.*, § 315).

[15] See the statements of Ecuador (*ibid.*, § 39), Egypt (*ibid.*, §§ 40 and 283), India (*ibid.*, § 42), Japan (*ibid.*, § 43), Netherlands (*ibid.*, § 309), New Zealand (*ibid.*, § 45), Solomon Islands (*ibid.*, § 48), Sweden (*ibid.*, § 316), United Kingdom (*ibid.*, §§ 50 and 321) and United States (*ibid.*, § 329).

[16] ICJ, *Nuclear Weapons case* (*ibid.*, § 434).

[17] See ICRC, The International Committee's Action in the Middle East (*ibid.*, § 445).

[18] Additional Protocol II, Article 13(2) (adopted by consensus) (*ibid.*, § 156).

[19] Amended Protocol II to the CCW, Article 3(7) (*ibid.*, § 157).

[20] Protocol III to the CCW, Article 2(1) (*ibid.*, § 158).

[21] Ottawa Convention, preamble (*ibid.*, § 3).

[22] ICC Statute, Article 8(2)(e)(i) (*ibid.*, § 160).

[23] See, e.g., Memorandum of Understanding on the Application of IHL between Croatia and the SFRY, para. 6 (*ibid.*, §§ 6, 97 and 167); Agreement on the Application of IHL between the Parties

Military manuals which are applicable in or have been applied in non-international armed conflicts specify that a distinction must be made between combatants and civilians to the effect that only the former may be targeted.[24] To direct attacks against civilians in any armed conflict is an offence under the legislation of numerous States.[25] There are also a number of official statements pertaining to non-international armed conflicts invoking the principle of distinction and condemning attacks directed against civilians.[26] States' submissions to the International Court of Justice in the *Nuclear Weapons case* referred to above were couched in general terms applicable in all armed conflicts.

No official contrary practice was found with respect to either international or non-international armed conflicts. This rule is sometimes expressed in other terms, in particular as the principle of distinction between combatants and non-combatants, whereby civilians who do not take a direct part in hostilities are included in the category of non-combatants.[27]

to the Conflict in Bosnia and Herzegovina, para. 2.5 (*ibid.*, § 7, 98 and 168); San Remo Manual, paras. 39 and 41 (*ibid.*, §§ 8 and 99); UN Secretary-General's Bulletin, Section 5.1 (*ibid.*, §§ 9, 100 and 171); Cairo Declaration on Human Rights in Islam, Article 3(a) (*ibid.*, § 165); Hague Statement on Respect for Humanitarian Principles (*ibid.*, § 166); UNTAET Regulation 2000/15, Section 6(1)(e)(i) (*ibid.*, 172).

24 See, e.g., the military manuals of Argentina (*ibid.*, § 173), Benin (*ibid.*, § 177), Cameroon (*ibid.*, § 178), Canada (*ibid.*, § 179), Colombia (*ibid.*, §§ 181–182), Germany (*ibid.*, § 189), Netherlands (*ibid.*, § 201), New Zealand (*ibid.*, § 203), Philippines (*ibid.*, § 205), Togo (*ibid.*, § 211) and Yugoslavia (*ibid.*, 216).

25 See, e.g., the legislation of Armenia (*ibid.*, § 218), Australia (*ibid.*, § 220), Azerbaijan (*ibid.*, §§ 221–222), Belarus (*ibid.*, § 223), Belgium (*ibid.*, § 224), Bosnia and Herzegovina (*ibid.*, § 225), Canada (*ibid.*, § 228), Colombia (*ibid.*, § 230), Democratic Republic of the Congo (*ibid.*, § 231), Congo (*ibid.*, § 232), Croatia (*ibid.*, § 234), Estonia (*ibid.*, § 239), Georgia (*ibid.*, § 240), Germany (*ibid.*, § 241), Ireland (*ibid.*, § 244), Lithuania (*ibid.*, § 248), Netherlands (*ibid.*, § 250), New Zealand (*ibid.*, § 252), Niger (*ibid.*, § 254), Norway (*ibid.*, § 255), Slovenia (*ibid.*, § 257), Spain (*ibid.*, § 259), Sweden (*ibid.*, § 260), Tajikistan (*ibid.*, § 261), United Kingdom (*ibid.*, § 265), Vietnam (*ibid.*, § 266), Yemen (*ibid.*, § 267) and Yugoslavia (*ibid.*, § 268); see also the legislation of the Czech Republic (*ibid.*, § 237), Hungary (*ibid.*, § 242), Italy (*ibid.*, § 245) and Slovakia (*ibid.*, § 256), the application of which is not excluded in time of non-international armed conflict, and the draft legislation of Argentina (*ibid.*, § 217), Burundi (*ibid.*, § 226), El Salvador (*ibid.*, § 238), Jordan (*ibid.*, § 246), Nicaragua (*ibid.*, § 253) and Trinidad and Tobago (*ibid.*, § 262).

26 See, e.g., the statements of Belgium (*ibid.*, § 274), France (*ibid.*, §§ 286 and 288–289), Germany (*ibid.*, §§ 294–295), Malaysia (*ibid.*, § 306), Netherlands (*ibid.*, § 308), Philippines (*ibid.*, § 47), Slovenia (*ibid.*, § 314) and Uganda (*ibid.*, § 317).

27 See, e.g., the military manuals of Croatia (*ibid.*, § 718), Dominican Republic (*ibid.*, §§ 185, 583 and 720), Ecuador (*ibid.*, §§ 20 and 721), Hungary (*ibid.*, § 724), Sweden (*ibid.*, § 733) and United States (*ibid.*, §§ 34 and 737); Israel, Military Court at Ramallah, *Kassem* case (*ibid.*, § 271); the statements of Belgium (*ibid.*, § 274), Colombia (*ibid.*, § 840), Egypt (*ibid.*, § 40), India (*ibid.*, § 42), Iran (*ibid.*, § 296), Japan (*ibid.*, § 43), South Korea (*ibid.*, § 302), Solomon Islands (*ibid.*, § 48) and United States (*ibid.*, §§ 53, 328); UN Security Council, Res. 771 (*ibid.*, § 337) and Res. 794 (*ibid.*, § 338); UN Commission on Human Rights, Res. 1992/S-1/1 (*ibid.*, § 388); UN Secretary-General, Report on protection for humanitarian assistance to refugees and others in conflicts situations (*ibid.*, § 57); Report pursuant to paragraph 5 of Security Council resolution 837 (1993) on the investigation into the 5 June 1993 attack on United Nations forces in Somalia conducted on behalf of the UN Security Council (*ibid.*, § 58); ICJ, *Nuclear Weapons case*, Advisory Opinion (*ibid.*, § 61). For other formulations, see, e.g., the military manuals of Belgium (*ibid.*, § 12) (distinction between "the civilian population and those participating in hostilities") and Sweden (*ibid.*, § 29) (distinction between "persons participating in hostilities and

Alleged violations of this rule have generally been condemned by States, irrespective of whether the conflict was international or non-international.[28] Similarly, the UN Security Council has condemned or called for an end to alleged attacks against civilians in the context of numerous conflicts, both international and non-international, including in Afghanistan, Angola, Azerbaijan, Burundi, Georgia, Lebanon, Liberia, Rwanda, Sierra Leone, Somalia, Tajikistan, the former Yugoslavia and the territories occupied by Israel.[29]

As early as 1938, the Assembly of the League of Nations stated that "the intentional bombing of civilian populations is illegal".[30] The 20th International Conference of the Red Cross in 1965 solemnly declared that governments and other authorities responsible for action in all armed conflicts should conform to the prohibition on launching attacks against a civilian population.[31] Subsequently, a UN General Assembly resolution on respect for human rights in armed conflicts, adopted in 1968, declared the principle of distinction to be applicable in all armed conflicts.[32] The Plan of Action for the years 2000–2003, adopted by the 27th International Conference of the Red Cross and Red Crescent in 1999, requires that all parties to an armed conflict respect "the total ban on directing attacks against the civilian population as such or against civilians not taking a direct part in hostilities".[33] In a resolution adopted in 2000 on protection of civilians in armed conflicts, the UN Security Council reaffirmed its strong condemnation of the deliberate targeting of civilians in all situations of armed conflict.[34]

The jurisprudence of the International Court of Justice in the *Nuclear Weapons case*, of the International Criminal Tribunal for the Former

who are thereby legitimate objectives, and members of the civilian population"); the statement of New Zealand (*ibid.*, § 45) (distinction between "combatants and those who are not directly involved in armed conflict"); UN General Assembly, Res. 2444 (XXIII) (*ibid.*, § 55) (distinction between "persons taking part in the hostilities and members of the civilian population") and Res. 2675 (XXV) (*ibid.*, § 56) (distinction between "persons actively taking part in the hostilities and civilian populations").

28 See, e.g., the statements of Australia (*ibid.*, § 272), Bosnia and Herzegovina (*ibid.*, § 276), China (*ibid.*, § 279), Croatia (*ibid.*, § 281), France (*ibid.*, §§ 284, 286 and 288–289), Germany (*ibid.*, §§ 290 and 292–295), Iran (*ibid.*, § 297), Kazakhstan (*ibid.*, § 301), Lebanon (*ibid.*, § 305), Netherlands (*ibid.*, § 308), Pakistan (*ibid.*, §§ 311–312), Slovenia (*ibid.*, § 314), Spain (*ibid.*, § 315), Uganda (*ibid.*, § 317) and Yugoslavia (*ibid.*, § 331).

29 See, e.g., UN Security Council, Res. 564 (*ibid.*, § 336), Res. 771 (*ibid.*, § 337), Res. 794 (*ibid.*, § 338), Res. 819 (*ibid.*, § 339), Res. 853 (*ibid.*, § 340), Res. 904 (*ibid.*, § 341), Res. 912 (*ibid.*, § 342), Res. 913 (*ibid.*, § 343), Res. 918, 925, 929 and 935 (*ibid.*, § 344), Res. 950 (*ibid.*, § 345), Res. 978 (*ibid.*, § 346), Res. 993 (*ibid.*, § 347), Res. 998 (*ibid.*, § 348), Res. 1001 (*ibid.*, § 349), Res. 1019 (*ibid.*, § 350), Res. 1041 (*ibid.*, § 351), Res. 1049 and 1072 (*ibid.*, § 352), Res. 1052 (*ibid.*, § 353), Res. 1073 (*ibid.*, § 354), Res. 1076 (*ibid.*, § 355), Res. 1089 (*ibid.*, § 356), Res. 1161 (*ibid.*, § 357), Res. 1173 and 1180 (*ibid.*, § 358) and Res. 1181 (*ibid.*, § 359).

30 League of Nations, Assembly, Resolution adopted on 30 September 1938 (*ibid.*, § 378).

31 20th International Conference of the Red Cross, Res. XXVIII (*ibid.*, §§ 60 and 429).

32 UN General Assembly, Res. 2444 (XXIII) (adopted by unanimous vote of 111 in favour, none against and no abstentions) (*ibid.*, §§ 55 and 379).

33 27th International Conference of the Red Cross and Red Crescent, Plan of Action for the years 2000–2003 (adopted by consensus) (*ibid.*, § 433).

34 UN Security Council, Res. 1296 (*ibid.*, § 361).

Yugoslavia, in particular in the *Tadić case, Martić case* and *Kupreškić case*, and of the Inter-American Commission on Human Rights in the case relative to the events at La Tablada in Argentina provides further evidence that the obligation to make a distinction between civilians and combatants is customary in both international and non-international armed conflicts.[35]

The ICRC has called on parties to both international and non-international armed conflicts to respect the distinction between combatants and civilians.[36]

**Rule 2. Acts or threats of violence the primary purpose of which is to spread terror among the civilian population are prohibited.**

*Practice*

Volume II, Chapter 1, Section B.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts.

*International armed conflicts*

Article 51(2) of Additional Protocol I prohibits "acts or threats of violence the primary purpose of which is to spread terror among the civilian population".[37] No reservations have been made to this provision. At the Diplomatic Conference leading to the adoption of the Additional Protocols, Mexico stated that Article 51 of Additional Protocol I was so essential that it "cannot be the subject of any reservations whatsoever since these would be inconsistent with the aim and purpose of Protocol I and undermine its basis".[38] Also at the Diplomatic Conference, the United Kingdom stated that Article 51(2) was a "valuable reaffirmation" of an existing rule of customary international law.[39]

The prohibition of acts or threats of violence aimed at terrorising the civilian population is set forth in a large number of military manuals.[40] Violations of this

[35] ICJ, *Nuclear Weapons case*, Advisory Opinion (*ibid.*, §§ 61 and 434); ICTY, *Tadić case*, Interlocutory Appeal (*ibid.*, § 435), *Martić case*, Review of the Indictment (*ibid.*, §§ 437 and 552) and *Kupreškić case*, Judgement (*ibid.*, §§ 441 and 883); Inter-American Commission on Human Rights, *Case 11.137 (Argentina)* (*ibid.*, §§ 64, 443 and 810).

[36] See, e.g., the practice of the ICRC (*ibid.*, §§ 67–75).

[37] Additional Protocol I, Article 51(2) (adopted by 77 votes in favour, one against and 16 abstentions) (*ibid.*, § 477).

[38] Mexico, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, §§ 146, 307, 536 and 800).

[39] United Kingdom, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, §§ 319, 537 and 803).

[40] See, e.g., the military manuals of Argentina (*ibid.*, § 489), Australia (*ibid.*, § 490), Belgium (*ibid.*, §§ 491–492), Benin (*ibid.*, § 493), Cameroon (*ibid.*, § 494), Canada (*ibid.*, § 495), Colombia (*ibid.*, § 496), Croatia (*ibid.*, § 497), Ecuador (*ibid.*, § 498), France (*ibid.*, § 499), Germany (*ibid.*, § 500),

rule are an offence under the legislation of numerous States.[41] The prohibition is also supported by official statements.[42] This practice includes that of States not, or not at the time, party to Additional Protocol I.[43] States party to Additional Protocol I have also invoked this rule against States not party.[44]

When the ICRC appealed to the parties to the conflict in the Middle East in October 1973, i.e., before the adoption of Additional Protocol I, to respect the prohibition of "methods intended to spread terror among the civilian population", the States concerned (Egypt, Iraq, Israel and Syria) replied favourably.[45]

It can be argued that the prohibition of acts or threats of violence aimed at terrorising the civilian population is further supported by the wider prohibition of "all measures of intimidation or of terrorism" in Article 33 of the Fourth Geneva Convention.[46] Prior to the adoption of this provision, the Report of the Commission on Responsibility set up after the First World War listed "systematic terror" as a violation of the laws and customs of war.[47]

### *Non-international armed conflicts*

Article 13(2) of Additional Protocol II prohibits acts or threats of violence the primary purpose of which is to spread terror among the civilian population.[48] In addition, the prohibition is included in other instruments pertaining also to non-international armed conflicts.[49]

The prohibition of acts or threats of violence aimed at terrorising the civilian population is set forth in military manuals which are applicable in or have been applied in non-international armed conflicts.[50] Violations of this rule in any

Hungary (*ibid.*, § 501), Kenya (*ibid.*, § 502), Netherlands (*ibid.*, § 503), New Zealand (*ibid.*, § 504), Nigeria (*ibid.*, § 505), Russia (*ibid.*, § 506), Spain (*ibid.*, § 507), Sweden (*ibid.*, § 508), Switzerland (*ibid.*, § 509), Togo (*ibid.*, § 510), United States (*ibid.*, §§ 511–512) and Yugoslavia (*ibid.*, § 513).

41 See, e.g., the legislation of Argentina (*ibid.*, § 514), Australia (*ibid.*, § 515), Bangladesh (*ibid.*, § 516), Bosnia and Herzegovina (*ibid.*, § 517), China (*ibid.*, § 518), Colombia (*ibid.*, § 519), Côte d'Ivoire (*ibid.*, § 520), Croatia (*ibid.*, § 521), Czech Republic (*ibid.*, § 522), Ethiopia (*ibid.*, § 523), Ireland (*ibid.*, § 524), Lithuania (*ibid.*, § 525), Netherlands (*ibid.*, § 526), Norway (*ibid.*, § 527), Slovakia (*ibid.*, § 528), Slovenia (*ibid.*, § 529), Spain (*ibid.*, § 530) and Yugoslavia (*ibid.*, § 531).

42 See, e.g., the statements of Israel (*ibid.*, § 534), Lebanon (*ibid.*, § 535) and United States (*ibid.*, §§ 538–540).

43 See, e.g., the practice of France (*ibid.*, § 499), Israel (*ibid.*, § 534), Kenya (*ibid.*, § 502) and United States (*ibid.*, §§ 511–512 and 538–540).

44 See, e.g., the statement of Lebanon vis-à-vis Israel (*ibid.*, § 535).

45 See ICRC, The International Committee's Action in the Middle East (*ibid.*, § 556).

46 Fourth Geneva Convention, Article 33 (*ibid.*, § 476). The relevance of this provision to the present rule is explained in Yves Sandoz, Christophe Swinarski, Bruno Zimmermann (eds.), *Commentary on the Additional Protocols*, ICRC, Geneva, 1987, § 4538.

47 Report of the Commission on Responsibility (cited in Vol. II, Ch. 1, § 481).

48 Additional Protocol II, Article 13(2) (adopted by consensus) (*ibid.*, § 479).

49 See, e.g., Memorandum of Understanding on the Application of IHL between Croatia and the SFRY, para. 6 (*ibid.*, § 485); Agreement on the Application of IHL between the Parties to the Conflict in Bosnia and Herzegovina, para. 2.5 (*ibid.*, § 486).

50 See, e.g., the military manuals of Argentina (*ibid.*, § 489), Australia (*ibid.*, § 490), Benin (*ibid.*, § 493), Cameroon (*ibid.*, § 494), Canada (*ibid.*, § 495), Colombia (*ibid.*, § 496), Croatia (*ibid.*, § 497), Ecuador (*ibid.*, § 498), Germany (*ibid.*, § 500), Hungary (*ibid.*, § 501), Kenya (*ibid.*, § 502), Netherlands (*ibid.*, § 503), New Zealand (*ibid.*, § 504), Russia (*ibid.*, § 506), Spain (*ibid.*, § 507), Togo (*ibid.*, § 510) and Yugoslavia (*ibid.*, § 513).

armed conflict are an offence under the legislation of many States.[51] There are also official statements pertaining to non-international armed conflicts invoking this rule.[52]

It can be argued that the prohibition of acts or threats of violence aimed at terrorising the civilian population is further supported by the wider prohibition of "acts of terrorism" in Article 4(2)(d) of Additional Protocol II.[53] "Acts of terrorism" are specified as war crimes under the Statutes of the International Criminal Tribunal for Rwanda and of the Special Court for Sierra Leone.[54] In his report on the establishment of a Special Court for Sierra Leone, the UN Secretary-General noted that violations of Article 4 of Additional Protocol II have long been considered crimes under customary international law.[55]

No official contrary practice was found with respect to either international or non-international armed conflicts. Alleged violations of this rule have generally been condemned by States.[56] Similarly, the UN General Assembly and UN Commission on Human Rights have adopted several resolutions condemning the terrorisation of the civilian population in the conflicts in the former Yugoslavia.[57] Furthermore, the indictments in the *Đukić case, Karadžić and Mladić case* and *Galić case* before the International Criminal Tribunal for the Former Yugoslavia included charges of terrorising the civilian population in violation of the laws and customs of war, in the first two cases as part of charges of unlawful attack.[58] In its judgement in the *Galić case* in 2003, the Trial Chamber found the accused guilty of "acts of violence the primary purpose of which is to spread terror among the civilian population, as set forth in Article 51 of Additional Protocol I, as a violation of the laws or customs of war under Article 3 of the Statute of the Tribunal".[59]

[51] See, e.g., the legislation of Bosnia and Herzegovina (*ibid.*, § 517), Colombia (*ibid.*, § 519), Croatia (*ibid.*, § 521), Ethiopia (*ibid.*, § 523), Ireland (*ibid.*, § 524), Lithuania (*ibid.*, § 525), Norway (*ibid.*, § 527), Slovenia (*ibid.*, § 529), Spain (*ibid.*, § 530) and Yugoslavia (*ibid.*, § 531); see also the legislation of the Czech Republic (*ibid.*, § 522) and Slovakia (*ibid.*, § 528), the application of which is not excluded in time of non-international armed conflict, and the draft legislation of Argentina (*ibid.*, § 514).

[52] See, e.g., the statements of Botswana (*ibid.*, § 533) and United States (*ibid.*, § 540).

[53] Additional Protocol II, Article 4(2)(d) (adopted by consensus) (*ibid.*, § 478). The relevance of this provision to the present rule is explained in Yves Sandoz, Christophe Swinarski, Bruno Zimmermann (eds.), *Commentary on the Additional Protocols*, ICRC, Geneva, 1987, § 4538.

[54] ICTR Statute, Article 4(d) (cited in Vol. II, Ch. 1, § 487); Statute of the Special Court for Sierra Leone, Article 3(d) (*ibid.*, § 480).

[55] UN Secretary-General, Report on the establishment of a Special Court for Sierra Leone (*ibid.*, § 545).

[56] See, e.g., the statements of Israel (*ibid.*, § 534), Lebanon (*ibid.*, § 535) and United States (*ibid.*, § 540).

[57] See, e.g., UN General Assembly, Res. 49/196 (*ibid.*, § 541) and Res. 53/164 (*ibid.*, § 542); UN Commission on Human Rights, Res. 1992/S-2/1, 1993/7, 1994/72 and 1995/89 (*ibid.*, § 543).

[58] ICTY, *Đukić case*, Initial Indictment (*ibid.*, § 551), *Karadžić and Mladić case*, First Indictment (*ibid.*, § 553) and *Galić case*, Initial Indictment (*ibid.*, § 554).

[59] ICTY, *Prosecutor v. Stanislav Galić*, Case No. IT-98-29-T, Judgement and Opinion, 5 December 2003, § 769.

The ICRC has reminded parties to both international and non-international armed conflicts of the prohibition on terrorising the civilian population.[60]

*Examples*

Examples of acts of violence cited in practice as being prohibited under this rule include offensive support or strike operations aimed at spreading terror among the civilian population,[61] indiscriminate and widespread shelling,[62] and the regular bombardment of cities,[63] but also assault, rape, abuse and torture of women and children,[64] and mass killing.[65] The indictments on the grounds of terrorising the civilian population in the above-mentioned cases before the International Criminal Tribunal for the Former Yugoslavia concerned deliberate and indiscriminate firing on civilian targets,[66] unlawful firing on civilian gatherings,[67] and a protracted campaign of shelling and sniping upon civilian areas.[68] These examples show that many acts violating the prohibition of acts or threats of violence aimed at terrorising the civilian population are also covered by specific prohibitions.

**Rule 3. All members of the armed forces of a party to the conflict are combatants, except medical and religious personnel.**

*Practice*

Volume II, Chapter 1, Section C.

*Summary*

State practice establishes this rule as a norm of customary international law in international armed conflicts. For purposes of the principle of distinction (see Rule 1), members of State armed forces may be considered combatants in both international and non-international armed conflicts. Combatant status, on the other hand, exists only in international armed conflicts (see introductory note to Chapter 33).

[60] See, e.g., the practice of the ICRC (cited in Vol. II, Ch. 1, §§ 556–558 and 561).
[61] Australia, *Defence Force Manual* (*ibid.*, § 490).
[62] UN General Assembly, Res. 53/164 (*ibid.*, § 542).
[63] UN Commission on Human Rights, Special Rapporteur on the Situation of Human Rights in the Former Yugoslavia, Report (*ibid.*, § 546).
[64] UN High Commissioner for Human Rights, Report on systematic rape, sexual slavery and slavery-like practices during armed conflicts (*ibid.*, § 547).
[65] OSCE, Kosovo/Kosova, as seen as told, An analysis of the human rights findings of the OSCE Kosovo Verification Mission (*ibid.*, § 549).
[66] ICTY, *Đukić case*, Initial Indictment (*ibid.*, § 551).
[67] ICTY, *Karadžić and Mladić case*, First Indictment (*ibid.*, § 553).
[68] ICTY, *Galić case*, Initial Indictment (*ibid.*, § 554).

*International armed conflicts*

This rule goes back to the Hague Regulations, according to which "the armed forces of the belligerent parties may consist of combatants and non-combatants".[69] It is now set forth in Article 43(2) of Additional Protocol I.[70]

Numerous military manuals contain this definition of combatants.[71] It is supported by official statements and reported practice.[72] This practice includes that of States not, or not at the time, party to Additional Protocol I.[73]

No official contrary practice was found.

*Non-international armed conflicts*

Common Article 3 of the Geneva Conventions and Additional Protocol II refer to "armed forces" and Additional Protocol II also to "dissident armed forces and other organized armed groups". These concepts are not further defined in the practice pertaining to non-international armed conflicts. While State armed forces may be considered combatants for purposes of the principle of distinction (see Rule 1), practice is not clear as to the situation of members of armed opposition groups. Practice does indicate, however, that persons do not enjoy the protection against attack accorded to civilians when they take a direct part in hostilities (see Rule 6).

Persons taking a direct part in hostilities in non-international armed conflicts are sometimes labelled "combatants". For example, in a resolution on respect for human rights in armed conflict adopted in 1970, the UN General Assembly speaks of "combatants in all armed conflicts".[74] More recently, the term "combatant" was used in the Cairo Declaration and Cairo Plan of Action for both types of conflicts.[75] However, this designation is only used in its generic meaning and indicates that these persons do not enjoy the protection against attack accorded to civilians, but does not imply a right to combatant status or prisoner-of-war status, as applicable in international armed conflicts (see Chapter 33).

[69] Hague Regulations, Article 3 (*ibid.*, § 571).

[70] Additional Protocol I, Article 43(2) (adopted by consensus) (*ibid.*, § 572).

[71] See, e.g., the military manuals of Argentina (*ibid.*, § 574), Australia (*ibid.*, § 575), Belgium (*ibid.*, § 576), Benin (*ibid.*, § 577), Cameroon (*ibid.*, § 578), Canada (*ibid.*, § 579), Colombia (*ibid.*, § 580), Croatia (*ibid.*, §§ 581–582), Dominican Republic (*ibid.*, § 583), Ecuador (*ibid.*, § 584), France (*ibid.*, §§ 585–586), Germany (*ibid.*, § 587), Hungary (*ibid.*, § 588), Indonesia (*ibid.*, § 589), Israel (*ibid.*, § 590), Italy (*ibid.*, §§ 591–592), Kenya (*ibid.*, § 593), South Korea (*ibid.*, § 594), Madagascar (*ibid.*, § 595), Netherlands (*ibid.*, § 596), New Zealand (*ibid.*, § 597), Russia (*ibid.*, § 598), South Africa (*ibid.*, § 599), Spain (*ibid.*, § 600), Sweden (*ibid.*, § 601), Togo (*ibid.*, § 602), United Kingdom (*ibid.*, § 603) and United States (*ibid.*, §§ 604–606).

[72] See, e.g., the practice of Argentina (*ibid.*, 611), India (*ibid.*, § 612), Iraq (*ibid.*, § 613), Japan (*ibid.*, § 614), Jordan (*ibid.*, § 615) and Syria (*ibid.*, § 619).

[73] See, e.g., the practice of France (*ibid.*, § 585), Indonesia (*ibid.*, § 589), Israel (*ibid.*, § 590), Kenya (*ibid.*, § 593), United Kingdom (*ibid.*, § 603) and United States (*ibid.*, §§ 604–606).

[74] UN General Assembly, Res. 2676 (XXV), 9 December 1970, preamble and § 5.

[75] Cairo Declaration, Sections 68–69, and Cairo Plan of Action, Section 82, both adopted at the Africa-Europe Summit held under the Aegis of the Organization of African Unity and the European Union, 3–4 April 2000.

The lawfulness of direct participation in hostilities in non-international armed conflicts is governed by national law. While such persons could also be called "fighters", this term would be translated as "combatant" in a number of languages and is therefore not wholly satisfactory either.

Treaty provisions use different designations that can apply to "fighters" in the context of non-international armed conflicts, including: persons taking active part in the hostilities;[76] members of dissident armed forces or other organized armed groups;[77] persons who take a direct part in hostilities;[78] civilians who take a direct part in hostilities;[79] civilians taking direct part in hostilities;[80] and combatant adversary.[81] The uncertainty about the qualification of members of armed opposition groups is further addressed in the commentaries to Rules 5 and 6.

### *Interpretation*

According to this rule, when military medical and religious personnel are members of the armed forces, they are nevertheless considered non-combatants. According to the First Geneva Convention, temporary medical personnel have to be respected and protected as non-combatants only as long as the medical assignment lasts (see commentary to Rule 25).[82] As is the case for civilians (see Rule 6), respect for non-combatants is contingent on their abstaining from taking a direct part in hostilities.

The military manuals of Germany and the United States point out that there can be other non-combatant members of the armed forces besides medical and religious personnel. Germany's Military Manual explains that "combatants are persons who may take a direct part in hostilities, i.e., participate in the use of a weapon or a weapon-system in an indispensable function", and specifies, therefore, that "persons who are members of the armed forces but do not have any combat mission, such as judges, government officials and blue-collar workers, are non-combatants".[83] The US Naval Handbook states that "civil defense personnel and members of the armed forces who have acquired civil defense status" are non-combatants, in addition to medical and religious personnel.[84]

Non-combatant members of the armed forces are not to be confused, however, with civilians accompanying armed forces who are not members of the armed forces by definition.[85]

[76] Geneva Conventions, common Article 3.
[77] Additional Protocol II, Article 1(1) (adopted by 58 votes in favour, 5 against and 29 abstentions) (cited in Vol. II, Ch. 1, § 633).
[78] Additional Protocol II, Article 4(1) (adopted by consensus).
[79] Additional Protocol II, Article 13(3) (adopted by consensus) (*ibid.*, § 756).
[80] ICC Statute, Article 8(2)(e)(i). [81] ICC Statute, Article 8(2)(e)(ix).
[82] First Geneva Convention, Article 25 (cited in Vol. II, Ch. 7, § 7).
[83] Germany, *Military Manual* (cited in Vol. II, Ch. 1, § 587).
[84] United States, *Naval Handbook* (*ibid.*, § 605).
[85] See Third Geneva Convention, Article 4(A)(4).

While in some countries, entire segments of the population between certain ages may be drafted into the armed forces in the event of armed conflict, only those persons who are actually drafted, i.e., who are actually incorporated into the armed forces, can be considered combatants. Potential mobilisation does not render the person concerned a combatant liable to attack.[86]

**Rule 4. The armed forces of a party to the conflict consist of all organised armed forces, groups and units which are under a command responsible to that party for the conduct of its subordinates.**

*Practice*

Volume II, Chapter 1, Section D.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in international armed conflicts. For purposes of the principle of distinction, it may also apply to State armed forces in non-international armed conflicts.[87]

*International armed conflicts*

This rule is set forth in Article 43(1) of Additional Protocol I.[88]

Many military manuals specify that the armed forces of a party to the conflict consist of all organised armed groups which are under a command responsible to that party for the conduct of its subordinates.[89] This definition is supported by official statements and reported practice.[90] Practice includes that of States not, or not at the time, party to Additional Protocol I.[91]

[86] This conclusion is based on discussions during the second consultation with academic and governmental experts in the framework of this study in May 1999 and the general agreement among the experts to this effect. The experts also considered that it may be necessary to consider the legislation of a State in determining when reservists actually become members of the armed forces.

[87] See CDDH, *Official Records*, Vol. X, CDDH/I/238/Rev. 1, pp. 93–94; see also Yves Sandoz, Christophe Swinarski, Bruno Zimmermann (eds.), *Commentary on the Additional Protocols*, ICRC, Geneva, 1987, § 4462.

[88] Additional Protocol I, Article 43(1) (adopted by consensus) (cited in Vol. II, Ch. 1, § 631).

[89] See, e.g., the military manuals of Argentina (*ibid.*, § 637), Australia (*ibid.*, § 638), Canada (*ibid.*, § 642), Croatia (*ibid.*, § 644), Germany (*ibid.*, § 647), Hungary (*ibid.*, § 648), Italy (*ibid.*, § 651), Kenya (*ibid.*, § 652), Netherlands (*ibid.*, § 654), New Zealand (*ibid.*, § 655), Nigeria (*ibid.*, § 656), Russia (*ibid.*, § 657), Spain (*ibid.*, § 659), Sweden (*ibid.*, § 660) and United Kingdom (*ibid.*, § 662).

[90] See, e.g., the practice of Belgium (*ibid.*, § 670), France (*ibid.*, § 671), Germany (*ibid.*, § 672), Iran (*ibid.*, § 673), Netherlands (*ibid.*, § 676) and Syria (*ibid.*, § 677).

[91] See, e.g., the practice of France (*ibid.*, § 671), Kenya (*ibid.*, § 652), United Kingdom (*ibid.*, § 662) and United States (*ibid.*, § 665).

In essence, this definition of armed forces covers all persons who fight on behalf of a party to a conflict and who subordinate themselves to its command. As a result, a combatant is any person who, under responsible command, engages in hostile acts in an armed conflict on behalf of a party to the conflict. The conditions imposed on armed forces vest in the group as such. The members of such armed forces are liable to attack.

This definition of armed forces builds upon earlier definitions contained in the Hague Regulations and the Third Geneva Convention which sought to determine who are combatants entitled to prisoner-of-war status. Article 1 of the Hague Regulations provides that the laws, rights and duties of war apply not only to armies, but also to militia and volunteer corps fulfilling four conditions:

1. to be commanded by a person responsible for his subordinates;
2. to have a fixed distinctive emblem recognizable at a distance;
3. to carry arms openly; and
4. to conduct their operations in accordance with the laws and customs of war.

It further specifies that in countries where militia or volunteer corps (so-called "irregular" armed forces) constitute the army, or form part of it, they are included under the denomination "army".[92] This definition is also used in Article 4 of the Third Geneva Convention, with the addition of organised resistance movements.[93] The Hague Regulations and the Third Geneva Convention thus consider all members of armed forces to be combatants and require militia and volunteer corps, including organised resistance movements, to comply with four conditions in order for them to be considered combatants entitled to prisoner-of-war status. The idea underlying these definitions is that the regular armed forces fulfil these four conditions *per se* and, as a result, they are not explicitly enumerated with respect to them. The definition contained in Additional Protocol I does not distinguish between the regular armed forces and other armed groups or units, but defines all armed forces, groups and units which are under a command responsible to a party for the conduct of its subordinates as armed forces of that party. Both definitions express the same idea, namely that all persons who fight in the name of a party to a conflict – who "belong to" a party in the words of Article 4 of the Third Geneva Convention – are combatants. The four conditions contained in the Hague Regulations and the Third Geneva Convention have been reduced to two conditions, the main difference being the exclusion of the requirements of visibility for the definition of armed forces as such. The requirement of visibility is relevant with respect to a combatant's entitlement to prisoner-of-war status (see Rule 106). Additional Protocol I, therefore, has lifted this requirement from the definition of armed

[92] Hague Regulations, Article 1 (*ibid.*, § 628).
[93] Third Geneva Convention, Article 4 (*ibid.*, § 630).

forces (Article 43) and placed it in the provision dealing with combatants and prisoner-of-war status (Article 44).

In addition, Article 43 of Additional Protocol I does not mention the requirement to respect the laws and customs of war but includes a requirement to have an internal disciplinary system to enforce compliance with international humanitarian law, but this change does not substantially alter the definition of armed forces for the purposes of determining those combatants entitled to prisoner-of-war status. The requirement of an internal disciplinary system supplements the provisions concerning command responsibility (see Rules 152–153) and is a corollary to the obligation to issue instructions which comply with international humanitarian law (see commentary to Rule 139).[94]

Articles 43 and 44 of Additional Protocol I reaffirm what was already stated in Article 85 of the Third Geneva Convention, namely that "prisoners of war prosecuted under the laws of the Detaining Power for acts committed prior to capture shall retain, even if convicted, the benefits of the present Convention", that is to say that they retain their status. These provisions "thus preclude any attempt to deny prisoner of war status to members of independent or regular armed forces on the allegation that their force does not enforce some provision of customary or conventional law of armed conflict (as construed by the Detaining Power)".[95] Only the failure to distinguish oneself from the civilian population (see Rule 106) or being caught as a spy (see Rule 107) or a mercenary (see Rule 108) warrants forfeiture of prisoner-of-war status.

The definition in Article 43 of Additional Protocol I is now generally applied to all forms of armed groups who belong to a party to an armed conflict to determine whether they constitute armed forces. It is therefore no longer necessary to distinguish between regular and irregular armed forces. All those fulfilling the conditions in Article 43 of Additional Protocol I are armed forces.

### *Incorporation of paramilitary or armed law enforcement agencies into armed forces*

Specific practice was found concerning the incorporation of paramilitary or armed law enforcement agencies, such as police forces, *gendarmerie* and constabulary, into armed forces.[96] Examples of such paramilitary agencies incorporated into the armed forces of a State include the Special Auxiliary Force attached to Bishop Muzorewa's United African National Congress in Zimbabwe, which was integrated into the national army after the Bishop became

[94] See Yves Sandoz, Christophe Swinarski, Bruno Zimmermann (eds.), *Commentary on the Additional Protocols*, ICRC, Geneva, 1987, § 1675.

[95] Michael Bothe, Karl Josef Partsch, Waldemar A. Solf, *New Rules for Victims of Armed Conflicts*, Martinus Nijhoff, The Hague, 1982, p. 239.

[96] See, e.g., the practice of Argentina (cited in Vol. II, Ch. 1, § 688), Belgium (*ibid.*, § 685), Canada (*ibid.*, § 689), France (*ibid.*, § 686), Germany (*ibid.*, § 690), Netherlands (*ibid.*, § 691), New Zealand (*ibid.*, § 692), Spain (*ibid.*, §§ 693 and 696) and Philippines (*ibid.*, § 695) and the reported practice of India (*ibid.*, § 698), South Korea (*ibid.*, § 699), Syria (*ibid.*, § 700) and Zimbabwe (*ibid.*, § 697).

Prime Minister, and India's Border Security Force in Assam.[97] Examples of armed law enforcement agencies being incorporated into the armed forces include the Philippine Constabulary and Spain's Guardia Civil.[98]

Incorporation of paramilitary or armed law enforcement agencies into armed forces is usually carried out through a formal act, for example, an act of parliament. In the absence of formal incorporation, the status of such groups will be judged on the facts and in the light of the criteria for defining armed forces. When these units take part in hostilities and fulfil the criteria of armed forces, they are considered combatants. In addition, Additional Protocol I requires a party to the conflict to notify such incorporation to the other parties to the conflict.[99] Belgium and France issued a general notification to this effect to all States party upon ratification of Additional Protocol I.[100] This method of satisfying the requirement of notification was explicitly recognised by the Rapporteur of the Working Group at the Diplomatic Conference leading to the adoption of the Additional Protocols.[101] In the light of the general obligation to distinguish between combatants and civilians (see Rule 1), such notification is important because members of the armed forces of each side have to know who is a member of the armed forces and who is a civilian. Confusion is particularly likely since police forces and *gendarmerie* usually carry arms and wear a uniform, although in principle their uniforms are not the same as those of the armed forces proper. While notification is not constitutive of the status of the units concerned, it does serve to avoid confusion and thus enhances respect for the principle of distinction.

**Rule 5. Civilians are persons who are not members of the armed forces. The civilian population comprises all persons who are civilians.**

*Practice*

Volume II, Chapter 1, Section E.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in international armed conflicts. It also applies to non-international armed conflicts although practice is ambiguous as to whether members of armed opposition groups are considered members of armed forces or civilians.

[97] These examples are quoted in New Zealand, *Military Manual* (*ibid.*, § 692).
[98] Philippines, *Decree on the Constitution of the Integrated National Police* (*ibid.*, § 695); Spain, *Military Criminal Code* (*ibid.*, § 696).
[99] Additional Protocol I, Article 43(3) (adopted by consensus) (*ibid.*, § 684).
[100] Belgium, Interpretative declarations made upon ratification of Additional Protocol I (*ibid.*, § 685); France, Reservations and declarations made upon ratification of Additional Protocol I (*ibid.*, § 686).
[101] Yves Sandoz, Christophe Swinarski, Bruno Zimmermann (eds.), *Commentary on the Additional Protocols*, ICRC, Geneva, 1987, § 1682.

*International armed conflicts*

The definition of civilians as persons who are not members of the armed forces is set forth in Article 50 of Additional Protocol I, to which no reservations have been made.[102] It is also contained in numerous military manuals.[103] It is reflected in reported practice.[104] This practice includes that of States not, or not at the time, party to Additional Protocol I.[105]

In its judgement in the *Blaškić case* in 2000, the International Criminal Tribunal for the Former Yugoslavia defined civilians as "persons who are not, or no longer, members of the armed forces".[106]

No official contrary practice was found. Some practice adds the condition that civilians are persons who do not participate in hostilities. This additional requirement merely reinforces the rule that a civilian who participates directly in hostilities loses protection against attack (see Rule 6). However, such a civilian does not thereby become a combatant entitled to prisoner-of-war status and, upon capture, may be tried under national law for the mere participation in the conflict, subject to fair trial guarantees (see Rule 100).

*Exception*

An exception to this rule is the *levée en masse*, whereby the inhabitants of a country which has not yet been occupied, on the approach of the enemy, spontaneously take up arms to resist the invading troops without having time to form themselves into an armed force. Such persons are considered combatants if they carry arms openly and respect the laws and customs of war (see commentary to Rule 106). This is a long-standing rule of customary international humanitarian law already recognised in the Lieber Code and the Brussels Declaration.[107] It is codified in the Hague Regulations and the Third Geneva Convention.[108] Although of limited current application, the *levée en masse* is still repeated in many military manuals, including very recent ones.[109]

[102] Additional Protocol I, Article 50 (adopted by consensus) (cited in Vol. II, Ch. 1, § 705).

[103] See, e.g., the military manuals of Argentina (*ibid.*, § 712), Australia (*ibid.*, § 713), Benin (*ibid.*, § 714), Cameroon (*ibid.*, § 715), Canada (*ibid.*, § 716), Colombia (*ibid.*, § 717), Croatia (*ibid.*, §§ 718–719), Dominican Republic (*ibid.*, § 720), Ecuador (*ibid.*, § 721), France (*ibid.*, §§ 722–723), Hungary (*ibid.*, § 724), Indonesia (*ibid.*, § 725), Italy (*ibid.*, § 727), Kenya (*ibid.*, § 728), Madagascar (*ibid.*, § 729), Netherlands (*ibid.*, § 730), South Africa (*ibid.*, § 731), Spain (*ibid.*, § 732), Sweden (*ibid.*, § 733), Togo (*ibid.*, § 734), United Kingdom (*ibid.*, § 735), United States (*ibid.*, §§ 736–737) and Yugoslavia (*ibid.*, § 738).

[104] See, e.g., the reported practice of Israel (*ibid.*, § 726), Jordan (*ibid.*, § 743), Rwanda (*ibid.*, § 746) and Syria (*ibid.*, § 747).

[105] See, e.g., the practice of France (*ibid.*, § 722), Indonesia (*ibid.*, § 725), Israel (*ibid.*, § 726), Kenya (*ibid.*, § 728), United Kingdom (*ibid.*, § 735) and United States (*ibid.*, §§ 736–737).

[106] ICTY, *Blaškić case*, Judgement (*ibid.*, § 751).

[107] Lieber Code, Articles 49 and 51; Brussels Declaration, Article 10.

[108] Hague Regulations, Article 2; Third Geneva Convention, Article 4(A)(6).

[109] See, e.g., the military manuals of Benin (cited in Vol. II, Ch. 1, § 714), Cameroon (*ibid.*, § 715), Canada (*ibid.*, § 764), Kenya (*ibid.*, § 728), Madagascar (*ibid.*, § 729), South Africa (*ibid.*, § 731) and Togo (*ibid.*, § 734).

*Non-international armed conflicts*

The definition that "any person who is not a member of armed forces is considered to be a civilian" and that "the civilian population comprises all persons who are civilians" was included in the draft of Additional Protocol II.[110] The first part of this definition was amended to read that "a civilian is anyone who is not a member of the armed forces or of an organized armed group" and both parts were adopted by consensus in Committee III of the Diplomatic Conference leading to the adoption of the Additional Protocols.[111] However, this definition was dropped at the last moment of the conference as part of a package aimed at the adoption of a simplified text.[112] As a result, Additional Protocol II does not contain a definition of civilians or the civilian population even though these terms are used in several provisions.[113] It can be argued that the terms "dissident armed forces or other organized armed groups . . . under responsible command" in Article 1 of Additional Protocol II inferentially recognise the essential conditions of armed forces, as they apply in international armed conflict (see Rule 4), and that it follows that civilians are all persons who are not members of such forces or groups.[114] Subsequent treaties, applicable to non-international armed conflicts, have similarly used the terms civilians and civilian population without defining them.[115]

While State armed forces are not considered civilians, practice is not clear as to whether members of armed opposition groups are civilians subject to Rule 6 on loss of protection from attack in case of direct participation or whether members of such groups are liable to attack as such, independently of the operation of Rule 6. Although the military manual of Colombia defines the term civilians as "those who do not participate directly in military hostilities (internal conflict, international conflict)",[116] most manuals define civilians negatively with respect to combatants and armed forces and are silent on the status of members of armed opposition groups.

**Rule 6. Civilians are protected against attack unless and for such time as they take a direct part in hostilities.**

*Practice*

Volume II, Chapter 1, Section F.

[110] Draft Additional Protocol II submitted by the ICRC to the Diplomatic Conference leading to the adoption of the Additional Protocols, Article 25 (*ibid.*, § 706).
[111] Draft Additional Protocol II, Article 25 as adopted by Committee III (*ibid.*, § 706).
[112] See *ibid.*, § 706.
[113] Additional Protocol II, Articles 13–15 and 17–18.
[114] Michael Bothe, Karl Joseph Partsch, Waldemar A. Solf (eds.), *New Rules for Victims of Armed Conflicts*, Martinus Nijhoff, The Hague, 1982, p. 672.
[115] See, e.g., Amended Protocol II to the CCW, Article 3(7)–(11); Protocol III to the CCW, Article 2; Ottawa Convention, preamble; ICC Statute, Article 8(2)(e)(i), (iii) and (viii).
[116] Colombia, *Instructors' Manual* (*ibid.*, § 717).

*Summary*

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts. The use of human shields is the subject of Rule 97.

*International armed conflicts*

The rule whereby civilians lose their protection against attack when and for such time as they take a direct part in hostilities is contained in Article 51(3) of Additional Protocol I, to which no reservations have been made.[117] At the Diplomatic Conference leading to the adoption of the Additional Protocols, Mexico stated that Article 51 of Additional Protocol I was so essential that it "cannot be the subject of any reservations whatsoever since these would be inconsistent with the aim and purpose of Protocol I and undermine its basis".[118] Also at the Diplomatic Conference, the United Kingdom stated that the exception to the civilian immunity from attack contained in Article 51(3) was a "valuable reaffirmation" of an existing rule of customary international law.[119] Upon ratification of the Convention on Certain Conventional Weapons, the United Kingdom declared that civilians enjoyed the protection of the Convention "unless and for such time as they take a direct part in hostilities".[120]

Numerous military manuals state that civilians are not protected against attack when they take a direct part in hostilities.[121] The rule is supported by official statements and reported practice.[122] This practice includes that of States not, or not at the time, party to Additional Protocol I.[123] When the ICRC appealed to the parties to the conflict in the Middle East in October 1973, i.e., before the adoption of Additional Protocol I, to respect civilian immunity from

[117] Additional Protocol I, Article 51(3) (adopted by 77 votes in favour, one against and 16 abstentions) (*ibid.*, § 755).

[118] Mexico, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, § 800).

[119] United Kingdom, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, § 803).

[120] United Kingdom, Declaration made upon ratification of the CCW (*ibid.*, § 757).

[121] See, e.g., the military manuals of Australia (*ibid.*, § 762), Benin (*ibid.*, § 763), Canada (*ibid.*, § 764), Colombia (*ibid.*, § 765), Croatia (*ibid.*, § 766), Dominican Republic (*ibid.*, § 767), Ecuador (*ibid.*, § 768), France (*ibid.*, § 769), Germany (*ibid.*, § 770), India (*ibid.*, § 771), Indonesia (*ibid.*, § 772), Italy (*ibid.*, § 773), Kenya (*ibid.*, § 774), Madagascar (*ibid.*, § 775), Netherlands (*ibid.*, §§ 776–777), New Zealand (*ibid.*, § 778), Nigeria (*ibid.*, §§ 779–780), South Africa (*ibid.*, § 781), Spain (*ibid.*, § 782), Sweden (*ibid.*, § 783), Togo (*ibid.*, § 784), United Kingdom (*ibid.*, § 786), United States (*ibid.*, §§ 787–788) and Yugoslavia (*ibid.*, § 789).

[122] See, e.g., the statements of Belgium (*ibid.*, § 792) and United States (*ibid.*, §§ 804–806) and the reported practice of Chile (*ibid.*, § 793), Jordan (*ibid.*, § 796), Malaysia (*ibid.*, § 799) and United States (*ibid.*, § 807).

[123] See, e.g., the practice of France (*ibid.*, § 769), India (*ibid.*, § 771), Indonesia (*ibid.*, § 772), Kenya (*ibid.*, § 774), Malaysia (*ibid.*, § 799), Nigeria (*ibid.*, § 779), United Kingdom (*ibid.*, § 786) and United States (*ibid.*, §§ 787–788 and 804–807).

attack, unless and for such time as they took a direct part in hostilities, the States concerned (Egypt, Iraq, Israel and Syria) replied favourably.[124]

*Non-international armed conflicts*

Pursuant to Article 13(3) of Additional Protocol II, civilians are immune from direct attack "unless and for such time as they take a direct part in hostilities".[125] In addition, this rule is set forth in other instruments pertaining also to non-international armed conflicts.[126]

The rule that civilians are not protected against attack when they take a direct part in hostilities is included in many military manuals which are applicable in or have been applied in non-international armed conflicts.[127]

In the case concerning the events at La Tablada in Argentina, the Inter-American Commission on Human Rights held that civilians who directly take part in fighting, whether singly or as members of a group, thereby become legitimate military targets but only for such time as they actively participate in combat.[128]

To the extent that members of armed opposition groups can be considered civilians (see commentary to Rule 5), this rule appears to create an imbalance between such groups and governmental armed forces. Application of this rule would imply that an attack on members of armed opposition groups is only lawful for "such time as they take a direct part in hostilities" while an attack on members of governmental armed forces would be lawful at any time. Such imbalance would not exist if members of armed opposition groups were, due to their membership, either considered to be continuously taking a direct part in hostilities or not considered to be civilians.

It is clear that the lawfulness of an attack on a civilian depends on what exactly constitutes direct participation in hostilities and, related thereto, when direct participation begins and when it ends. As explained below, the meaning of direct participation in hostilities has not yet been clarified. It should be noted, however, that whatever meaning is given to these terms, immunity from attack does not imply immunity from arrest and prosecution.

124 See ICRC, The International Committee's Action in the Middle East (*ibid.*, § 813).
125 Additional Protocol II, Article 13(3) (adopted by consensus) (*ibid.*, § 756).
126 See, e.g., Memorandum of Understanding on the Application of IHL between Croatia and the SFRY, para. 6 (*ibid.*, § 759); Agreement on the Application of IHL between the Parties to the Conflict in Bosnia and Herzegovina, para. 2.5 (*ibid.*, § 760); UN Secretary-General's Bulletin, Section 5.2 (*ibid.*, § 761).
127 See, e.g., the military manuals of Australia (*ibid.*, § 762), Benin (*ibid.*, § 763), Colombia (*ibid.*, § 765), Croatia (*ibid.*, § 766), Ecuador (*ibid.*, § 768), Germany (*ibid.*, § 770), Italy (*ibid.*, § 773), Kenya (*ibid.*, § 774), Madagascar (*ibid.*, § 775), Netherlands (*ibid.*, § 776), Nigeria (*ibid.*, § 779), South Africa (*ibid.*, § 781), Spain (*ibid.*, § 782), Togo (*ibid.*, § 784) and Yugoslavia (*ibid.*, § 789).
128 Inter-American Commission on Human Rights, *Case 11.137 (Argentina)* (*ibid.*, § 810).

*Definition*

A precise definition of the term "direct participation in hostilities" does not exist. The Inter-American Commission on Human Rights has stated that the term "direct participation in hostilities" is generally understood to mean "acts which, by their nature or purpose, are intended to cause actual harm to enemy personnel and *matériel*".[129] Loss of protection against attack is clear and uncontested, as evidenced by several military manuals, when a civilian uses weapons or other means to commit acts of violence against human or material enemy forces.[130] But there is also a lot of practice which gives little or no guidance on the interpretation of the term "direct participation", stating, for example, that the assessment of direct participation has to be made on a case-by-case basis or simply repeating the general rule that direct participation causes civilians to lose protection against attack.[131] The military manuals of Ecuador and the United States give several examples of acts constituting direct participation in hostilities, such as serving as guards, intelligence agents or lookouts on behalf of military forces.[132] The Report on the Practice of the Philippines similarly considers that civilians acting as spies, couriers or lookouts lose their protection against attack.[133]

In a report on human rights in Colombia, the Inter-American Commission on Human Rights sought to distinguish "direct" from "indirect" participation:

> Civilians whose activities merely support the adverse party's war or military effort or otherwise only indirectly participate in hostilities cannot on these grounds alone be considered combatants. This is because indirect participation, such as selling goods to one or more of the armed parties, expressing sympathy for the cause of one of the parties or, even more clearly, failing to act to prevent an incursion by one of the armed parties, does not involve acts of violence which pose an immediate threat of actual harm to the adverse party.[134]

[129] Inter-American Commission on Human Rights, Third report on human rights in Colombia (*ibid.*, § 811).

[130] See, e.g., the military manuals of Australia (*ibid.*, § 820), Belgium (*ibid.*, § 821), Ecuador (*ibid.*, § 822), El Salvador (*ibid.*, § 823), India (*ibid.*, § 824), Netherlands (*ibid.*, § 825), United States (*ibid.*, §§ 827 and 830) and Yugoslavia (*ibid.*, § 831).

[131] See, e.g., Geneva Conventions, Common Article 3 (*ibid.*, § 754); Additional Protocol I, Article 51(3) (adopted by 77 votes in favour, one against and 16 abstentions) (*ibid.*, § 755); Additional Protocol II, Article 13(3) (adopted by consensus) (*ibid.*, § 756); Memorandum of Understanding on the Application of IHL between Croatia and the SFRY, para. 6 (*ibid.*, § 759); Agreement on the Application of IHL between the Parties to the Conflict in Bosnia and Herzegovina, para. 2.5 (*ibid.*, § 760); UN Secretary-General's Bulletin, Section 5.2 (*ibid.*, § 761); the practice of Australia (*ibid.*, § 762), Belgium (*ibid.*, § 792), Benin (*ibid.*, § 763), Canada (*ibid.*, § 764), Colombia (*ibid.*, § 765), Croatia (*ibid.*, § 766), Dominican Republic (*ibid.*, § 767), Ecuador (*ibid.*, § 768), France (*ibid.*, § 769), Germany (*ibid.*, § 770), India (*ibid.*, § 771), Indonesia (*ibid.*, § 772), Italy (*ibid.*, § 773), Jordan (*ibid.*, § 796), Kenya (*ibid.*, § 774), Madagascar (*ibid.*, § 775), Malaysia (*ibid.*, § 799), Netherlands (*ibid.*, § 776), New Zealand (*ibid.*, § 778), Spain (*ibid.*, § 782), Sweden (*ibid.*, § 783), Togo (*ibid.*, § 784), United Kingdom (*ibid.*, §§ 757 and 786), United States (*ibid.*, §§ 787–788 and 804–806), Yugoslavia (*ibid.*, § 789); Inter-American Commission on Human Rights, *Case 11.137 (Argentina)* (*ibid.*, § 810).

[132] Ecuador, *Naval Manual* (*ibid.*, § 822); United States, *Naval Handbook* (*ibid.*, § 830).

[133] Report on the Practice of the Philippines (*ibid.*, § 849).

[134] Inter-American Commission on Human Rights, Third report on human rights in Colombia (*ibid.*, § 811).

The distinction between direct and indirect participation had previously been developed by the Special Representative of the UN Commission on Human Rights for El Salvador.[135] It is clear, however, that international law does not prohibit States from adopting legislation that makes it a punishable offence for anyone to participate in hostilities, whether directly or indirectly.

The Report on the Practice of Rwanda makes a distinction between acts that constitute direct participation in international and non-international armed conflicts and excludes logistical support in non-international armed conflicts from acts that constitute direct participation. According to the responses of Rwandan army officers to a questionnaire referred to in the report, unarmed civilians who follow their armed forces during an international armed conflict in order to provide them with food, transport munitions or carry messages, for example, lose their status as civilians. In the context of a non-international armed conflict, however, unarmed civilians who collaborate with one of the parties to the conflict always remain civilians. According to the report, this distinction is justified by the fact that in internal armed conflicts civilians are forced to cooperate with the party that holds them in its power.[136]

It is fair to conclude, however, that outside the few uncontested examples cited above, in particular use of weapons or other means to commit acts of violence against human or material enemy forces, a clear and uniform definition of direct participation in hostilities has not been developed in State practice.[137]

Several military manuals specify that civilians working in military objectives, for example, munitions factories, do not participate directly in hostilities but must assume the risks involved in an attack on that military objective.[138] The injuries or death caused to such civilians are considered incidental to an attack upon a legitimate target which must be minimised by taking all feasible precautions in the choice of means and methods, for example, by attacking at night (see Rule 17). The theory that such persons must be considered quasi-combatants, liable to attack, finds no support in modern State practice.

### *Situations of doubt as to the character of a person*

The issue of how to classify a person in case of doubt is complex and difficult. In the case of international armed conflicts, Additional Protocol I has sought to resolve this issue by stating that "in case of doubt whether a person is a

[135] UN Commission on Human Rights, Special Representative on the Situation of Human Rights in El Salvador, Final Report (*ibid.*, § 853).

[136] Report on the Practice of Rwanda (*ibid.*, § 850).

[137] The ICRC has sought to clarify the notion of direct participation by means of a series of expert meetings that began in 2003.

[138] See, e.g., the military manuals of Australia (cited in Vol. II, Ch. 2, § 635), Canada (*ibid.*, § 636), Colombia (*ibid.*, § 637), Croatia (*ibid.*, § 638), Ecuador (*ibid.*, § 639), Germany (*ibid.*, § 640), Hungary (*ibid.*, § 641), Madagascar (*ibid.*, § 642), Netherlands (*ibid.*, § 643), New Zealand (*ibid.*, § 644), Spain (*ibid.*, §§ 645–646), Switzerland (*ibid.*, § 647) and United States (*ibid.*, § 648).

civilian, that person shall be considered to be a civilian".[139] Some States have written this rule into their military manuals.[140] Others have expressed reservations about the military ramifications of a strict interpretation of such a rule. In particular, upon ratification of Additional Protocol I, France and the United Kingdom expressed their understanding that this presumption does not override commanders' duty to protect the safety of troops under their command or to preserve their military situation, in conformity with other provisions of Additional Protocol I.[141] The US Naval Handbook states that:

> Direct participation in hostilities must be judged on a case-by-case basis. Combatants in the field must make an honest determination as to whether a particular civilian is or is not subject to deliberate attack based on the person's behavior, location and attire, and other information available at the time.[142]

In the light of the foregoing, it is fair to conclude that when there is a situation of doubt, a careful assessment has to be made under the conditions and restraints governing a particular situation as to whether there are sufficient indications to warrant an attack. One cannot automatically attack anyone who might appear dubious.

In the case of non-international armed conflicts, the issue of doubt has hardly been addressed in State practice, even though a clear rule on this subject would be desirable as it would enhance the protection of the civilian population against attack. In this respect, the same balanced approach as described above with respect to international armed conflicts seems justified in non-international armed conflicts.

[139] Additional Protocol I, Article 50(1) (adopted by consensus) (cited in Vol. II, Ch. 1, § 887).

[140] See, e.g., the military manuals of Argentina (*ibid.*, § 893), Australia (*ibid.*, § 894), Cameroon (*ibid.*, § 895), Canada (*ibid.*, § 896), Colombia (*ibid.*, § 897), Croatia (*ibid.*, § 898), Hungary (*ibid.*, § 900), Kenya (*ibid.*, § 901), Madagascar (*ibid.*, § 902), Netherlands (*ibid.*, § 903), South Africa (*ibid.*, § 904), Spain (*ibid.*, § 905), Sweden (*ibid.*, § 906) and Yugoslavia (*ibid.*, § 908).

[141] France, Declarations and reservations made upon ratification of Additional Protocol I (*ibid.*, § 888); United Kingdom, Declarations and reservations made upon ratification of Additional Protocol I (*ibid.*, § 889).

[142] United States, *Naval Handbook* (*ibid.*, § 830).

CHAPTER 2

# DISTINCTION BETWEEN CIVILIAN OBJECTS AND MILITARY OBJECTIVES

**Rule 7. The parties to the conflict must at all times distinguish between civilian objects and military objectives. Attacks may only be directed against military objectives. Attacks must not be directed against civilian objects.**

*Practice*

Volume II, Chapter 2, Section A.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts. The three components of this rule are interrelated and the practice pertaining to each reinforces the validity of the others. Belligerent reprisals against civilian objects are discussed in Chapter 41.

*International armed conflicts*

This rule is codified in Articles 48 and 52(2) of Additional Protocol I, to which no reservations have been made.[1] At the Diplomatic Conference leading to the adoption of the Additional Protocols, Mexico stated that Article 52 was so essential that it "cannot be the subject of any reservations whatsoever since these would be inconsistent with the aim and purpose of Protocol I and undermine its basis".[2] The prohibition on directing attacks against civilian objects is also set forth in Amended Protocol II and Protocol III to the Convention on Certain Conventional Weapons.[3] In addition, under the Statute of the International Criminal Court, "intentionally directing attacks against civilian objects, that is, objects which are not military objectives", constitutes a war crime in international armed conflicts.[4]

[1] Additional Protocol I, Article 48 (adopted by consensus) (cited in Vol. II, Ch. 2, § 1) and Article 52(2) (adopted by 79 votes in favour, none against and 7 abstentions) (*ibid.*, § 50).
[2] Mexico, Statement at the Diplomatic Conference leading to the adoption of the Additional Protocols (*ibid.*, § 79).
[3] Amended Protocol II to the CCW, Article 3(7) (*ibid.*, § 107); Protocol III to the CCW, Article 2(1) (*ibid.*, § 106).
[4] ICC Statute, Article 8(2)(b)(ii) (*ibid.*, § 108).

The obligation to distinguish between civilian objects and military objectives and the prohibition on directing attacks against civilian objects is contained in a large number of military manuals.[5] Sweden's IHL Manual, in particular, identifies the principle of distinction as set out in Article 48 of Additional Protocol I as a rule of customary international law.[6] Many States have adopted legislation making it an offence to attack civilian objects during armed conflict.[7] There are also numerous official statements invoking this rule.[8] This practice includes that of States not, or not at the time, party to Additional Protocol I.[9]

In their pleadings before the International Court of Justice in the *Nuclear Weapons case*, several States invoked the principle of distinction between civilian objects and military objectives.[10] In its advisory opinion, the Court stated that the principle of distinction was one of the "cardinal principles" of international humanitarian law and one of the "intransgressible principles of international customary law".[11]

When the ICRC appealed to the parties to the conflict in the Middle East in October 1973, i.e., before the adoption of Additional Protocol I, to respect the distinction between civilian objects and military objectives, the States concerned (Egypt, Iraq, Israel and Syria) replied favourably.[12]

### *Non-international armed conflicts*

The distinction between civilian objects and military objectives was included in the draft of Additional Protocol II but was dropped at the last moment as

[5] See, e.g., the military manuals of Argentina, Australia, Belgium, Benin, Cameroon, Canada, Croatia, France, Germany, Hungary, Israel, Netherlands, New Zealand, Nigeria, Philippines, Spain, Sweden, Switzerland, Togo and United States (*ibid.*, § 7), Indonesia (*ibid.*, § 8), Sweden (*ibid.*, § 9), Argentina, Australia, Belgium, Benin, Cameroon, Canada, Colombia, Croatia, Ecuador, France, Germany, Italy, Kenya, Lebanon, Madagascar, Netherlands, New Zealand, Nigeria, South Africa, Spain, Togo, United Kingdom, United States and Yugoslavia (*ibid.*, § 115), Argentina (*ibid.*, § 116) and United States (*ibid.*, § 117).

[6] Sweden, *IHL Manual* (*ibid.*, § 9).

[7] See, e.g., the legislation of Australia (*ibid.*, § 119), Azerbaijan (*ibid.*, § 120), Canada (*ibid.*, § 122), Congo (*ibid.*, § 123), Croatia (*ibid.*, § 124), Estonia (*ibid.*, § 126), Georgia (*ibid.*, § 127), Germany (*ibid.*, § 128), Hungary (*ibid.*, § 129), Ireland (*ibid.*, § 130), Italy (*ibid.*, § 131), Mali (*ibid.*, § 132), Netherlands (*ibid.*, § 133), New Zealand (*ibid.*, § 134), Norway (*ibid.*, § 136), Slovakia (*ibid.*, § 137), Spain (*ibid.*, § 138), United Kingdom (*ibid.*, § 140) and Yemen (*ibid.*, § 141); see also the draft legislation of Argentina (*ibid.*, § 118), Burundi (*ibid.*, § 121), El Salvador (*ibid.*, § 125), Nicaragua (*ibid.*, § 135) and Trinidad and Tobago (*ibid.*, § 139).

[8] See, e.g., the statements of Croatia (*ibid.*, 145), Egypt (*ibid.*, § 146), EC and its member States, USSR and United States (*ibid.*, § 147), France (*ibid.*, § 148), Iran (*ibid.*, § 149), Iraq (*ibid.*, § 150), Mexico (*ibid.*, § 151), Mozambique (*ibid.*, § 152), Slovenia (*ibid.*, § 155), Sweden (*ibid.*, § 156), United Arab Emirates (*ibid.*, § 157), United Kingdom (*ibid.*, §§ 158–159) and United States (*ibid.*, §§ 160–163).

[9] See, e.g., the practice of Egypt (*ibid.*, § 146), France (*ibid.*, §§ 7, 115 and 148), Indonesia (*ibid.*, § 8), Iran (*ibid.*, § 149), Iraq (*ibid.*, § 150), Kenya (*ibid.*, § 115), United Kingdom (*ibid.*, §§ 115 and 158–159) and United States (*ibid.*, §§ 7, 115, 117 and 160–163).

[10] See the pleadings before the ICJ in the *Nuclear Weapons case* by Egypt (*ibid.*, § 16), Iran (*ibid.*, § 23), Japan (*ibid.*, § 25), Sweden (*ibid.*, § 156) and United Kingdom (*ibid.*, § 32).

[11] ICJ, *Nuclear Weapons case*, Advisory Opinion (*ibid.*, § 179).

[12] See ICRC, The International Committee's Action in the Middle East (*ibid.*, § 102).

part of a package aimed at the adoption of a simplified text.[13] As a result, Additional Protocol II does not contain this principle nor the prohibition on directing attacks against civilian objects, even though it has been argued that the concept of general protection in Article 13(1) of Additional Protocol II is broad enough to cover it.[14] The prohibition on directing attacks against civilian objects has, however, been included in more recent treaty law applicable in non-international armed conflicts, namely Amended Protocol II to the Convention on Certain Conventional Weapons.[15] This prohibition is also contained in Protocol III to the Convention on Certain Conventional Weapons, which has been made applicable in non-international armed conflicts pursuant to an amendment of Article 1 of the Convention adopted by consensus in 2001.[16] In addition, the Second Protocol to the Hague Convention for the Protection of Cultural Property uses the principle of distinction between civilian objects and military objectives as a basis to define the protection due to cultural property in non-international armed conflicts.[17]

The Statute of the International Criminal Court does not explicitly define attacks on civilian objects as a war crime in non-international armed conflicts. It does, however, define the destruction of the property of an adversary as a war crime unless such destruction be "imperatively demanded by the necessities of the conflict".[18] Therefore, an attack against a civilian object constitutes a war crime under the Statute inasmuch as such an attack is not imperatively demanded by the necessities of the conflict. The destruction of property is subject to Rule 50 and the practice establishing that rule also supports the existence of this rule. It is also relevant that the Statute defines attacks again installations, material, units or vehicles involved in a humanitarian assistance or peacekeeping mission as a war crime in non-international armed conflicts, as long as these objects "are entitled to the protection given to ... civilian objects under the international law of armed conflict".[19]

In addition, the prohibition on directing attacks against civilian objects is included in other instruments pertaining also to non-international armed conflicts.[20]

[13] Draft Additional Protocol II submitted by the ICRC to the Diplomatic Conference leading to the adoption of the Additional Protocols, Article 24(1) (*ibid.*, § 2).

[14] Michael Bothe, Karl Joseph Partsch, Waldemar A. Solf (eds.), *New Rules for Victims of Armed Conflicts*, Martinus Nijhoff, The Hague, 1982, p. 677.

[15] Amended Protocol II to the CCW, Article 3(7) (cited in Vol. II, Ch. 2, § 107).

[16] Protocol III to the CCW, Article 2(1) (*ibid.*, § 106).

[17] Second Protocol to the Hague Convention for the Protection of Cultural Property, Article 6(a) (cited in Vol. II, Ch. 12, § 21).

[18] ICC Statute, Article 8(2)(e)(xii).

[19] ICC Statute, Article 8(2)(e)(iii).

[20] See, e.g., Memorandum of Understanding on the Application of IHL between Croatia and the SFRY, para. 6 (cited in Vol. II, Ch. 2, §§ 3, 60 and 111); Agreement on the Application of IHL between the Parties to the Conflict in Bosnia and Herzegovina, para. 2.5 (*ibid.*, §§ 4, 61 and 112); San Remo Manual, paras. 39 and 41 (*ibid.*, §§ 5 and 62); UN Secretary-General's Bulletin, Section 5.1 (*ibid.*, §§ 6, 63 and 113); Cairo Declaration on Human Rights in Islam, Article 3(b) (*ibid.*, § 109); Hague Statement on Respect for Humanitarian Principles (*ibid.*, § 110).

The obligation to distinguish between civilian objects and military objectives and the prohibition on directing attacks against civilian objects is included in military manuals which are applicable in or have been applied in non-international armed conflicts.[21] Numerous States have adopted legislation making it an offence to attack civilian objects during any armed conflict.[22] There is also some national case-law based on this rule.[23] There are, furthermore, a number of official statements pertaining to non-international armed conflicts which refer to this rule.[24] The statements before the International Court of Justice in the *Nuclear Weapons case* referred to above were couched in general terms applicable in all armed conflicts.

No official contrary practice was found with respect to either international or non-international armed conflicts. States and international organisations have generally condemned alleged attacks against civilian objects, for example, during the conflicts in Bosnia and Herzegovina, Lebanon, Sudan and between Iran and Iraq.[25] As early as 1938, the Assembly of the League of Nations stated that "objectives aimed at from the air must be legitimate military objectives and must be identifiable".[26] More recently, in a resolution on protection of civilians in armed conflicts adopted in 1999, the UN Security Council strongly condemned all "attacks on objects protected under international law".[27]

The jurisprudence of the International Court of Justice and of the International Criminal Tribunal for the Former Yugoslavia provides further evidence that the prohibition on attacking civilian objects is customary in both international and non-international armed conflicts.[28]

[21] See, e.g., the military manuals of Benin, Croatia, Germany, Nigeria, Philippines and Togo (*ibid.*, § 7) and Benin, Colombia, Croatia, Ecuador, Germany, Italy, Kenya, Lebanon, Madagascar, South Africa, Togo and Yugoslavia (*ibid.*, § 115).

[22] See, e.g., the legislation of Australia (*ibid.*, § 119), Azerbaijan (*ibid.*, § 120), Canada (*ibid.*, § 122), Congo (*ibid.*, § 123), Croatia (*ibid.*, § 124), Estonia (*ibid.*, § 126), Georgia (*ibid.*, § 127), Germany (*ibid.*, § 128), New Zealand (*ibid.*, § 134), Norway (*ibid.*, § 136), Spain (*ibid.*, § 138) and United Kingdom (*ibid.*, § 140); see also the legislation of Hungary (*ibid.*, § 129), Italy (*ibid.*, § 131) and Slovakia (*ibid.*, § 137), the application of which is not excluded in time of non-international armed conflict, and the draft legislation of Argentina (*ibid.*, § 118), Burundi (*ibid.*, § 121), El Salvador (*ibid.*, § 125), Nicaragua (*ibid.*, § 135) and Trinidad and Tobago (*ibid.*, § 139).

[23] See, e.g., Colombia, *Administrative Case No. 9276* (*ibid.*, § 142); Croatia, *RA. R. case* (*ibid.*, § 143).

[24] See the statements of the EC and its member States (*ibid.*, § 147) and of Mozambique (*ibid.*, § 152), Slovenia (*ibid.*, § 155), USSR (*ibid.*, § 147) and United States (*ibid.*, § 147).

[25] See, e.g., the statements of the EC and its member States (*ibid.*, § 147) and of Croatia (*ibid.*, § 145), Egypt (*ibid.*, § 146), Iran (*ibid.*, § 149), Slovenia (*ibid.*, § 155), USSR (*ibid.*, § 147), United States (*ibid.*, § 147) and United Kingdom (*ibid.*, § 159); UN Security Council, Res. 1052 (*ibid.*, § 164); UN General Assembly, Res. 50/193 (*ibid.*, 168) and Res. 51/112 (*ibid.*, § 169); UN Commission on Human Rights, Res. 1993/7 (*ibid.*, § 170), Res. 1994/75 (*ibid.*, § 171) and Res. 1995/89 (*ibid.*, § 173); Contact Group of the OIC (Egypt, Iran, Pakistan, Saudi Arabia, Senegal and Turkey), Letter to the President of the UN Security Council (*ibid.*, § 177).

[26] League of Nations, Assembly, Resolution adopted on 30 September 1938 (*ibid.*, § 167).

[27] UN Security Council, Res. 1265 (*ibid.*, § 165).

[28] ICJ, *Nuclear Weapons case*, Advisory Opinion (*ibid.*, § 179); ICTY, *Kupreškić case*, Judgement (*ibid.*, § 180) and *Kordić and Čerkez case*, Decision on the Joint Defence Motion and Judgement (*ibid.*, § 182).

The Plan of Action for the years 2000–2003, adopted by the 27th International Conference of the Red Cross and Red Crescent in 1999, requires that all parties to an armed conflict respect "the total ban on directing attacks ... against civilian objects".[29] The ICRC has called on parties to both international and non-international armed conflicts to respect the distinction between civilian objects and military objectives and not to direct attacks at civilian objects.[30]

*Interpretation*

Several States have stressed that the rule contained in Article 52(2) of Additional Protocol I, which provides that "attacks shall be limited strictly to military objectives", only prohibits direct attacks against civilian objects and does not deal with the question of incidental damage resulting from attacks directed against military objectives.[31] The purpose of these statements is to emphasise that an attack which affects civilian objects is not unlawful as long as it is directed against a military objective and the incidental damage to civilian objects is not excessive. This consideration is taken into account in the formulation of the current rule by the use of the words "attacks *directed* against". The same consideration applies *mutatis mutandis* to Rule 1.

**Rule 8. In so far as objects are concerned, military objectives are limited to those objects which by their nature, location, purpose or use make an effective contribution to military action and whose partial or total destruction, capture or neutralisation, in the circumstances ruling at the time, offers a definite military advantage.**

*Practice*

Volume II, Chapter 2, Section B.

*Summary*

State practice establishes this rule as a norm of customary international law applicable in both international and non-international armed conflicts.

[29] 27th International Conference of the Red Cross and Red Crescent, Plan of Action for the years 2000–2003 (adopted by consensus) (*ibid.*, § 178).
[30] See, e.g., the practice of the ICRC (*ibid.*, §§ 185–186 and 188–193).
[31] See the reservations and declarations made upon ratification of the Additional Protocols and other statements by Australia (*ibid.*, § 51), Canada (*ibid.*, §§ 52 and 71), France (*ibid.*, § 53), Federal Republic of Germany (*ibid.*, § 75), Italy (*ibid.*, § 54), Netherlands (*ibid.*, § 80), New Zealand (*ibid.*, § 55), United Kingdom (*ibid.*, §§ 56 and 86) and United States (*ibid.*, § 92).

ជាតិ សាសនា ព្រះមហាក្សត្រ

## ឫទ្ធហេតុ

ដោយហេតុថា៖

ដោយហេតុថា៖

**ប្រការ ២៖ អំពីសិទ្ធិអំណាចមេឃ**

| ស្នាមមេដៃស្តាំម្ខី | ស្នាមមេដៃស្តាំប្រពន្ធ |
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| តែម សេរីសុធ | ឡឹក សាវ៉ៃន |

**ធានយើញ**

គូភាគីព្រមព្រៀងគ្នាផ្តិតស្នាមមេដៃចំពោះមុខពិតប្រាកដមែន។

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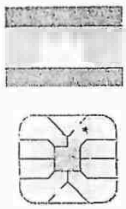
**មេធាវី**

**សេក សុវណ្ណា** **ផិន ស៊ីដែន**



ចានចម្លងត្រឹមត្រូវតាមច្បាប់ដើម

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រាជធានីភ្នំពេញ,ថ្ងៃ.....ខែ.....ឆ្នាំ២០២១

ជ.ម.ប.ការិយាល័យខណ្ឌមានជ័យ

ជ. ការិយាធិការ

ជ. ការិយាធិ

ឈុត ពិសី

ជាតិ សាសនា ព្រះមហាក្សត្រ

## ឫទ្ធហេតុ

ដោយហេតុថា៖

ដោយហេតុថា៖

**ប្រការ ២៖ អំពីសិទ្ធិអំណាចមេឃ**

| ស្នាមមេដៃស្តាំម្ខី | ស្នាមមេដៃស្តាំប្រពន្ធ |
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| តែម សេរីសុធ | ឡឹក សាវ៉ៃន |

**ធានយើញ**

គូភាគីព្រមព្រៀងគ្នាផ្តិតស្នាមមេដៃចំពោះមុខពិតប្រាកដមែន។

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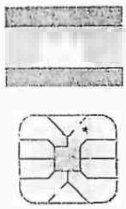
**មេធាវី**

**សេក សុវណ្ណា** **ផិន ស៊ីដែន**



ចានចម្លងត្រឹមត្រូវតាមច្បាប់ដើម

ថ្ងៃ.ព្រហស្បតិ៍.....ខែ.ម៉ាឃ.....ឆ្នាំ.....ច ចស័ក ព.ស២៥៦៧

រាជធានីភ្នំពេញ,ថ្ងៃ.....ខែ.....ឆ្នាំ២០២១

ជ.ម.ប.ការិយាល័យខណ្ឌមានជ័យ

ជ. ការិយាធិការ

ជ. ការិយាធិ

ឈុត ពិសី